AUTHENTICATED U.S. GOVERNMENT INFORMATION GPO

THE NATIONAL ARCHIVES OF THE UNITED STATES
LITTERA SCRIPTA MANET
1934

FEDERAL REGISTER

VOLUME 21 NUMBER 207

Washington, Wednesday, October 24, 1956

TITLE 3—THE PRESIDENT

EXECUTIVE ORDER 10681

AMENDMENT OF EXECUTIVE ORDER NO. 10152,[1] PRESCRIBING REGULATIONS RELATING TO INCENTIVE PAY FOR THE PERFORMANCE OF HAZARDOUS DUTY

By virtue of the authority vested in me by sections 204 and 501 (d) of the Career Compensation Act of 1949 (63 Stat. 809, 826), as amended, and as President of the United States and Commander in Chief of the armed forces of the United States, section 4 of Executive Order No. 10152 of August 17, 1950, prescribing regulations relating to the right of members of the uniformed services to incentive pay for the performance of hazardous duty required by competent orders, is hereby amended by adding thereto a new subsection (c) reading as follows:

"(c) Minimum flight requirements for members of Reserve components of the uniformed services who perform both active-duty and inactive-duty training during the same calendar month and who may qualify for incentive pay under the provisions of both sections 204 and 501 (d) of the Career Compensation Act of 1949:

(1) For periods of active duty, those prescribed by subdivision (4) of subsection (a) of this section.

(2) For periods of inactive-duty training, those prescribed by subdivision (4) of subsection (b) of this section.

However, the total flight requirements as determined by subdivisions (1) and (2) of this subsection may be met at any time during such calendar month

(1) on inactive-duty training, or

(2) on active-duty and inactive-duty training,

if the inactive-duty flight requirement for such month has been met."

DWIGHT D. EISENHOWER

THE WHITE HOUSE,
October 22, 1956.

[F. R. Doc. 56-8676; Filed, Oct. 23, 1956; 9:05 a. m.]

[1] 15 F. R. 5489; 3 CFR, 1950 Supp.

EXECUTIVE ORDER 10682

AMENDMENT OF SECTION 2 (c) OF EXECUTIVE ORDER NO. 10530,[1] DELEGATING TO THE CIVIL SERVICE COMMISSION THE AUTHORITY OF THE PRESIDENT TO EXEMPT CERTAIN EMPLOYEES FROM AUTOMATIC SEPARATION FROM THE SERVICE

By virtue of the authority vested in me by section 301 of title 3 of the United States Code, and as President of the United States, I hereby amend subsection (c) of section 2 of Executive Order No. 10530 of May 10, 1954, to read as follows:

"(c) Except as to Presidential appointees, the authority vested in the President (1) by section 204 of the act of June 30, 1932, 47 Stat. 404, to exempt from automatic separation from the service under the said section 204 any person when, in his judgment, the public interest so requires, and (2) by subsection (c) of section 5 of the Civil Service Retirement Act of July 31, 1956, 70 Stat. 748, to exempt from automatic separation from the service under the said section 5 any employee when, in his judgment, the public interest so requires."

DWIGHT D. EISENHOWER

THE WHITE HOUSE,
October 22, 1956.

[F. R. Doc. 56-8677; Filed, Oct. 23, 1956; 9:05 a. m.]

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PART 485—SOIL BANK

SUBPART—ACREAGE RESERVE PROGRAM

REDEMPTION OF CERTIFICATES IN GRAIN; CHANGE IN VALUATION OF GRAIN

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[1] 19 F. R. 2709; 3 CFR, 1954 Supp.

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FEDERAL REGISTER

Published daily, except Sundays, Mondays, and days following official Federal holidays, by the Federal Register Division, National Archives and Records Service, General Services Administration, pursuant to the authority contained in the Federal Register Act, approved July 26, 1935 (49 Stat. 500, as amended; 44 U. S. C., ch. 8B), under regulations prescribed by the Administrative Committee of the Federal Register, approved by the President. Distribution is made only by the Superintendent of Documents, Government Printing Office, Washington 25, D. C.

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(As of January 1, 1956)

The following Supplements are now available:

Title 26 (1954) Part 221 to end (Rev., 1955) ($2.25)

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Titles 44–45 ($1.00)

Title 50 ($0.60)

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tion in grains of certificates issued under the acreage reserve part of the Soil Bank Program is amended to read as follows:

§ 485.256 *Value of grains.* CCC-owned grains delivered in redemption of certificates shall be valued at the current price support rate, including premiums and discounts, established for the class, grade and quality of the commodity at the location where delivery is to be made: *Provided*, That if delivery of corn is made in a county having a current support rate based on such county being outside the commercial corn-producing area designated by the Secretary of Agriculture pursuant to section 327 of the Agricultural Act of 1938, as amended, the value of such corn shall be adjusted upward to reflect the price support rate which would be in effect if the county had been in the aforesaid commercial corn-producing area; such adjusted value shall be determined by (a) dividing the applicable current price support rate for the county by 82.5, (b) multiplying the dividend of such calculation by 100, and (c) rounding the product thus obtained to the nearest whole cent. In the case of wheat, oats, rye, barley and grain sorghums, the price support rate in effect on July 1 of each year shall for purposes of this section remain in effect through June 30 of the following year. In the case of rice, the price support rate in effect on August 1 of each year shall for purposes of this section remain in effect through July 31 of the following year. In the case of corn, the price support rate in effect on October 1 of each year shall for purposes of this section remain in effect through September 30 of the following year.

(Sec. 124, Pub. Law 540, 84th Cong.)

Issued at Washington, D. C., this 19th day of October 1956.

[SEAL] TRUE D. MORSE,
Acting Secretary of Agriculture.

[F. R. Doc. 56-8608; Filed, Oct. 23, 1956; 8:57 a. m.]

PART 485—SOIL BANK

SUBPART—ACREAGE RESERVE PROGRAM

REDEMPTION OF CERTIFICATES IN GRAINS; APPENDIX A

Appendix A, setting forth the normal harvesting season by area for each commodity, is hereby added to the regulations (21 F. R. 6881) governing the redemption in grains of certificates issued under the acreage reserve part of the Soil Bank Program (§ 485.258 of such regulations provides that certificates shall not be redeemable in a grain during the normal harvesting season for such grain in the area where delivery is desired or the area where the grain under price support loan is stored):

APPENDIX A—NORMAL HARVESTING SEASON FOR GRAINS BY AREA

State	Wheat, barley, rye, and oats	Corn and grain sorghums	Rice
Alabama	May 15 through June 15	Oct. 1 through Nov. 31	
Arizona	May 15 through Oct. 31	Aug. 15 through Nov. 15	Sept. 15 through Dec. 15.
Arkansas	May 1 through July 15	Oct. 1 through Nov. 30	Sept. 1 through Nov. 15.
California	May 1 through Sept. 15	Sept. 15 through Dec. 15	Sept. 15 through Dec. 15.
Colorado	July 1 through Aug. 31	Sept. 15 through Nov. 30	
Delaware	June 1 through July 15	Sept. 1 through Oct. 31	
Florida	May 1 through May 31	Sept. 15 through Nov. 15	Sept. 1 through Oct. 15.
Georgia	May 1 through July 15	Oct. 1 through Dec. 15	
Idaho	July 15 through Sept. 30	Oct. 15 through Nov. 15	
Illinois	July 1 through Aug. 15	Oct. 15 through Nov. 30	Sept. 1 through Nov. 15.
Indiana	June 15 through July 31	Oct. 15 through Nov. 30	
Iowa	July 1 through July 31	Oct. 15 through Nov. 15	
Kansas	June 15 through July 15	Oct. 1 through Nov. 15	
Kentucky	June 1 through July 31	Oct. 1 through Nov. 15	
Louisiana	May 15 through June 15	Aug. 15 through Oct. 15	Sept. 1 through Oct. 15.
Maryland	June 11 through July 31	Sept. 1 through Oct. 31	
Michigan	July 15 through Aug. 15	Oct. 15 through Nov. 30	
Minnesota	July 1 through Sept. 15	Oct. 15 through Nov. 30	
Mississippi	May 15 through June 30	Sept. 15 through Nov. 15	Sept. 1 through Nov. 15.
Missouri	June 1 through July 15	Sept. 15 through Nov. 30	Sept. 1 through Nov. 15.
Montana	Aug. 1 through Sept. 30	Sept. 15 through Oct. 31	
Nebraska	June 15 through Aug. 31	Oct. 1 through Nov. 15	
Nevada	July 15 through Aug. 31		
New Jersey	June 1 through Aug. 15	Sept. 1 through Oct. 31	
New Mexico	June 15 through Aug. 15	Oct. 15 through Nov. 30	
New York	July 1 through Aug. 15	Sept. 1 through Dec. 1	
North Carolina	May 15 through July 15	Oct. 15 through Dec. 15	Sept. 1 through Nov. 15.
North Dakota	July 15 through Sept. 15	Sept. 15 through Oct. 31	
Ohio	June 15 through Aug. 15	Oct. 1 through Nov. 30	
Oklahoma	May 15 through July 15	Sept. 1 through Nov. 30	Sept. 1 through Nov. 15.
Oregon	July 1 through Sept. 15	Oct. 1 through Nov. 30	
Pennsylvania	June 15 through Aug. 15	Sept. 1 through Nov. 15	
South Carolina	May 15 through June 30	Oct. 15 through Dec. 15	Sept. 1 through Nov. 15.
South Dakota	July 1 through Aug. 15	Oct. 15 through Nov. 30	
Tennessee	June 1 through July 15	Oct. 15 through Nov. 30	Sept. 1 through Nov. 15.
Texas	May 1 through July 15	June 15 through Nov. 15	Sept. 1 through Oct. 15.
Utah	July 15 through Sept. 30	Sept. 1 through Oct. 15	
Virginia	June 1 through July 31	Sept. 1 through Nov. 30	
Washington	July 1 through Oct. 15		
West Virginia	June 15 through Aug. 31	Sept. 15 through Dec. 15	
Wisconsin	July 15 through Aug. 15	Oct. 1 through Nov. 15	
Wyoming	July 15 through Sept. 15	Sept. 15 through Nov. 30	

(Sec. 124, Pub. Law 540, 84th Cong.)

Done at Washington, D. C., this 19th day of October 1956.

[SEAL] TRUE D. MORSE,
Acting Secretary.

[F. R. Doc. 56-8609; Filed, Oct. 23, 1956; 8:57 a. m.]

TITLE 7—AGRICULTURE

Chapter IX—Agricultural Marketing Service (Marketing Agreements and Orders), Department of Agriculture

[Docket No. AO-14-A23]

PART 904—MILK IN GREATER BOSTON MARKETING AREA

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AUTHORITY: §§ 904.0 to 904.84 issued under sec. 5, 49 Stat. 753, as amended; 7 U. S. C. 608c.

§ 904.0 *Findings and determinations.* The findings and determinations hereinafter set forth are supplementary and in addition to the findings and determinations previously made in connection with the issuance of the aforesaid order and of each of the previously issued amendments thereto; and all of said previous findings and determinations are hereby ratified and affirmed, except insofar as such findings and determinations may be in conflict with the findings and determinations set forth herein.

(a) *Findings upon the basis of the hearing record.* Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and procedure, as amended, governing the formulation of marketing agreements and marketing orders (7 CFR Part 900), a public hearing was held upon a proposed marketing agreement and proposed amendments to the order, as amended, regulating the handling of milk in the Greater Boston, Massachusetts, marketing area. Upon the basis of the evidence introduced at such hearing and the record thereof, it is found that:

(1) The said order, as amended, and as hereby further amended, and all of the terms and conditions thereof, will tend to effectuate the declared policy of the act;

(2) The parity prices of milk produced for sale in the said marketing area, as determined pursuant to section 2 of the act, are not reasonable in view of the price of feeds, available supplies of feeds, and other economic conditions which affect market supply and demand for milk in the marketing area, and the minimum prices specified in the order, as amended, and as hereby further amended, are such prices as will reflect the aforesaid factors, insure a sufficient quantity of pure and wholesome milk, and be in the public interest; and

(3) The said order, as amended, and as hereby further amended, regulates the handling of milk in the same manner as and is applicable only to persons in the respective classes of industrial and commercial activity, specified in a marketing agreement upon which a hearing has been held.

(4) All milk and milk products, handled by a handler, as defined in this order, as amended, and as hereby further amended, are in the current of interstate commerce or directly burden, obstruct, or affect interstate commerce in milk or its products; and

(5) It is hereby found that the necessary expenses of the market administrator for the maintenance and functioning of such agency will require the payment by each handler, as his pro rata share of such expenses, 3 cents per hundredweight or such amount not exceeding 3 cents per hundredweight as the Secretary may prescribe, with respect to all of his receipts of milk from producers (including such handler's own production), his receipts of outside milk, and his receipts of exempt milk processed at a regulated plant.

(b) *Additional findings.* It is necessary in the public interest to make this order amending the order, as amended, effective not later than November 1, 1956. The issuance of said order was restrained by a preliminary injunction issued on October 21, 1955, by the United States District Court for the District of Columbia. Said preliminary injunction was dissolved and the case giving rise thereto was dismissed by order of said court filed on October 18, 1956. The delay in the issuance of this order has already seriously impaired the orderly marketing of milk in the marketing area, and any further delay beyond November 1, 1956, in making the order effective will substantially obstruct the effectuation of the declared policy of the act.

The provisions of the said order are well known to handlers, the public hearing having been held on April 18 to May 5, 1955, the recommended decision having been issued on July 29, 1955 and the final decision having been issued on September 13, 1955. The changes effected by this order will not require extensive preparation or substantial alteration in method of operation for handlers. In view of the foregoing, it is hereby found and determined that good cause exists for making this order amending the order, as amended, effective November 1, 1956, and that it would be contrary to the public interest to delay the effective date of this amendment for 30 days after its publication in the FEDERAL REGISTER (see section 4 (c) Administrative Procedure Act, 5 U. S. C. 1001 et seq.).

(c) *Determinations.* It is hereby determined that handlers (excluding cooperative associations of producers who are not engaged in processing, distributing or shipping milk covered by this order amending the order, as amended, which is marketed within the Greater Boston, Massachusetts, marketing area) of more than 50 percent of the milk which is marketed within the said marketing area, refused or failed to sign the proposed marketing agreement regulating the handling of milk in the said marketing area, and it is hereby further determined that:

(1) The refusal or failure of such handlers to sign said proposed marketing agreement tends to prevent the effectuation of the declared policy of the act;

(2) The issuance of the order amending the order, as amended, is the only practical means, pursuant to the declared policy of the act, of advancing the interests of producers of milk which is produced for sale in the said marketing area; and

(3) The issuance of this order amending the order, as amended, is approved or favored by at least two-thirds of the producers who, during the determined representative period (April 1955), were engaged in the production of milk for sale in the said marketing area.

Order relative to handling. It is therefore ordered that on and after the effective date hereof, the handling of milk in the Greater Boston, Massachusetts, marketing area shall be in conformity to and in compliance with the terms and conditions of the aforesaid order, as amended, and as hereby further amended, and the aforesaid order is hereby further amended to read as follows:

DEFINITIONS

§ 904.1 *General definitions.* (a) "Act" means Public Act No. 10, 73d Congress, as amended, and reenacted and amended by the Agricultural Marketing Agreement Act of 1937, as amended.

(b) "Greater Boston, Massachusetts, marketing area," also referred to as the "marketing area," means the territory included within the boundary lines of the following Massachusetts cities and towns:

Arlington.	Needham.
Bedford.	Newton.
Belmont.	Peabody.
Beverly.	Quincy.
Boston.	Reading.
Braintree.	Revere.
Brookline.	Salem.
Cambridge.	Saugus.
Chelsea.	Somerville.
Dedham.	Stoneham.
Everett.	Swampscott.
Framingham.	Wakefield.
Lexington.	Waltham.
Lynn.	Watertown.
Malden.	Wayland.
Marblehead.	Wellesley.
Medford.	Weston.
Melrose.	Weymouth.
Milton.	Winchester.
Nahant.	Winthrop.
Natick.	Woburn.

(c) "Month" means a calendar month.

(d) "Marketing year" means the twelve months' period from August 1 of each year through July 31 of the following year.

(e) "Emergency period" means the period of time for which the market administrator declares that an emergency exists in that the milk supply available to the marketing area from producers is insufficient to meet the demand for Class I milk in the marketing area.

§ 904.2 *Definitions of persons.* (a) "Person" means any individual, partnership, corporation, association, or any other business unit.

(b) "Secretary" means the Secretary of Agriculture of the United States or any officer or employee of the United States who is, or who may hereafter be, authorized to exercise the powers and perform the duties of the Secretary of Agriculture.

(c) "Dairy farmer" means any person who delivers bulk milk of his own production to a plant.

(d) "Dairy farmer for other markets" means any dairy farmer whose milk is received by a handler at a pool plant during April, May, or June from a farm from which the handler, an affiliate of the handler, or any person who controls or is controlled by the handler, received nonpool milk during any of the preceding months of July through March, except that the term shall not include any person who was a producer-handler during any of the preceding months of July through March.

(e) "Producer" means any dairy farmer whose milk is delivered from his farm to a pool plant, except a dairy farmer for other markets and a dairy farmer with respect to exempt milk delivered. The term shall also include a dairy farmer with respect to his operation of a farm from which milk is ordinarily delivered to a handler's pool plant, but whose milk is diverted to another plant, if the handler, in filing his monthly report pursuant to § 904.30, reports the milk as receipts from a producer at such pool plant and as moved to the other plant. The term shall not apply to a dairy farmer who is a producer under the Springfield, Merrimack Valley, or Worcester orders, with respect to milk diverted from the plant subject to the other order to which the dairy farmer ordinarily delivers.

(f) "Association of producers" means any cooperative marketing association which the Secretary determines to be qualified pursuant to the provisions of the act of Congress of February 18, 1922, known as the "Capper-Volstead Act," and to be engaged in making collective sales or marketing of milk or its products for the producers thereof.

(g) "Handler" means any person who, in a given month, operates a pool plant, or any other plant from which fluid milk products are disposed of, directly or indirectly, in the marketing area.

(h) "Pool handler" means any handler who operates a pool plant.

(i) "Producer-handler" means any person who is both a handler and a dairy farmer and who receives milk of his own production only from farms located within 80 miles of the State House in Boston, and who receives no milk, other than exempt milk, from other dairy farmers except producer-handlers.

(j) "Buyer-handler" means any handler who operates a bottling or processing plant from which more than 10 percent of his total receipts of fluid milk products, other than cream, are disposed of by him as Class I milk in the marketing area, and whose entire supply of fluid milk products is received from other handlers.

(k) "Dealer" means any person who operates a plant at which he engages in the business of distributing fluid milk products, or manufacturing milk products, whether or not he disposes of any fluid milk products in the marketing area.

(l) "Consumer" means any person to whom fluid milk products are disposed of, except a dealer. The term "consumer" includes, but is not limited to, stores, restaurants, hotels, bakeries, hospitals and other institutions, candy manufacturers, soup manufacturers, livestock farmers, and similar persons who are not necessarily the ultimate users. The term also includes any dealer in his capacity as the operator of any of these establishments, and in connection with any other use or disposition of fluid milk products not directly related to his operations as a dealer.

§ 904.3 *Definitions of plants.* (a) "Plant" means the land, buildings, surroundings, facilities and equipment, whether owned or operated by one or more persons, constituting a single operating unit or establishment for the receiving, handling, or processing of milk or milk products.

(b) "City plant" means any plant which is located not more than 40 miles from the State House in Boston.

(c) "Country plant" means any plant which is located more than 40 miles from the State House in Boston.

(d) "Receiving plant" means any plant which is currently used for receiving, weighing or measuring, sampling, and cooling milk received there directly from dairy farmers' farms in cans, and for washing and sterilizing such cans; or which is currently used for receiving milk directly from dairy farmers' farms by tank truck; and at which are currently maintained weight sheets or other records of the individual farmers' deliveries.

(e) "Pool plant" means any receiving plant which, in a given month, meets the conditions and requirements set forth in § 904.20 for being considered a pool plant in that month.

(f) "Regulated plant" means any pool plant; any pool handler's plant which is located in the marketing area and from which Class I milk is disposed of in the marketing area; any plant operated by a handler in his capacity as a buyer-handler or producer-handler.

(g) "Distributing plant" means any plant from which Class I milk in the form of milk is disposed of to consumers in the marketing area without intermediate movement to another plant.

(h) "New York order pool plant" means any plant designated as a pool plant in accordance with the provisions of Order No. 27, issued by the Secretary, regulating the handling of milk in the New York metropolitan marketing area.

§ 904.4 *Definitions of milk and milk products.* (a) "Milk" means the commodity received from a dairy farmer at a plant as cow's milk. The term also includes milk so received which later has its butterfat content adjusted to at least one-half of one percent but less than 10 percent; frozen milk; reconstituted milk; and 50 percent of the quantity, by weight, of "half and half."

(b) "Cream" means that portion of milk, containing not less than 16 percent of butterfat, which rises to the surface of milk on standing, or is separated from it by centrifugal force. The term also includes sour cream; frozen cream; milk and cream mixtures containing 16 percent or more of butterfat; and 50 percent of the quantity, by weight, of "half and half."

(c) "Half and half" means any fluid milk product, except concentrated milk, the butterfat content of which has been adjusted to at least 10 percent but less than 16 percent.

(d) "Skim milk" means that fluid product of milk which remains after the removal of cream, and which contains less than one-half of one percent of butterfat.

(e) "Fluid milk products" means milk, flavored milk, cream, skim milk, flavored skim milk, cultured skim milk, buttermilk, and concentrated milk, either individually or collectively.

(f) "Pool milk" means milk, including milk products derived therefrom, which a handler has received as milk from producers.

(g) "Outside milk" means:

(1) All milk received from dairy farmers for other markets;

(2) All fluid milk products, other than cream, received at a regulated plant from an unregulated plant, up to the total quantity of nonpool milk received at the unregulated plant; except exempt milk, emergency milk, and receipts from New York order pool plants which are assigned to Class I milk pursuant to § 904.27;

(3) All Class I milk, after subtracting receipts of Class I milk from regulated plants, which is disposed of to consumers in the marketing area from an unregulated plant, except a regulated plant under the Merrimack Valley or Worcester orders, without its intermediate movement to another plant.

(h) "Concentrated milk" means the concentrated, unsterilized milk product, resembling plain condensed milk, which is disposed of to consumers for human consumption in fluid form.

(i) "Exempt milk" means milk which is received at a regulated plant:

(1) In bulk from an unregulated plant, or from the dairy farmer who produced it, for processing and bottling, and for which an equivalent quantity of packaged milk is returned to the dairy farmer or to the operator of the unregulated plant during the same month; or

(2) In packaged form from an unregulated plant in return for an equivalent quantity of bulk milk moved from a regulated plant for processing and bottling during the same month.

(j) "Emergency milk" means fluid milk products, other than cream, received at a regulated plant during an emergency period from a plant which was an unregulated plant in the month immediately preceding the month in which the emergency period became effective.

MARKET ADMINISTRATOR

§ 904.10 *Designation of market administrator.* The agency for the administration of this order shall be a market administrator who shall be a person selected by the Secretary. Such person shall be entitled to such compensation as may be determined by, and shall be subject to removal at the discretion of, the Secretary.

§ 904.11 *Powers of market administrator.* The market administrator shall have the following powers with respect to this order:

(a) To administer its terms and provisions;

(b) To make rules and regulations to effectuate its terms and provisions;

(c) To receive, investigate, and report to the Secretary complaints of violations of its terms and provisions; and

(d) To recommend to the Secretary amendments to it.

§ 904.12 *Duties of market administrator.* The market administrator, in addition to the duties described in other sections of this order, shall:

(a) Within 45 days following the date upon which he enters upon his duties, execute and deliver to the Secretary a bond conditioned upon the faithful performance of his duties, in an amount and with sureties thereon satisfactory to the Secretary;

(b) Employ and fix the compensation of such persons as may be necessary to enable him to exercise his powers and perform his duties;

(c) Pay, out of the funds provided by § 904.72, the cost of his bond, his own compensation, and all other expenses necessarily incurred in the maintenance and functioning of his office;

(d) Keep such books and records as will clearly reflect the transactions provided for in this order and surrender the same to his successor, or to such other person as the Secretary may designate;

(e) Prepare and disseminate for the benefit of producers, consumers, and handlers, statistics and information concerning the operation of this order;

(f) Promptly verify the information contained in the reports submitted by handlers; and

(g) Give each of the producers delivering to a plant, as reported by the handler, prompt written notice of his actual or potential loss of producer status for the first month of the marketing year in which the plant's status has changed or is changing to that of a nonpool plant.

CLASSIFICATION

§ 904.15 *Classes of utilization.* All milk and milk products received by a handler shall be classified as Class I milk or Class II milk. Subject to §§ 904.16, 904.17, and 904.18, the classes of utilization shall be as follows:

(a) Class I milk shall be:

(1) All fluid milk products sold, distributed, or disposed of as or in milk;

(2) All fluid milk products sold, distributed, or disposed of for human consumption as or in flavored milk, skim milk, flavored or cultured skim milk, or buttermilk;

(3) Ninety-eight percent, by weight, of the fluid milk products used to produce concentrated milk; and

(4) All fluid milk products the utilization of which is not established as Class II milk.

(b) Class II milk shall be all fluid milk products the utilization of which is established:

(1) As being sold, distributed, or disposed of other than as specified in subparagraphs (1), (2), and (3) of paragraph (a) of this section; and

(2) As plant shrinkage, not in excess of 2 percent of the volume handled.

§ 904.16 *Classification of milk and milk products utilized at regulated plants of pool handlers and buyer-handlers.* Subject to §§ 904.17 and 904.29 (a), milk and milk products received at a regulated plant of any pool handler or buyer-handler shall be classified in accordance with their utilization at such plant.

§ 904.17 *Classification of fluid milk products, other than cream, moved to other plants.* Any fluid milk product, except cream, which is moved from a regulated plant of a pool handler or a buyer-handler to any other plant shall be classified as follows:

(a) If moved to a producer-handler's plant or an unregulated plant, it shall be classified as Class I milk up to the total quantity of the same form of fluid milk products so moved which is utilized as Class I milk at that plant.

(b) If moved to a producer-handler's plant or to an unregulated plant and thence to another plant, it shall be classified by applying § 904.16 or paragraph (a) of this section, whichever is applicable, except that if the other plant to which such movement is made is located outside of the New England States and New York State, it shall be classified as Class I milk.

§ 904.18 *Responsibility of handlers in establishing the classification of milk.* In establishing the classification of any milk received by a handler from producers, the burden rests upon the handler who receives the milk from producers to account for the milk and to prove that such milk should not be classified as Class I milk.

DETERMINATION OF POOL PLANT STATUS

§ 904.20 *Basic requirements for pool plant status.* Subject to the provisions of § 904.21 each receiving plant shall be a pool plant in the first month in which the handler operates it in conformity with the basic requirements specified in this section, and shall thereafter be a pool plant for the remaining months of the marketing year in which it is operated by the same handler. The basic requirements for acquiring pool plant status shall be as follows:

(a) A majority of the dairy farmers delivering milk to the plant hold certificates of registration issued pursuant to Chapter 94, sections 16C and 16G, of the Massachusetts General Laws.

(b) The handler operating the plant holds a license which has been issued by the milk inspector of a city or town in the marketing area, pursuant to Chapter 94, section 40, of the Massachusetts General Laws, or a majority of the dairy farmers delivering milk to the plant are approved by such an inspector as sources of supply for milk for sale in his municipality.

(c) Class I milk in the form of milk is disposed of in the marketing area from the plant.

(d) The handler's total Class I milk in the marketing area exceeds 10 percent of his total receipts of fluid milk products other than cream.

§ 904.21 *Conditions resulting in nonpool plant status.* Each receiving plant shall be a nonpool plant under any of the following conditions:

(a) Each plant which has acquired pool plant status but from which no Class I milk in the form of milk is disposed of in the marketing area for two successive months in the marketing year shall be a nonpool plant in the second of the two months and for each consecutive succeeding month of the marketing year during which no such Class I disposition is made.

(b) Each nondistributing plant for which the market administrator has received on or before the 16th day of the preceding month the handler's written request for nonpool plant designation shall be a nonpool plant in each month of the marketing year to which the request applies.

(c) Each city distributing plant operated by a handler who operates no other plant which is a pool plant in the same

month shall be a nonpool plant in any month in which the handler's total Class I milk in the marketing area does not exceed 10 percent of his total receipts of fluid milk products other than cream.

(d) Each plant which is operated as the plant of a producer-handler shall be a nonpool plant in any month in which it is so operated.

(e) Each plant which is operated as a New York order pool plant or as a plant from which emergency milk is received shall be a nonpool plant during the month or portion of a month of such operation.

(f) Each of a handler's plants which is a nonpool receiving plant during any of the months of July through March, shall be a nonpool plant in any of the immediately succeeding months of April through June in which it is operated by the same handler, an affiliate of the handler, or any person who controls or is controlled by the handler, unless its operation during July through March was in the handler's capacity as a producer-handler. However, any plant which became subject to this order as a result of the extension of the marketing area to include the towns of Framingham, Natick, Wayland and Weston shall not be a nonpool plant during the months of April through June 1956 solely because it was a nonpool plant prior to the effective date of such extension of the area.

§ 904.22 *Disposition of Class I milk in the form of milk in the marketing area.* For the purpose of determining whether a plant has met the conditions and requirements for being considered a pool plant, each plant from which milk is moved at some time during the month to another plant from which Class I milk in the form of milk is disposed of in the marketing area shall itself be considered to have made such a disposition, except that no movement of milk to any unregulated nondistributing plant shall be considered a disposition of Class I milk in the form of milk in the marketing area.

§ 904.23 *Total receipts of fluid milk products other than cream.* For the purpose of determining whether a plant has met the conditions and requirements for being considered a pool plant, each handler's total receipts of fluid milk products other than cream, referred to in this section as "total receipts," shall be determined as follows:

(a) For each month of the marketing year until and including the first month in which the handler is a pool handler, his total receipts shall be the receipts at all plants from which Class I milk in the form of milk is disposed of in the marketing area, except his receipts at any plant which fails to meet the applicable standards set forth in § 904.20 (a) and (b), or which is a nonpool plant pursuant to § 904.21 (b).

(b) For each of the other months of the marketing year, the handler's total receipts shall be the total receipts determined pursuant to paragraph (a) of this section plus the receipts at any other of his plants which is a pool plant in such month.

ASSIGNMENT OF RECEIPTS TO CLASSES

§ 904.25 *General assignment provisions.* Except as provided in §§ 904.26 through 904.29, all receipts of fluid milk products, other than receipts from producers, shall be assigned to Class I milk or Class II milk as follows:

(a) Receipts as to which Class II use is established shall be assigned to Class II milk.

(b) All other receipts shall be assigned to Class I milk.

§ 904.26 *Assignment of receipts of exempt milk.* All receipts of exempt milk shall be assigned to Class I milk.

§ 904.27 *Assignment of receipts from New York order pool plants.* Receipts from New York order pool plants shall be assigned to Class II milk, except as provided in § 904.28, and except that receipts during the months of August through March which are classified and priced in Class I–A or I–B under the New York order shall be assigned to Class I milk.

§ 904.28 *Assignment of receipts of emergency milk.* Emergency milk received by a handler whose total use of Class II milk is in excess of 10 percent of the total volume of fluid milk products, other than cream, handled by him shall be assigned to Class II milk to the extent of such excess. For the purpose of this section, the handler's total Class II milk and total volume handled shall be the total of the respective quantities from the first day on which emergency milk is received by the handler during the month up to and including the last such day in the month. If the quantity of emergency milk as to which specific Class II use is established is greater than the quantity otherwise assigned to Class II milk pursuant to this section, such greater quantity shall be assigned to Class II milk. Receipts of emergency milk not assigned to Class II milk shall be assigned to Class I milk.

§ 904.29 *Assignment of other types of receipts.* (a) Subject to the provisions of §§ 904.47 and 904.65, all receipts of outside milk shall be considered as receipts of Class II milk, and shall be assigned to that class without regard to the specific use of such receipts.

(b) All receipts of cream, and milk products other than fluid milk products, shall be assigned to Class II milk.

(c) All receipts of skim milk in bulk from producer-handlers shall be assigned to Class II milk.

REPORTS OF HANDLERS

§ 904.30 *Pool handlers' reports of receipts and utilization.* On or before the 8th day after the end of each month each pool handler shall, with respect to the fluid milk products received by the handler during the month, report to the market administrator in the detail and form prescribed by the market administrator, as follows:

(a) The receipts of milk at each pool plant from producers, including the quantity, if any, received from his own production;

(b) The receipts of fluid milk products at each plant from any other handler, assigned to classes pursuant to §§ 904.25 through 904.29;

(c) The receipts of outside milk and exempt milk at each plant; and

(d) The respective quantities which were sold, distributed, or used, including sales to other handlers and dealers, classified pursuant to §§ 904.15 through 904.18.

§ 904.31 *Reports of nonpool handlers.* Each nonpool handler shall file with the market administrator reports relating to his receipts and utilization of fluid milk products. The reports shall be made at the time and in the manner prescribed by the market administrator, except that any handler who receives outside milk during any month shall file the report on or before the 8th day after the end of the month.

§ 904.32 *Reports regarding individual producers.* (a) Within 20 days after a producer moves from one farm to another, starts or resumes deliveries to any of a handler's pool plants, or starts delivering his milk to the handler's plant by tank truck, the handler shall file with the market administrator a report stating the producer's name and post office address, the date on which the change took place, and the farm and plant locations involved. The report shall also state, if known, the plant to which the producer had been delivering prior to starting or resuming deliveries.

(b) Within 15 days after the 5th consecutive day on which a producer has failed to deliver to any of a handler's pool plants, the handler shall file with the market administrator a report stating the producer's name and post office address, the date on which the last delivery was made, and the farm and plant locations involved. The report shall also state, if known, the reason for the producer's failure to continue deliveries.

(c) Each handler who is not an association of producers shall, upon request from any such association, promptly furnish it with information with respect to each of its producer members who starts, resumes, or stops deliveries to any of the handler's pool plants. Such information shall include the date on which the change took place, the producer member's post office address and farm location, and, if known, the plant to which he previously delivered, or the reason for his failure to continue deliveries. In lieu of his providing the information directly to the association, the handler may authorize the market administrator to furnish the association with such information, derived from the handler's reports and records.

§ 904.33 *Reports of payments to producers.* Each pool handler shall submit to the market administrator, within 10 days after his request made not earlier than 20 days after the end of the month, his producer payroll for such month, which shall show for each producer:

(a) The daily and total pounds of milk delivered with the average butterfat test thereof; and

(b) The net amount of such handler's payments to such producer with the prices, deductions, and charges involved.

§ 904.34 *Maintenance of records.* Each handler shall maintain detailed and summary records showing all receipts, movements, and disposition of milk and milk products during the month, and the quantities of milk and milk products on hand at the end of the month.

§ 904.35 *Verification of reports.* For the purpose of ascertaining the correctness of any report made to the market administrator as required by this order or for the purpose of obtaining the information required in any such report where it has been requested and has not been furnished, each handler shall permit the market administrator or his agent, during the usual hours of business, to:

(a) Verify the information contained in reports submitted in accordance with this order;

(b) Weigh, sample, and test milk and milk products; and

(c) Make such examination of records, operations, equipment, and facilities as the market administrator deems necessary for the purpose specified in this section.

§ 904.36 *Retention of records.* All books and records required under this order to be made available to the market administrator shall be retained by the handler for a period of three years to begin at the end of the calendar month to which such books and records pertain: *Provided*, That if, within such three-year period, the market administrator notifies the handler in writing that the retention of such books and records, or of specified books and records, is necessary in connection with a proceeding under section 8c (15) (A) of the act or a court action specified in such notice, the handler shall retain such books and records, or specified books and records, until further written notification from the market administrator. The market administrator shall give further written notification to the handler promptly upon the termination of the litigation or when the records are no longer necessary in connection therewith.

§ 904.37 *Notices to producers.* Each pool handler shall furnish each producer from whom he receives milk with information regarding the daily weight and composite butterfat test of the producer's milk, as follows:

(a) Within 3 days after each day on which he receives milk from the producer, the handler shall give the producer written notice of the daily quantity so received.

(b) Within 7 days after the end of any sampling period for which the composite butterfat test of the producer's milk was determined, the handler shall give the producer written notice of such composite test.

§ 904.38 *Outside cream purchases.* Each handler shall report, as requested by the market administrator, his purchases, if any, of bottling quality cream from nonpool handlers, showing the quantity and the source of each such purchase and the cost thereof at Boston.

MINIMUM CLASS PRICES

§ 904.40 *Class I price.* The Class I price per hundredweight at plants located in zone 21 shall be the New England basic Class I price per hundredweight determined for each month pursuant to § 904.48.

§ 904.41 *Class II price.* The Class II price per hundredweight at plants located in zone 21 shall be determined for each month pursuant to this section.

(a) Subject to § 904.43 (c), subtract 52.5 cents from the weighted average price per 40-quart can of 40 percent bottling quality cream f. o. b. Boston, as reported by the United States Department of Agriculture for the month, divide the remainder by 33, multiply by 0.98, and multiply the result by 3.7.

(b) Multiply by 7.85 the simple average of the prices per pound of roller process and spray process nonfat dry milk solids for human consumption, in carlots, f. o. b. Chicago area manufacturing plants, as reported by the United States Department of Agriculture for the period from the 26th day of the preceding month through the 25th day of the month during which such milk is delivered.

(c) Add the results obtained in paragraphs (a) and (b) of this section, and from the sum subtract the amount shown below for the applicable month. Subject to paragraph (d) of this section, the result is the Class II price per hundredweight for milk received from producers at plants located in zone 21.

Month:	*Amount (cents)*
January and February	67
March and April	79
May and June	85
July	79
August and September	73
October, November, and December	67

(d) For each month in which no cream price, as described in paragraph (a) of this section, is reported, and for each month in which the amount determined pursuant to this paragraph is greater than the amount computed pursuant to paragraph (c) of this section, the amount determined pursuant to this paragraph shall be the Class II price per hundredweight of milk received from producers at plants located in zone 21.

(1) Divide the average price for milk for manufacturing purposes, f. o. b. plants United States as reported on a preliminary basis by the United States Department of Agriculture for the month, by the average butterfat test of such milk and multiply by 3.7.

(2) Adjust the result obtained in subparagraph (1) of this paragraph by the amount shown below for the applicable month:

Month:	*Amount (cents)*
January	+8
February	+7
March	−10
April	−14
May	−17
June	−16
July	+3
August	+12
September	+9
October	+11
November	+12
December	+12

§ 904.42 *Zone price differentials.* The minimum prices determined pursuant to §§ 904.40 and 904.41 shall be subject to differentials based upon the zone location of the plant at which the milk was received from producers. For each country plant, the zone shall be determined in accordance with the railway mileage distance to Boston, Massachusetts, from the railroad shipping point for such plant. Each city plant, regardless of such railway mileage distance, shall be considered to be in the "City Plant" zone. The applicable zone differentials shall be those set forth in the following table, as adjusted pursuant to § 904.43.

DIFFERENTIALS FOR DETERMINATION OF ZONE PRICES

A		B	C
Zone	Distance to Boston (miles)	Class I price differentials (cents per hundredweight)	Class II price differentials (cents per hundredweight)
City Plant	0 to 40	+52.0	+38.1
5	41 to 50	+14.5	+4.2
6	51 to 60	+13.5	+4.0
7	61 to 70	+13.0	+3.7
8	71 to 80	+11.5	+3.5
9	81 to 90	+11.0	+3.2
10	91 to 100	+10.5	+3.0
11	101 to 110	+10.5	+2.9
12	111 to 120	+9.0	+2.6
13	121 to 130	+9.0	+2.4
14	131 to 140	+8.0	+2.1
15	141 to 150	+5.5	+1.6
16	151 to 160	+4.0	+1.3
17	161 to 170	+4.0	+1.2
18	171 to 180	+1.5	+0.6
19	181 to 190	+1.5	+0.4
20	191 to 200	0	+0.1
21	201 to 210	None	None
22	211 to 220	−4.0	−0.6
23	221 to 230	−4.5	−0.7
24	231 to 240	−5.5	−0.9
25	241 to 250	−5.5	−0.9
26	251 to 260	−6.5	−1.2
27	261 to 270	−7.0	−1.3
28	271 to 280	−7.5	−1.5
29	281 to 290	−8.5	−1.6
30	291 to 300	−9.5	−1.8
31	301 to 310	−13.0	−2.3
32	311 to 320	−13.0	−2.4
33	321 to 330	−14.0	−2.5
34	331 to 340	−14.0	−2.8
35	341 to 350	−15.0	−2.8
36	351 to 360	−15.0	−2.9
37	361 to 370	−15.0	−3.1
38	371 to 380	−15.5	−3.3
39	381 to 390	−15.5	−3.4
40	391 to 400	−15.5	−3.5
41	401 to 410	−17.0	−3.5
42	411 to 420	−17.0	−3.5
43	421 to 430	−17.0	−3.5
44	431 to 440	−18.5	−3.5
45	441 and over	−18.5	−3.5

§ 904.43 *Automatic changes in zone price differentials and other price factors.* In case the rail tariff for the transportation of milk in carlots in tank cars or for the transportation of cream in 40-quart cans in carlots of 100–199 cans, as published in New England Joint Tariff-M No. 7 and supplements thereto or revisions thereof, is increased or decreased, the zone price differentials set forth in the table in § 904.42 and other price factors set forth in § 904.41 and in § 904.63 shall be correspondingly increased or decreased in the manner and to the extent provided in this section. Such adjustments shall be effective beginning with the first complete month in which the changes in rail tariffs apply. For the purpose of this section, it shall be considered that the rail tariff applicable to city plants is zero.

(a) If such rail tariff on milk is changed, the differentials set forth in

Column B of the table and the city plant differential in Column C shall be adjusted to the extent of any change in the difference between the rail tariff for mileage distances of 201–210 miles and for the other applicable distances. Such adjustments shall be made to the nearest one-half cent per hundredweight in Column B, and to the nearest one-tenth cent per hundredweight in Column C.

(b) If such rail tariff on cream is changed, the country plant zone differentials set forth in Column C of the table shall be adjusted to the extent of any change in the difference between the rail tariff for mileage distances of 201–210 miles and for the other applicable distances, divided by 9.05. Such adjustments shall be made to the nearest one-tenth cent per hundredweight.

(c) If such rail tariff on cream is changed, the rail tariff rate on cream for mileage distances of 201–210 miles times 1.03 and adjusted to the nearest one-half cent shall be used in place of 52.5 cents specified in § 904.41 and § 904.63.

§ 904.44 *Butter and cheese adjustment.* During the months of April, May, June, and July, the value of a pool handler's milk computed pursuant to § 904.50 shall be reduced by an amount determined as follows:

(a) Using the midpoint of any range as one price, compute the average of the daily prices for Grade A (92-score) butter at wholesale in the New York market which are reported during the month by the United States Department of Agriculture, and add 20 percent.

(b) Divide by 3.7 the amount determined pursuant to § 904.41 (a), and subtract from the quotient the amount determined pursuant to paragraph (a) of this section. The result is the butter and cheese differential. If the Class II price is determined pursuant to § 904.41 (d), subtract the amount determined pursuant to paragraph (a) of this section from the simple average of the daily prices, using the midpoint of any range as one price, for Grade A (92-score) butter at wholesale in the Chicago market, as reported for the month by the United States Department of Agriculture, multiplied by 1.22.

(c) Determine the pounds of butterfat in Class II milk received from producers, which was processed into salted butter, Cheddar cheese, American Cheddar cheese, Colby cheese, washed curd cheese, or part skim Cheddar cheese at a plant of the first handler of such butterfat or at a plant of a second person to which such butterfat was moved.

(d) Subtract such portion of the quantity determined in paragraph (c) of this section as was made into salted butter and disposed of by the handler or such second person in a form other than salted butter.

(e) Multiply the remaining pounds of butterfat determined pursuant to paragraph (d) of this section by the butter and cheese differential determined pursuant to paragraph (b) of this section.

§ 904.45 *Use of equivalent factors in formulas.* If for any reason a price, index, or wage rate specified by this order for use in computing class prices and for other purposes is not reported or published in the manner described in this order, the market administrator shall use a price, index, or wage rate determined by the Secretary to be equivalent to or comparable with the factor which is specified.

§ 904.46 *Announcement of class prices and differentials.* The market administrator shall make public announcements of class prices and differentials as follows:

(a) He shall announce the Class I price for each month on the 25th day of the preceding month, except that if such 25th day is a Sunday or legal holiday he shall announce the Class I price on the next succeeding work day.

(b) He shall announce the Class II price and the butter and cheese differential on or before the 5th day after the end of each month.

§ 904.47 *Allocation of Class I milk to plants.* For the purpose of determining the respective quantities of Class I milk subject to the applicable zone prices, each pool handler's Class I milk during the month, after excluding receipts assigned to Class I pursuant to §§ 904.25 through 904.28, shall be allocated to plants as follows:

(a) His Class I milk first shall be allocated to receipts at his city plants of milk from producers' farms; and then to the receipts of outside milk at his city plants from unregulated plants located in Connecticut, Massachusetts, or Rhode Island.

(b) Next, his Class I milk shall be allocated to receipts of milk from producers at each of the handler's country plants from which Class I milk was disposed of for consumption in the States of Maine, New Hampshire, or Vermont. The quantity allocated pursuant to this paragraph shall consist of the quantity of Class I milk disposed of from each such plant as follows:

(1) Sales to Maine, New Hampshire, or Vermont consumers, without intermediate movement to another plant; and

(2) Movements to unregulated plants which in turn disposed of Class I milk for distribution only in the States of Maine, New Hampshire, or Vermont.

(c) The handler's remaining Class I milk shall be allocated to plants in the order of the nearness of the plants to Boston by railway mileage distance. Subject to paragraph (b) of this section, the quantity allocated to any of his pool plants shall be equal to its shipments of fluid milk products, other than cream, to the limit of its receipts from producers' farms. The quantity allocated to any unregulated plant shall be equal to its shipments of outside milk to the handler's regulated plants. However, shipments to plants located in the States of Maine, New Hampshire, Vermont, or New York, with respect to which utilization as Class II is established shall not be allocated to Class I milk.

(d) For the purpose of this section, a handler's receipts of outside milk from dairy farmers for other markets shall be considered as shipped from the unregulated plant to which such farmers ordinarily delivered.

NEW ENGLAND BASIC PRICE FORMULA

§ 904.48 *Computation of New England basic Class I price.* The New England basic Class I price per hundredweight of milk containing 3.7 percent butterfat shall be determined for each month pursuant to this section. The latest reported figures available to the market administrator on the 25th day of the preceding month shall be used in making the following computations, except that if the 25th day of the preceding month falls on a Sunday or legal holiday the latest figures available on the next succeeding work day shall be used.

(a) Compute the economic index as follows:

(1) Divide by 1.143 the monthly wholesale price index for all commodities as reported by the Bureau of Labor Statistics, United States Department of Labor, with the years 1947–49 as the base period.

(2) Using the data on national and regional per capita income payments as published by the United States Department of Commerce, establish a "New England adjustment percentage" by computing the current percentage relationship of New England per capita income to the national per capita income. Multiply by the New England adjustment percentage the quarterly figure showing the current annual rate of per capita disposable personal income in the United States as released by the United States Department of Commerce or the Council of Economic Advisers to the President. Divide the result by 15.27 to determine an index of per capita disposable income in New England.

(3) Multiply by 20 the average price per 100 pounds paid by farmers in the New England region for all mixed dairy feed of less than 29 percent protein content as reported by the United States Department of Agriculture for the month and divide the result by .884 to determine the dairy ration index. Compute the average, weighted by the indicated factors, of the following farm wage rates reported for the New England region by the United States Department of Agriculture: Rate per month with board and room, 1; rate per month with house, 1; rate per week with board and room, 4.33; rate per week without board and room, 4.33; and the rate per day without board or room, 26. Divide the average wage rate so computed by 1.458 to determine the wage rate index. Multiply the dairy ration index by 0.6 and the wage rate index by 0.4 and combine the two results to determine the grain-labor cost index.

(4) Divide by 3 the sum of the wholesale price index, the index of per capita disposable income in New England, and the grain-labor cost index determined pursuant to this paragraph. The result shall be known as the economic index.

(b) Compute a supply-demand adjustment factor as follows:

(1) Combine into separate monthly totals the receipts from producers for Greater Boston, Merrimack Valley, Springfield, and Worcester and the Class I milk from producers for the same markets as announced by the respective market administrators in the statistical reports for such markets for the second

and third months preceding the month for which the price is being computed.

(2) Divide the four-market total of Class I producer milk by the four-market total of receipts from producers for each of the two months for which computations were made pursuant to subparagraph (1) of this paragraph.

(3) Divide each of the percentages determined in subparagraph (2) of this paragraph into the following normal Class I percentage for the respective month, multiply each result by 100, and compute a simple average of the resulting percentages. The result shall be known as the percentage of normal supply.

Month:	*Normal Class I percentage*
January	76.9
February	73.9
March	65.3
April	57.7
May	51.6
June	50.7
July	61.6
August	70.1
September	70.7
October	73.4
November	82.0
December	77.8

(4) The supply-demand adjustment factor shall be the figure in the following table opposite the bracket under the normal supply column within which the percentage computed pursuant to subparagraph (3) of this paragraph falls. If the percentage falls in an interval between brackets, the applicable bracket shall be that above the interval in which the percentage falls if the adjustment for the previous month was determined by a bracket above such interval, and shall be determined by the bracket below such interval if the adjustment for the previous month was determined by a bracket below such interval.

Percentage of normal supply:	*Supply-demand adjustment factor*
91.5 and under	1.12
92 to 92.5	1.10
93 to 93.5	1.08
94 to 94.5	1.06
95 to 96	1.04
97 to 98	1.02
99 to 101	1.00
102 to 103	0.98
104 to 105	.96
106 to 107	.94
108 to 109	.92
110 to 111	.90
112 and over	.88

(c) The seasonal adjustment factor shall be the factor listed below for the month for which the price is being computed.

Month:	*Seasonal adjustment factor*
January and February	1.04
March	1.00
April	.92
May and June	.88
July	.96
August	1.00
September	1.04
October, November, and December	1.08

(d) Compute a New England basic Class I price index by multiplying the economic index determined pursuant to paragraph (a) of this section by the supply-demand adjustment factor determined pursuant to paragraph (b) of this section and multiplying the result by the applicable seasonal adjustment factor pursuant to paragraph (c) of this section.

(e) The New England basic Class I price shall be as shown in the following table:

New England basic Class I price index times $0.0561: *At least*	*But less than*	*Class I price*
$4.88	$5.10	$4.99
$5.10	$5.32	5.21
$5.32	$5.54	5.43
$5.54	$5.76	5.65
$5.76	$5.98	5.87
$5.98	$6.20	6.09
$6.20	$6.42	6.31

If the New England basic Class I price index times $0.0561 is less than $4.88 or more than $6.42, the New England basic Class I price shall be determined by extending the table at the indicated rate of extension.

(f) Notwithstanding the provisions of the preceding paragraphs of this section, the New England basic Class I price for November or December of each year shall not be lower than such price for the immediately preceding month.

BLENDED PRICES TO PRODUCERS

§ 904.50 *Computation of value of milk received from producers.* For each month, the market administrator shall compute in the following manner the value of milk received from producers which is sold, distributed, or used by each pool handler:

(a) Multiply the quantity of milk in each class by the price applicable pursuant to §§ 904.40, 904.41, and 904.42;

(b) Add together the resulting value of each class; and

(c) Adjust the value determined in paragraph (b) of this section as provided in § 904.44.

§ 904.51 *Computation of the basic blended price.* The market administrator shall compute the basic blended price per hundredweight of milk delivered during each month in the following manner:

(a) Combine into one total the respective values of milk computed pursuant to § 904.50 and the payments required pursuant to § 904.65 for each handler from whom the market administrator has received at his office, prior to the 11th day after the end of such month, the report for such month and the payments required pursuant to §§ 904.61 (b) and 904.65 for the preceding month;

(b) Add the amount of unreserved cash on hand at the close of business on the 10th day after the end of the month from payments made to the market administrator by handlers pursuant to §§ 904.61, 904.62, 904.65, and 904.67;

(c) Deduct the amount of the plus differentials, and add the amount of the minus differentials, which are applicable pursuant to § 904.64;

(d) Divide by the total quantity of pool milk for which a value is determined pursuant to paragraph (a) of this section; and

(e) Subtract not less than 4 cents nor more than 5 cents for the purpose of retaining a cash balance in connection with the payments set forth in §§ 904.61 and 904.62. This result, which is the minimum blended price for milk containing 3.7 percent butterfat received from producers at plants located in zone 21, shall be known as the basic blended price.

§ 904.52 *Announcement of blended prices.* On the 12th day after the end of each month the market administrator shall mail to all pool handlers and shall publicly announce:

(a) Such of these computations as do not disclose information confidential pursuant to the act;

(b) The zone blended prices per hundredweight resulting from adjustment of the basic blended price by the differentials pursuant to § 904.64; and

(c) The names of the pool handlers, designating those whose milk is not included in the computations because of failure to make reports or payments pursuant to this order.

PAYMENTS FOR MILK

§ 904.60 *Advance payments.* On or before the 10th day after the end of each month, each pool handler shall make payment to producers for the approximate value of milk received during the first 15 days of such month. In no event shall such advance payment be at a rate less than the Class II price for such month. The provisions of this section shall not apply to any handler who, on or before the 17th day after the end of the month, makes final payment as required by § 904.61 (a).

§ 904.61 *Final payments.* Each pool handler shall make payment for the total value of milk received during such month as required to be computed pursuant to § 904.50, as follows:

(a) On or before the 25th day after the end of each month, to each producer at not less than the basic blended price per hundredweight, subject to the differentials provided in §§ 904.63 and 904.64, for the quantity of milk delivered by such producer; and

(b) To producers, through the market administrator, by paying to, on or before the 23rd day after the end of each month, or receiving from the market administrator, on or before the 25th day after the end of each month, as the case may be, the amount by which the payments at the basic blended price adjusted by the plant and farm location differentials provided in § 904.64 are less than or exceed the value of milk as required to be computed for each such handler pursuant to § 904.50, as shown in a statement rendered by the market administrator on or before the 20th day after the end of such month.

§ 904.62 *Adjustments of errors in payments.* (a) Whenever verification by the market administrator of reports or payments of any handler discloses an error in payments made pursuant to §§ 905.61 (b) and 904.65, the market administrator shall promptly issue to the handler a charge bill or a credit, as the case may be, for the amount of the error. Adjustment charge bills issued during the period from the 16th day of the prior month through the 15th day of the current month shall be payable by

the handler to the market administrator on or before the 23rd day of the current month. Adjustment credits issued during such period shall be payable by the market administrator to the handler on or before the 25th day of the current month.

(b) Whenever verification by the market administrator of the payment to any producer for milk delivered to any handler discloses payment to such producer of an amount less than is required by § 904.61 (a), the handler shall make up such payment to the producer not later than the time of making final payment for the month in which such error is disclosed.

§ 904.63 *Butterfat differential.* Each handler shall, in making payments to each producer for milk received from him, add for each one-tenth of 1 percent of average butterfat content above 3.7 percent, or deduct for each one-tenth of 1 percent of average butterfat content below 3.7 percent, an amount per hundredweight which shall be calculated by the market administrator as follows: Subject to § 904.43 (c), subtract 52.5 cents from the weighted average price per 40-quart can of 40 percent bottling quality cream, f. o. b. Boston, as reported by the United States Department of Agriculture for the period between the 16th day of the preceding month and the 15th day inclusive of the month during which such milk is delivered, and divide the remainder by 330. If the cream price described above is not reported as indicated the butterfat differential shall be determined by multiplying by 1.25 the average of the daily prices, using the midpoint of any range as one price, for Grade A (92-score) butter at wholesale in the Chicago market as reported for the period between the 16th day of the preceding month and the 15th day, inclusive, of the current month by the United States Department of Agriculture and dividing the result by 10.

§ 904.64 *Location differentials.* The payments to be made to producers by handlers pursuant to § 904.61 (a) shall be subject to the Class I price differentials applicable pursuant to § 904.42, as adjusted by § 904.43, and to further differentials as follows:

(a) With respect to milk delivered by a producer whose farm is located more than 40 miles but not more than 80 miles from the State House in Boston, there shall be added 23 cents per hundredweight, unless such addition gives a result greater than the Class I price pursuant to §§ 904.40 and 904.42 which is effective at the plant to which such milk is delivered, in which event there shall be added an amount which will give as a result such price.

(b) With respect to milk delivered by a producer whose farm is located not more than 40 miles from the State House in Boston, there shall be added 46 cents per hundredweight, unless such addition gives a result greater than the Class I price pursuant to §§ 904.40 and 904.42 which is effective at the plant to which such milk is delivered, in which event there shall be added an amount which will give as a result such price.

§ 904.65 *Payments on outside milk.* Within 23 days after the end of each month, handlers shall make payments to producers, through the market administrator, as follows:

(a) Each pool handler who receives outside milk which is allocated to Class I milk in accordance with § 904.47 and each buyer-handler or producer-handler whose receipts of outside milk are in excess of his total use of Class II milk after deducting receipts of cream, shall make payment on such allocated quantity or excess quantity as follows:

(1) On outside milk received at a regulated city plant from an unregulated plant located in Connecticut, Massachusetts, or Rhode Island, the payment shall be at the difference between the Class I price applicable to milk received from producers at city plants and the Class II price applicable to milk received from producers at plants located in Zone 21 plus 5.8 cents.

(2) On outside milk received at any regulated plant from an unregulated plant located in Maine, the payment shall be at the difference between the price pursuant to § 904.40 applicable at the zone of the unregulated plant and the lesser of either the simple average for the month of the lowest minimum semi-monthly prices for Class II milk containing 3.7 percent butterfat which are established by the Maine Milk Commission for the market in which such unregulated plant is located or the price determined pursuant to § 904.41 applicable at the zone of such plant.

(3) Except as provided in subparagraphs (1) and (2) of this paragraph, the payment on outside milk received at any regulated plant from an unregulated plant shall be at the difference between the price pursuant to § 904.40 and the price pursuant to § 904.41 applicable at the zone of the unregulated plant.

(4) For the purposes of this paragraph, outside milk received from dairy farmers for other markets shall be considered as received from the unregulated plant to which they ordinarily delivered.

(b) Each handler who operates an unregulated plant from which outside milk is disposed of to consumers in the marketing area without intermediate movement to another plant shall make payment on the quantity so disposed of. The payment shall be at the difference between the price pursuant to § 904.40 and the price pursuant to § 904.41 applicable at the zone of the handler's plant.

§ 904.66 *Deductions from payments to members.* (a) Each association of producers may file with a handler who is not an association of producers, a claim for authorized deductions from the payments otherwise due to its producer members for milk delivered to such handler. Such claim shall contain a list of the producers for which such deductions apply, an agreement to indemnify the handler in the making of the deductions, and a certification that the association has an unterminated membership contract with each producer listed authorizing the claimed deduction.

(b) In making payments to his producers for milk received during the month, each handler shall make deductions in accordance with the association's claim and shall pay the amount deducted to the association with an accompanying statement showing the pounds of milk delivered by each producer from whom the deduction was made, within 25 days after the end of the month.

§ 904.67 *Adjustment of overdue accounts.* Any balance due, pursuant to §§ 904.61, 904.62, and 904.65 to or from the market administrator on the 10th day of any month, for which remittance has not been received in, or paid from, his office by the close of business on that day, shall be increased one-half of 1 percent effective the 11th day of such month.

§ 904.68 *Statements to producers.* In making the payments to producers prescribed by § 904.61 (a), each pool handler shall furnish each producer with a supporting statement, in such form that it may be retained by the producer, which shall show:

(a) The month and the identity of the handler and of the producer;

(b) The total pounds and average butterfat test of milk delivered by the producer;

(c) The minimum rate or rates at which payment to the producer is required under the provisions of § 904.61 (a);

(d) The rate which is used in making the payment, if such rate is other than the applicable minimum rate;

(e) The amount or the rate per hundredweight of each deduction claimed by the handler, including any deductions claimed under § 904.66, together with a description of the respective deductions; and

(f) The net amount of payment to the producer.

ADMINISTRATION EXPENSE

§ 904.72 *Payment of administration expense.* Within 23 days after the end of each month, each handler shall make payment to the market administrator of his pro rata share of the expense of administration of this order. The payment shall be at the rate of 3 cents per hundredweight, or such lesser amount as the Secretary may from time to time prescribe, and shall apply to all of the handler's receipts, during the month, of milk from producers, of outside milk, and of exempt milk processed at a regulated plant.

OBLIGATIONS

§ 904.73 *Termination of obligations.* The provisions of this section shall apply to any obligation under this order for the payment of money irrespective of when such obligation arose.

(a) The obligation of any handler to pay money required to be paid under the terms of this order shall, except as provided in paragraphs (b) and (c) of this section, terminate two years after the last day of the calendar month during which the market administrator receives the handler's utilization report on the milk involved in such obligation, unless within such two-year period the market administrator notifies the handler in

writing that such money is due and payable. Service of such notice shall be complete upon mailing to the handler's last known address, and it shall contain, but need not be limited to, the following information:

(1) The amount of the obligation;

(2) The month(s) during which the milk, with respect to which the obligation exists, was received or handled; and

(3) If the obligation is payable to one or more producers or to an association of producers, the name of such producer(s) or association of producers, or if the obligation is payable to the market administrator, the account for which it is to be paid.

(b) If a handler fails or refuses, with respect to any obligation under this order, to make available to the market administrator or his representatives all books and records required by this order to be made available, the market administrator may, within the two-year period provided for in paragraph (a) of this section, notify the handler in writing of such failure or refusal. If the market administrator so notifies a handler, the said two-year period with respect to such obligation shall not begin to run until the first day of the calendar month following the month during which all such books and records pertaining to such obligation are made available to the market administrator or his representatives.

(c) Notwithstanding the provisions of paragraphs (a) and (b) of this section, a handler's obligation under this order to pay money shall not be terminated with respect to any transaction involving fraud or willful concealment of a fact, material to the obligation, on the part of the handler against whom the obligation is sought to be imposed.

(d) Any obligation on the part of the market administrator to pay a handler any money which such handler claims to be due him under the terms of this order shall terminate two years after the end of the calendar month during which the milk involved in the claim was received if an underpayment is claimed, or two years after the end of the calendar month during which the payment (including deduction or setoff by the market administrator) was made by the handler if a refund on such payment is claimed, unless such handler, within the applicable period of time, files, pursuant to section 8c (15) (A) of the act, a petition claiming such money.

MISCELLANEOUS PROVISIONS

§ 904.80 *Effective time.* The provisions of this subpart or any amendments to its provisions, shall become effective at such time as the Secretary may declare and shall continue in force until suspended or terminated pursuant to § 904.81.

§ 904.81 *Suspension or termination.* The Secretary may suspend or terminate this subpart or any provision thereof whenever he finds that it obstructs or does not tend to effectuate the declared policy of the act. This subpart shall, in any event, terminate whenever the provisions of the act authorizing it cease to be in effect.

§ 904.82 *Continuing obligations.* If, upon the suspension or termination of any or all provisions of this subpart, there are any obligations arising under it, the final accrual or ascertainment of which requires further acts by any person, such further acts shall be performed notwithstanding such suspension or termination.

§ 904.83 *Liquidation after suspension or termination.* Upon the suspension or termination of any or all provisions of this subpart the market administrator, or such person as the Secretary may designate, shall, if so directed by the Secretary, liquidate the business of the market administrator's office and dispose of all funds and property then in his possession or under his control, together with claims for any funds which are unpaid or owing at the time of such suspension or termination. Any funds collected pursuant to the provisions of this subpart, over and above the amount necessary to meet outstanding obligations and the expenses necessarily incurred by the market administrator or such person in liquidating and distributing such funds, shall be distributed to the contributing handlers and producers in an equitable manner.

§ 904.84 *Agents.* The Secretary may, by designation in writing, name any officer or employee of the United States to act as his agent or representative in connection with any of the provisions of this subpart.

Issued at Washington, D. C., this 18th day of October 1956, to be effective on and after November 1, 1956.

[SEAL] EARL L. BUTZ,
Assistant Secretary.

[F. R. Doc. 56-8516; Filed, Oct. 23, 1956; 8:45 a. m.]

PART 964—DRIED FIGS PRODUCED IN CALIFORNIA

SURPLUS TONNAGE

Notice was published in the September 29, 1956, issue of the FEDERAL REGISTER (21 F. R. 7491), that the Secretary of Agriculture was considering a proposed rule to approve a further amendment of the amended administrative rules and procedures (20 F. R. 7186, 10095) issued pursuant to the applicable provisions of Marketing Agreement No. 123 and Order No. 64 (20 F. R. 1685), regulating the handling of dried figs produced in California, effective under the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.). After the publication of said notice, Order No. 64 was amended (21 F. R. 7649), effective October 5, 1956; also the amended administrative rules and procedures were further amended (21 F. R. 7650), effective at the same time.

The proposed further amendment, as set forth in the aforesaid notice, included modifications of an amendment submitted by the Dried Fig Administrative Committee. The amendment adds a new heading "Volume Regulation" and two new sections (§§ 964.157 and 964.158) under that heading. In the notice, opportunity was afforded all interested persons to file written data, views or arguments with respect thereto. No such written data, views or arguments were filed, and the period provided therefor has now expired.

After consideration of all pertinent available information, it is concluded that the proposed amendment of the amended administrative rules and procedures as set forth in the aforesaid notice would tend to effectuate the declared policy of the act and it should be approved.

Therefore, it is hereby ordered, That the aforesaid amended administrative rules and procedures (20 F. R. 7186, 10095; 21 F. R. 7650) be further amended as set forth below.

1. Add, immediately following § 964.151 of the administrative rules and procedures, as amended, a new heading and new §§ 964.157 and 964.158 reading as follows:

VOLUME REGULATION

§ 964.157 *Surplus tonnage of dried figs generally*—(a) *General requirement.* Surplus tonnage acquired by each handler shall be held by him for the account of the committee and subject to the applicable restrictions of the order and this subpart. Total net acquisitions of a handler shall be determined on the basis of secondary certificates issued by the inspection agency pursuant to § 964.50 (d). The surplus obligation of a handler will be determined by applying the surplus percentage to the total net weight of dried figs acquired as evidenced by secondary certificates.

(b) *Holding and delivery.* (1) Each handler shall store separate and apart from other dried figs and from each other each varietal type of surplus tonnage dried figs held by him for the account of the committee. Dried figs shall be considered as stored separate and apart from other dried figs when they are identifiable from them. Handlers shall store surplus tonnage dried figs in sweat boxes, picking boxes, sacks or other suitable containers under conditions which will maintain the dried figs in the same condition as they were acquired except for normal and natural deterioration and shrinkage. Whenever the effective date of a surplus percentage regulation is the date on which it is published in the FEDERAL REGISTER, a handler shall be allowed five business days thereafter in which to meet his obligations with respect to the holding and identification of surplus tonnage dried figs.

(2) The committee may, after giving reasonable notice, require a handler to deliver to it or anyone designated by it, at such handler's warehouse or at such other place as surplus tonnage dried figs may be stored, part or all of the surplus dried figs held by him. The committee may require that such delivery consist of natural condition dried figs or it may arrange for such delivery to consist of processed dried figs.

(3) For each crop year each handler shall be entitled to a shrinkage allowance for normal and natural shrinkage in weight of one and one-half percent of the original natural condition weight on those surplus tonnage dried figs acquired by him during the crop year and

held by him for the account of the committee on March 1 of the same crop year. The handler shall be entitled to no other allowance for normal or natural shrinkage in weight for any of such dried figs acquired during the crop year: *Provided*, That the committee shall grant an additional allowance for any normal and natural shrinkage in weight of any such dried figs held for the account of the committee beyond the end of the crop year of acquisition upon submission by the handler of satisfactory proof of such shrinkage during the period the dried figs were so held.

(c) *Surplus obligation and deferment thereof.* (1) Subject to the provisions of paragraph (b) of this section, each handler shall have in his possession or under his control at all times a quantity of dried figs, by variety, equal to the quantity of surplus tonnage referable to his acquisitions of dried figs less any quantity of surplus tonnage dried figs delivered by him pursuant to instructions of the committee, any quantity of such tonnage acquired by him but subsequently sold to him by the committee and, during the period of any deferment granted pursuant to provisions of this paragraph, the quantity of dried figs covered by such deferment.

(2) Any handler who desires to defer the meeting of his surplus tonnage obligations pursuant to § 964.57 (c) shall file with the committee on a form furnished by it a certified application for deferment of his surplus tonnage obligations containing: (i) The date of the application and the name and address of the handler; (ii) the period for which deferment is requested; (iii) with respect to each varietal type, the total surplus tonnage on which deferment is requested segregated as to his current holdings and his expected acquisitions during the deferment period; (iv) a full description of the surety bond offered; and (v) the reasons why deferment is desired.

(3) The committee may grant such an application upon a showing by the handler that he has a need for the deferment and meets the requirements as to the written undertaking and bond which are prescribed in § 964.57 (c). The committee shall notify the applicant promptly of its decision with regard to his application, including the amount of the bond required by the terms of § 964.57 (c). The amount of said bond for a varietal type of dried figs shall be the product obtained by multiplying the quantity for which deferment is granted by the average field price for the season, to date, of salable tonnage dried figs of the same varietal type. At any time during the period for which a deferment has been granted, the handler may request the committee to increase or decrease the quantity of dried figs covered by the deferment and the committee shall grant the revision after the necessary increase or decrease, as the case may be, is made in the amount of the bond. Also at the request of the handler, the committee may extend the deferment beyond the original period (not beyond December 15 of the crop year) for such a quantity as is specified in the request provided the bond is extended in the necessary amount.

(4) No handler shall use any of such surplus tonnage dried figs as salable tonnage dried figs until he shall have received written approval of his application from the committee and shall have filed the required bond with the committee.

(5) Except as provided otherwise in connection with a deferment granted pursuant to § 964.57 (c) and this paragraph, a handler who fails to deliver to the committee, upon request, any surplus tonnage dried figs in the quantity or of a quality for which he has become obligated (after any shrinkage allowances which may then be in effect are applied and allowances for any deterioration due to conditions beyond his control are made), shall compensate the committee for the amount of the loss that is occasioned by his failure to so deliver. The amount of compensation for any shortage of tonnage shall be determined by multiplying the quantity of surplus tonnage dried figs not delivered by the latest weighted average price per ton received by producers during the particular crop year for salable tonnage dried figs of the particular varietal type or types, plus any charges already paid or credited to the handler and any costs to the committee which are caused by the handler's failure to deliver. Sales by producers, on which such weighted average price is computed, shall include those during the particular crop year up to the time such compensation is requested by the committee or up to the end of the particular crop year, whichever date may be earlier. The amount which a handler shall compensate the committee for any surplus tonnage dried figs which have deteriorated in quality during storage for reasons within his control, shall be the weighted average price to date received by the committee for the particular varietal type of surplus pool dried figs, less the amount received by the committee in the disposition of the dried figs delivered by the handler (or the reasonable value of such dried figs, as determined by the committee, if not sold). Any amounts paid to the committee in satisfaction of such deficiencies shall be considered as being part of the proceeds of the surplus tonnage pool. The remedies provided in this paragraph shall be in addition to and not exclusive of, any of the remedies or penalties prescribed in the act with respect to the failure on the part of the handler to comply with the applicable provisions of the act or this part.

(d) *Payment for services.* (1) Each handler shall, beginning with the crop year which began August 1, 1956, be compensated at the rate of $16.00 per ton (natural condition weight at the time of acquisition) for receiving, storing and handling surplus tonnage dried figs acquired during a particular crop year and held by him for the account of the committee during all or any part of the same crop year.

(2) Each handler shall, beginning with August 1, 1956, be reimbursed by the committee for inspection costs applicable to the surplus pool dried figs received and held by him for the account of the committee. Such payment shall be made on a monthly basis, when pool funds are available, at the applicable rate per ton paid by such handler to the inspection agency, and on the quantity for the particular month reported by the handler. The committee shall pay the cost of any inspection required by it of any surplus pool dried figs while they are being held for its account or are delivered in accordance with its request: *Provided*, That the cost of inspection of any dried figs which a handler exchanges for dried figs of the same crop year in the surplus pool, or surplus tonnage dried figs which he receives by transfer from another handler and on which he requests inspection shall be borne by the handler.

(3) Each handler shall, beginning with August 1, 1956, be paid an allowance for fumigation of 75 cents per ton for surplus tonnage dried figs received during the crop year between August 1 and March 1, and each handler shall be paid an additional allowance of 15 cents per month or any portion of a month for the fumigation of dried figs held for the account of the committee after March 1.

(4) In addition to the foregoing payments, handlers shall also be compensated for the following services when required: (i) The committee may arrange with any handlers for transporting surplus tonnage dried figs. Payment for such transportation shall be in an amount based on prevailing haulage rates for the type of transportation required; and (ii) a handler who accepts an offer by the committee to pack surplus tonnage dried figs for its account shall be compensated for such packing in an amount determined by or acceptable to the committee. In considering the amount of compensation to be paid, the committee shall take into account, among other factors, the particular varietal type of dried figs to be packed, the particular pack or package required, and the quantity and quality of the dried figs to be packed.

§ 964.158 *Disposition of surplus tonnage*—(a) *Offers of surplus tonnage dried figs to handlers for purchase or for contract processing or packing.* (1) Whenever the committee offers surplus tonnage dried figs to handlers for purchase, pursuant to § 964.58 (a), it shall specify, among other terms of the offer: (i) The period within which each handler shall be given the opportunity to purchase his share of the offer; and (ii) the additional period during which, if any of the offer then remains unpurchased, each handler who purchased all of his share of the offer may purchase his share of a reoffer of such unpurchased quantity. The committee shall fix the length of each of the two periods so as to facilitate disposition of surplus tonnage dried figs. Should any quantity of surplus tonnage dried figs remain unsold after a reoffer, any sales of such dried figs to any handler or handlers after the withdrawal of such quantity from the offer shall be made in the order in which any handler or handlers notify the committee of his or their desire

to purchase all or part of such unsold quantity.

(b) *Sales for animal feed, certain manufacturing uses and export.* The committee may sell direct to any person, whether or not he is a handler under the order and without regard to the provisions of § 964.58 (a), if the committee determines that the use of such provisions would be impracticable in liquidating the surplus pool, or sell to handlers for resale pursuant to the provisions of § 964.58 (a), any surplus tonnage dried figs for animal feed, botanicals, distillation, or for any manufacturing uses or for export at negotiated prices pursuant to § 964.58 (c).

It is hereby found that good cause exists for not postponing the effective date of this amendment of the amended administrative rules and procedures later than November 1, 1956 (see section 4 of the Administrative Procedure Act; 5 U. S. C. 1001 et seq.), because: (1) The regulation (21 F. R. 6887) providing for salable and surplus percentages during the 1956–57 crop year will become effective on that date; (2) the provisions of this amendment must become effective on that date to enable the Dried Fig Administrative Committee to exercise its functions with respect to the surplus pool; (3) handlers generally are aware of the recommendation made by the Dried Fig Administrative Committee with respect to this amendment of the administrative rules and procedures and, as indicated above, notice of the proposed rule was heretofore published and opportunity given to file written data, views or arguments, of which none was received; and (4) dried fig handlers will need no further time to prepare for compliance with the provisions of this further amendment.

(Sec. 5, 49 Stat. 753 as amended; 7 U. S. C. 608c)

Dated: October 19, 1956, to become effective on November 1, 1956.

[SEAL] F. R. BURKE,
Acting Deputy Administrator, Marketing Services.

[F. R. Doc. 56-8604; Filed, Oct. 23, 1956; 8:57 a. m.]

[Avocado Order 9, Amdt. 5]

PART 969—AVOCADOS GROWN IN SOUTH FLORIDA

CONTAINER REGULATION

(a) *Findings.* (1) Pursuant to the marketing agreement, as amended, and Order No. 69, as amended (7 CFR Part 969) regulating the handling of avocados grown in South Florida, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.; 68 Stat. 906, 1047), and upon the basis of the recommendations of the Avocado Administrative Committee, established under the aforesaid marketing agreement and order, and upon other available information, it is hereby found that the limitation on the handling of avocados, as hereinafter provided, will tend to effectuate the declared policy of the act.

(2) It is hereby further found that it is impracticable, unnecessary, and contrary to the public interest to give preliminary notice, engage in public rule-making procedure, and postpone the effective date of this amendment until 30 days after publication thereof in the FEDERAL REGISTER (60 Stat. 237; 5 U. S. C. 1001 et seq.) in that, as hereinafter set forth, the time intervening between the date when information upon which this amendment is based became available and the time when this amendment must become effective in order to effectuate the declared policy of the act is insufficient; and good cause exists for making the provisions hereof effective not later than October 28, 1956. The Avocado Administrative Committee at its meeting on October 9, 1956, considered the matter of testing types and sizes of containers other than those currently prescribed by Avocado Order 9, as amended, to provide a basis for recommending containers most suitable for use in handling avocados; in order to evaluate selected types and sizes of containers it is necessary to make test shipments of avocados in such containers and to make observations of the condition of the avocados and the containers at various points in marketing channels; test shipments are to be made under the supervision of the committee, and authorization to make shipments in test containers is needed not later than the effective time hereof in order that supplies of such containers may be obtained and plans made for shipment; and this amendment relieves restriction on the handling of avocados.

(b) It is, therefore, ordered that subparagraph (1) of paragraph (b) of § 969.309, as amended (Avocado Order 9, as amended; 20 F. R. 5627, 6571, 9173; 21 F. R. 4514, 6269) is further amended by adding at the end thereof a new subdivision (vii) reading as follows:

(vii) Such other types and sizes of containers as may be approved by the Avocado Administrative Committee for testing in connection with a research project conducted by or in cooperation with the said committee: *Provided*, That the handling of each lot of avocados in such test containers shall be subject to the prior approval, and under the supervision, of the Avocado Administrative Committee.

(c) *Effective time.* The provisions of this amendment shall become effective at 12:01 a. m., e. s. t., October 28, 1956.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. 608c)

Dated: October 19, 1956.

[SEAL] S. R. SMITH,
Director, Fruit and Vegetable Division, Agricultural Marketing Service.

[F. R. Doc. 56-8603; Filed, Oct. 23, 1956; 8:57 a. m.]

PART 989—RAISINS PRODUCED FROM RAISIN VARIETY GRAPES GROWN IN CALIFORNIA

FREE, RESERVE, AND SURPLUS PERCENTAGES FOR 1956–57 CROP YEAR AND LIST OF COUNTRIES FOR EXPORT SALE OF SURPLUS TONNAGE THROUGH HANDLERS

Pursuant to Marketing Agreement No. 109, as amended, and Order No. 89, as amended (20 F. R. 6435), regulating the handling of raisins produced from raisin variety grapes grown in California, hereinafter referred to as the "order," effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), hereinafter referred to as the "act," the Raisin Administrative Committee has recommended the designation of percentages of standard raisins acquired by handlers during the 1956–57 crop year, which shall be free tonnage, reserve tonnage, and surplus tonnage, respectively, and the establishment of a list specifying the countries to which sale in export of surplus tonnage raisins may be made by or through handlers.

The percentages for standard natural Thompson Seedless raisins, as hereinafter set forth, are based on the following estimates[1] and formula adopted by the committee and the Department with respect to such raisins: (1) The 1956 natural Thompson Seedless raisin production of 180,000 tons; (2) plus five percent of item 1 for possible underestimation of production, 9,000 tons; (3) total of items 1 and 2, 189,000 tons; (4) average free tonnage demand for most recent three crop years of 143,310 tons, less actual carryin at September 1, 1956, of 19,509 tons, plus merchandising cushion of 15,000 tons, equals total of 138,801 tons; (5) free tonnage percentage, total item 4 divided by item 3 equals 73 percent; (6) a reserve tonnage percentage of 10 percent is deemed necessary to protect against errors in the foregoing estimates; and (7) the surplus tonnage percentage of 17 percent is the residual obtained by subtracting the total of the free and reserve tonnage percentages from 100 percent.

The foregoing percentages for natural Thompson Seedless raisins, when applied to the estimated 1956 production of 180,000 tons, result in a free tonnage of 131,400 tons, a reserve tonnage of 18,000 tons, and a surplus tonnage of 30,600 tons.

The total supply of other varietal types of standard raisins is expected to approximate 25,000 tons and this supply is not deemed to be in excess of that which can be marketed as free tonnage and provide reasonable carryout.

It is hereby found that to designate free tonnage percentages, reserve tonnage percentages, and surplus tonnage percentages and to establish a list specifying the countries to which sale in export of surplus tonnage raisins may be made by or through handlers, as hereinafter provided, will tend to effectuate the declared policy of the act.

It is therefore ordered, That such percentages and countries shall be as follows:

[1] All tonnage figures herein are in terms of natural condition weight.

§ 989.211 *Free, reserve, and surplus tonnage percentages for the 1956-57 crop year.* The percentages of each varietal type of standard raisins acquired by handlers during the crop year beginning September 1, 1956, and ending August 31, 1957, which shall be free tonnage, reserve tonnage, and surplus tonnage, respectively, are as follows: (a) Natural (sun-dried) Thompson Seedless raisins: Free tonnage percentage, 73 percent; reserve tonnage percentage, 10 percent; and surplus tonnage percentage, 17 percent; and (b) each of the other varietal types, including natural (sun-dried) Muscat, natural (sun-dried) or artificially dehydrated Sultana, natural (sun-dried) or artificially dehydrated Zante Currant, Layer Muscat, Golden Seedless, Sulfur Bleached, Soda Dipped, and Valencia raisins: Free tonnage percentage, 100 percent; reserve tonnage percentage, zero percent; and surplus tonnage percentage, zero percent.

§ 989.212 *Countries to which sale in export of surplus tonnage raisins may be made by or through handlers.* The countries to which sale in export of surplus tonnage raisins acquired by handlers during the crop year beginning September 1, 1956, and ending August 31, 1957, may be made by or through handlers shall include all countries outside of the Western Hemisphere. For purposes of this section, "Western Hemisphere" shall include Greenland and the area east of the International Date Line and west of 30 degrees W. longitude.

It is hereby further found and determined that it is impracticable, unnecessary, and contrary to the public interest to give preliminary notice, engage in public rule making, or postpone the effective time of this document later than the date of its publication in the FEDERAL REGISTER (see section 4 of the Administrative Procedure Act; 5 U. S. C. 1001 et seq.) in that: (1) Acquisition of raisins by handlers during the 1956-57 crop year has begun, and it is necessary to have this regulation in effect promptly for application against such acquisitions of raisins and to provide surplus tonnage raisins to meet current export demand; (2) the actions to be required of handlers hereunder in connection with volume regulation are similar to those required of them during the 1955-56 crop year and hence will necessitate no unusual preparations by them; and (3) handlers have been aware that the percentages would be derived from the method used herein and they should need no additional advance notice to comply with this regulation. In these circumstances, this document should be made effective on the date of its publication in the FEDERAL REGISTER.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. 608c)

Dated October 18, 1956, to become effective upon publication in the FEDERAL REGISTER.

[SEAL] S. R. SMITH,
Director,
Fruit and Vegetable Division.

[F. R. Doc. 56-8605; Filed, Oct. 23, 1956; 8:57 a. m.]

PART 994—PECANS GROWN IN GEORGIA, ALABAMA, FLORIDA, MISSISSIPPI, AND SOUTH CAROLINA

GRADE AND SIZE REGULATION

Pursuant to the provisions of Marketing Agreement No. 111 and Order No. 94 regulating the handling of pecans grown in Georgia, Alabama, Florida, Mississippi, and South Carolina (7 CFR, Part 994), effective pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), the Pecan Administrative Committee at a meeting held in Albany, Georgia on October 10, 1956 recommended that the currently effective grade and size regulation be amended to liberalize restrictions on the quantity of hull membrane adhering to kernels of inshell pecans shipped from the five-State area for inshell use.

The Pecan Administrative Committee based its recommendation on a need to resolve grading difficulties which have arisen in previous years and are expected to recur during the 1956-57 season. The recommended change in restrictions on adhering hull membrane will not affect any of the other grade and size requirements now in effect.

On the basis of this recommendation and other information available to the Department the proposed amendments appear to be reasonable and will tend to effectuate the declared policy of the aforesaid act. Therefore, the existing pecan grade and size regulation (§ 994.102; 19 F. R. 6785) is hereby renumbered from § 994.102 to § 994.204 and amended to read as follows:

§ 994.204 *Grade and size regulation.* (a) In lieu of the initial grade and size regulation contained in § 994.74 of the marketing agreement and order, no person shall handle, except as provided in § 994.77 of the marketing agreement and order, any unshelled pecans unless such pecans:

(1) Have a count per pound of less than 91 nuts, and the 10 smallest nuts in a representative 100 nut sample weigh at least 1.5 ounces and;

(2) Meet the requirements of the U. S. Commercial grade with the following modifications:

(i) Any lot of pecans, other than Mahan variety, shall contain at least 75 percent by count of pecans which have kernels which meet the requirements of the U. S. No. 1 Grade, except that all of the pecan kernels may have up to one-half of the surface adjacent to the shell affected by adhering membrane and not more than 25 percent of the kernels may have up to three-fourths of the surface adjacent to the shell affected by adhering membrane.

(ii) Lots of the Mahan variety shall contain at least 65 percent, by count, of pecans which have kernels which meet the requirements of the U. S. No. 1 Grade, except that all of the pecan kernels may have up to one-half of the surface adjacent to the shell affected by adhering membrane and not more than 35 percent of the kernels may have up to three-fourths of the surface adjacent to the shell affected by adhering membranes.

(iii) No lot of pecans of any variety may contain in excess of 9 percent, by count, of pecans which are rancid, moldy, decayed, injured by worms, or so shriveled that they have virtually no food value.

Notice of proposed rule making, public participation therein, and delay in making this order effective later than the date of its publication in the FEDERAL REGISTER (see section 4 of the Administrative Procedure Act; 5 U. S. C. 1001 et seq.), is impracticable, unnecessary and contrary to the public interest for the reasons that: (1) The harvest season for pecans is now under way in part of the area, (2) it is desirable that all fall and winter marketings of inshell pecans be under uniform grade and size regulation, and (3) this action constitutes a liberalization of grade requirements that will not create a burden upon any handler.

(Sec. 5, 49 Stat. 753, as amended, 7 U. S. C. 608c)

Dated: October 19, 1956.

[SEAL] S. R. SMITH,
Director,
Fruit and Vegetable Division.

[F. R. Doc. 56-8601; Filed, Oct. 23, 1956; 8:57 a. m.]

TITLE 9—ANIMALS AND ANIMAL PRODUCTS

Chapter I—Agricultural Research Service, Department of Agriculture

Subchapter C—Interstate Transportation of Animals and Poultry

[B. A. I. Order 383, Revised, Amdt. 88]

PART 76—HOG CHOLERA, SWINE PLAGUE, AND OTHER COMMUNICABLE SWINE DISEASES

SUBPART B—VESICULAR EXANTHEMA

CHANGES IN AREAS QUARANTINED

Pursuant to the provisions of sections 1 and 3 of the act of March 3, 1905, as amended (21 U. S. C. 123, 125), sections 1 and 2 of the act of February 2, 1903, as amended (21 U. S. C. 111-113, 120), and section 7 of the act of May 29, 1884, as amended (21 U. S. C. 117), § 76.27, as amended, Subpart B, Part 76, Title 9, Code of Federal Regulations (21 F. R. 3, 417, 786, 1165, 1461, 1743, 2230, 2611, 3005, 3923, 4339, 5043, 5435, 5861, 6748, 7051, 7650), which quarantines certain areas because of vesicular exanthema, a contagious, infectious, and communicable disease of swine, is hereby further amended in the following respects:

1. Subparagraph (7) of paragraph (d), relating to Hunterdon County in New Jersey, is deleted.

Effective date. The foregoing amendment shall become effective upon issuance.

The amendment excludes certain areas in New Jersey from the areas heretofore quarantined because of vesicular exanthema. Hereafter, the restrictions pertaining to the interstate movement of swine, and carcasses, parts and offal of

swine, from or through quarantined areas, contained in 9 CFR, 1955 Supp., Part 76, Subpart B, as amended, will not apply to such areas. However, the restrictions pertaining to such movement from nonquarantined areas, contained in said Subpart B, as amended, will apply thereto.

The amendment relieves certain restrictions presently imposed, and must be made effective immediately to be of maximum benefit to persons subject to the restrictions which are relieved. Accordingly, under section 4 of the Administrative Procedure Act (5 U. S. C. 1003), it is found upon good cause that notice and other public procedure with respect to the amendment are impracticable and contrary to the public interest, and the amendment may be made effective less than 30 days after publication in the FEDERAL REGISTER.

(Secs. 4, 5, 23 Stat. 32, as amended, secs. 1, 2, 32 Stat. 792, as amended, secs. 1, 3, 33 Stat. 1264, as amended, 1265, as amended; 21 U. S. C. 120, 121, 111, 123, 125. Interprets or applies sec. 7, 23 Stat. 32, as amended; 21 U. S. C. 117)

Done at Washington, D. C., this 19th day of October 1956.

[SEAL] B. T. SHAW,
Administrator,
Agricultural Research Service.

[F. R. Doc. 56-8606; Filed, Oct. 23, 1956; 8:57 a. m.]

TITLE 14—CIVIL AVIATION

Chapter II—Civil Aeronautics Administration, Department of Commerce

[Amdt. 179]

PART 608—RESTRICTED AREAS

ALTERATIONS

The restricted area alterations appearing hereinafter have been coordinated with the civil operators involved, the Army, the Navy and the Air Force, through the Air Coordinating Committee, Airspace Panel, and are adopted to become effective when indicated in order to promote safety of the flying public. Since a military function of the United States is involved, compliance with the notice, procedure and effective date, provisions of section 4 of the Administrative Procedure Act is not required.

Part 608 is amended as follows:

1. In § 608.14, the San Miguel Island, California, area (R-288 formerly D-288), amended on March 3, 1950 in 15 F. R. 1783 is further amended by changing the "Controlling Agency" column to read: "11th Naval District".

2. In § 608.21, the Glenview, Illinois, area (R-76), amended on October 20, 1955 in 20 F. R. 7902 is rescinded.

3. In § 608.47, the Block Island Sound, Rhode Island, area (R-90), amended on May 4, 1956 in 21 F. R. 2977 is further amended by changing the "Controlling Agency" column to read: "NAVPORCO, Newport, Rhode Island".

4. § 608.54, the Pendleton, Virginia, area (R-74), amended on May 4, 1956 in 21 F. R. 2977 is further amended by changing the "Controlling Agency" column to read: "VACAPES OPAREA-CORD, NOB, Norfolk, Virginia".

5. § 608.54, the Chesapeake Bay, Virginia, area (R-388), amended on May 4, 1956 in 21 F. R. 2977 is further amended by changing the "Controlling Agency" column to read: "VACAPES OPAREA-CORD, NOB, Norfolk, Virginia".

(Sec. 205, 52 Stat. 984, as amended; 49 U. S. C. 425. Interpret or apply Sec. 601, 52 Stat. 1007, as amended; 49 U. S. C. 551)

This amendment shall become effective on November 15, 1956.

[SEAL] JAMES T. PYLE,
Acting Administrator
of Civil Aeronautics.

[F. R. Doc. 56-8517; Filed, Oct. 23, 1956; 8:45 a. m.]

[Amdt. 180]

PART 608—RESTRICTED AREAS

DESERET, UTAH

The restricted area alteration appearing hereinafter has been coordinated with the civil operators involved, the Army, the Navy and the Air Force, through the Air Coordinating Committee, Airspace Panel and is adopted to become effective when indicated in order to promote safety of the flying public. Since a military function of the United States is involved, compliance with the notice, procedure and effective date provisions of section 4 of the Administrative Procedure Act is not required.

Part 608 is amended as follows:

1. In § 608.52, a Deseret, Utah, area (R-514), is added to read:

Name and location (chart)	Description by geographical coordinates	Designated altitudes	Time of designation	Controlling agency
Deseret, Utah, Restricted Area (R-514) (Salt Lake City).	North boundary: latitude 40°16'27"; East boundary: longitude 112°18'43"; South boundary: latitude 40°15'42"; West boundary: longitude 112°21'01".	Surface to 10,000 feet mean sea level.	Unlimited...	Chief of Ordnance, Deseret Ordnance Depot.

(Sec. 205, 52 Stat. 984, as amended; 49 U. S. C. 425. Interprets or applies Sec. 601, 52 Stat. 1007, as amended; 49 U. S. C. 551)

This amendment shall become effective on November 5, 1956.

[SEAL] JAMES T. PYLE,
Acting Administrator,
of Civil Aeronautics.

[F. R. Doc. 56-8518; Filed, Oct. 23, 1956; 8:45 a. m.]

TITLE 16—COMMERCIAL PRACTICES

Chapter I—Federal Trade Commission

[Docket 6527]

PART 13—DIGEST OF CEASE AND DESIST ORDERS

SCOVILL MANUFACTURING CO.

Order amending the decision of the Commission issued September 14, 1956 (21 F. R. 7565, Oct. 3, 1956)—requiring divestiture of the property of DeLong Hook & Eye Company acquired in violation of the antimerger statute—to substitute the date of January 5, 1957, for November 23, 1956, in the order to file report of compliance.

It is ordered, That the date of January 5, 1957, be, and it hereby is, substituted for the date of November 23, 1956, in the order to file report of compliance in the Commission's decision in this matter issued September 14, 1956.

Issued: October 5, 1956.

By the Commission.

[SEAL] ROBERT M. PARRISH,
Secretary.

[F. R. Doc. 56-8598; Filed, Oct. 23, 1956; 8:56 a. m.]

TITLE 22—FOREIGN RELATIONS

Chapter I—Department of State

PART 42—VISAS: DOCUMENTATION OF IMMIGRANTS UNDER THE IMMIGRATION AND NATIONALITY ACT

NOTE: For validity of certain foreign passports see F. R. Doc. 56-8584, *infra*.

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Agricultural Marketing Service

[7 CFR Part 52]

U. S. STANDARDS FOR GRADES OF CANNED SAUERKRAUT [1]

NOTICE OF PROPOSED RULE MAKING

Notice is hereby given that the United States Department of Agriculture is considering the revision of United States Standards for Grades of Canned Sauerkraut pursuant to the authority contained in the Agricultural Marketing Act of 1946 (60 Stat. 1087, as amended, et seq.; 7 U. S. C. 1621 et seq.). These standards, if made effective, will be the second issue of United States Standards for Grades of Canned Sauerkraut.

All persons who desire to submit written data, views, or arguments for consideration in connection with the following proposed standards should file the same with the Chief, Processed Products Standardization and Inspection Branch, Fruit and Vegetable Division, Agricul-

[1] Compliance with the provisions of these standards shall not excuse failure to comply with the provisions of the Federal Food, Drug, and Cosmetic Act.

tural Marketing Service, United States Department of Agriculture, South Building, Washington 25, D. C., not later than January 31, 1957.

The proposed revision is as follows:

PRODUCT DESCRIPTION, STYLES, AND GRADES

Sec.
52.2951 Product description.
52.2952 Styles of canned kraut.
52.2953 Grades of canned kraut.

FILL OF CONTAINER AND DRAINED WEIGHTS

52.2954 Recommended fill of container.
52.2955 Recommended minimum drained weight.
52.2956 Compliance with recommended minimum drained weights.

FACTORS OF QUALITY

52.2957 Ascertaining the grade.
52.2958 Ascertaining the rating for the factors which are scored.
52.2959 Color.
52.2960 Cut.
52.2961 Defects.
52.2962 Character.
52.2963 Flavor.

DEFINITIONS; METHODS OF ANALYSES

52.2964 Definitions of terms and methods of analyses.

LOT CERTIFICATION TOLERANCES

52.2965 Tolerances for certification of officially drawn samples.

SCORE SHEET

52.2966 Score sheet for canned sauerkraut.

AUTHORITY: §§ 52.2951 to 52.2966 issued under sec. 205, 60 Stat. 1090, as amended; 7 U. S. C. 1624.

PRODUCT DESCRIPTION, STYLES, AND GRADES

§ 52.2951 *Product description.* Canned (or packaged) sauerkraut, hereinafter referred to as canned kraut, is prepared from clean, sound, well matured heads of the cabbage plant which have been properly trimmed and cut; to which salt is added, and is cured by natural fermentation. The product contains not less than one percent acid, expressed as lactic, and may or may not be packed with pickled peppers, pimientos, tomatoes, or contain other flavoring ingredients to give the product specific flavor characteristics. The product is sufficiently processed by heat to assure preservation in hermetically sealed containers or may be packaged in sealed containers and preserved with or without the addition of benzoate of soda or any other ingredient permissible under the provisions of the Federal Food, Drug, and Cosmetic Act or applicable State laws or regulations.

§ 52.2952 *Styles of canned kraut.* (a) "Shredded" means canned kraut which has been prepared from cabbage cut into shreds.

(b) "Chopped" means canned kraut which has been prepared from cabbage that is cut or chopped into small pieces.

§ 52.2953 *Grades of canned kraut.* (a) "U. S. Grade A" or "U. S. Fancy" is the quality of canned kraut that possesses a good color; that is well cut; that is practically free from defects; that possesses a good character; that possesses a good flavor; and that for those factors which are scored in accordance with the scoring system outlined in this subpart the total score is not less than 90 points: *Provided*, That the canned kraut may be reasonably well cut, may possess a reasonably good character, and may be reasonably free from minor defects, if the total score is not less than 90 points.

(b) "U. S. Grade B" or "U. S. Extra Standard" is the quality of canned kraut that possesses a reasonably good color; that is reasonably well cut; that is reasonably free from defects; that possesses a reasonably good character; that possesses a reasonably good flavor; and that for those factors which are scored in accordance with the scoring system outlined in this subpart the total score is not less than 80 points: *Provided*, That the canned kraut may be fairly well cut, if the total score is not less than 80 points.

(c) "U. S. Grade C" or "U. S. Standard" is the quality of canned kraut that possesses a fairly good color; that is fairly well cut; that is fairly free from defects; that possesses a fairly good character; that possesses a fairly good flavor; and that for those factors which are scored in accordance with the scoring system outlined in this subpart the total score is not less than 70 points.

(d) "Substandard" is the quality of canned kraut that fails to meet the requirements of U. S. Grade C or U. S. Standard.

FILL OF CONTAINER AND DRAINED WEIGHTS

§ 52.2954 *Recommended fill of container.* The fill of container is not incorporated in the grades of the finished product since fill of container, as such, is not a factor of quality for the purpose of these grades. It is recommended that each container of canned kraut be filled as full as practicable with the kraut and that the kraut and packing medium shall fill the container to not less than 95 percent of its total capacity.

§ 52.2955 *Recommended minimum drained weight.* The minimum drained weight recommendations in Table No. I hereof are not incorporated in the grades of the finished product since drained weight, as such, is not a factor of quality for the purpose of these grades. The drained weight of canned kraut is determined by emptying the contents of the container upon a United States Standard No. 8 sieve of proper diameter so as to distribute the product evenly, inclining the sieve to facilitate drainage, and allow to drain for two minutes. The drained weight of kraut is the weight of the sieve and the drained kraut less the weight of the dry sieve. A sieve 8 inches in diameter is used for the No. 2½ size can (401 x 411) and smaller sizes; and a sieve 12 inches in diameter is used for containers larger than the No. 2½ size can.

§ 52.2956 *Compliance with recommended minimum drained weights.* Compliance with the recommended minimum drained weights for canned kraut is determined by averaging the drained weights of all containers which are representative of a specific lot. Such lot is considered as meeting recommendations, if:

(a) At least one-half of the containers meets the recommended minimum drained weight;

(b) The drained weights of the containers which do not meet the recommended minimum drained weight are within the range of variability of good commercial practice; and

(c) The average drained weight of all the containers which are representative of the lot does not fall below the recommended minimum drained weight.

TABLE NO. I—RECOMMENDED MINIMUM DRAINED WEIGHTS (IN OUNCES) OF KRAUT

Container size or designation	Dimensions (inches) or water capacity (fl. oz.)	Style of canned kraut shredded or chopped drained weight (ounces)
8-oz. tall	2 1/16 x 3 4/16	6¾
8-oz. jar	8.1 fl. oz.	6¾
No. 1 picnic	2 1/16 x 4	8¾
No. 1 tall	3 1/16 x 4 1/16	13
No. 95	3 7/16 x 4	14
No. 300	3 x 4 7/16	12
No. 303	3 1/16 x 4 5/16	13
No. 303 jar	17.0 fl. oz.	13
No. 2	3 5/16 x 4 5/16	16
No. 2½	4 1/16 x 4 13/16	23
No. 2½ jar	28.3 fl. oz.	23
Pint jar	16.5 fl. oz.	13¼
Quart jar	32.62 fl. oz.	26¼
No. 10	6 1/16 x 7	80

FACTORS OF QUALITY

§ 52.2957 *Ascertaining the grade*—(a) *General.* In addition to considering other requirements outlined in the standards, the following quality factors are evaluated in ascertaining the grade of the product:

(1) *Factors rated by score points.* The relative importance of each factor which is rated is expressed numerically on the scale of 100. The maximum number of points that may be given each such factor is:

Factors:	Points
Color	20
Cut	10
Defects	20
Character	20
Flavor	30
Total score	100

§ 52.2958 *Ascertaining the rating for the factors which are scored.* The essential variations within each factor which is scored are so described that the value may be ascertained for such factors and expressed numerically. The numerical range within each factor which is scored is inclusive (for example, "18 to 20 points" means 18, 19, or 20 points).

§ 52.2959 *Color*—(a) *General.* The color of canned kraut has reference to the predominating and characteristic appearance of the shreds or pieces and to the brightness of the product.

(1) Kraut model No. 1 and kraut model No. 2 means the U. S. D. A. kraut models illustrating the color of canned kraut referred to in this section.

(2) Information regarding kraut model No. 1 and kraut model No. 2 may be obtained by writing to the Processed Products Standardization and Inspection Branch, Fruit and Vegetable Division, U. S. Department of Agriculture, Washington 25, D. C.

(b) (*A*) *classification.* Canned kraut that possesses a good color may be given a score of 18 to 20 points. "Good color"

means that the canned kraut possesses a bright, practically uniform, typical white to light cream general appearance characteristic of properly prepared and properly processed canned kraut equal to or better than kraut model No. 1.

(c) *(B) classification.* If the canned kraut possesses a reasonably good color a score of 16 or 17 points may be given. Canned kraut that scores in this classification shall not be graded above U. S. Grade B or U. S. Extra Standard, regardless of the total score for the product (this is a limiting rule). "Reasonably good color" means that the canned kraut possesses a reasonably bright, reasonably uniform, typical cream to light straw general appearance characteristic of properly prepared and properly processed canned kraut equal to or better than kraut model No. 2.

(d) *(C) classification.* Canned kraut that possesses a fairly good color may be given a score of 14 or 15 points. Canned kraut that scores in this classification shall not be graded above U. S. Grade C or U. S. Standard, regardless of the total score for the product (this is a limiting rule). "Fairly good color" means that the canned kraut may possess a dark straw, slightly green, or yellowish general appearance and may be dull or slightly variable but is not off color.

(e) *(SStd.) classification.* Canned kraut that fails to meet the requirements of paragraph (d) of this section or is definitely dark or has a pink tint or is off color for any reason may be given a score of 0 to 13 points and shall not be graded above Substandard, regardless of the total score for the product (this is a limiting rule).

§ 52.2960 *Cut*—(a) *General.* The factor of cut has reference to uniformity of the shreds and of the chopped pieces in canned kraut and to the length of the shreds in shredded kraut.

(b) *(A) classification.* Canned kraut that is well cut may be given a score of 9 or 10 points. "Well cut" means with respect to shredded kraut that the shreds are uniform in thickness and that the appearance of the product is not more than slightly affected by the presence of short or irregular cut pieces, and with respect to chopped kraut that the pieces are uniform in size and that the presence of pieces markedly smaller or larger than the predominant size of pieces does not more than slightly affect the appearance of the product.

(c) *(B) classification.* If the canned kraut is reasonably well cut, a score of 8 points may be given. "Reasonably well cut" means with respect to shredded kraut that the shreds are reasonably uniform in thickness and that the appearance of the product is not materially affected by the presence of short or irregular cut pieces, and with respect to chopped kraut that the pieces are reasonably uniform in size and that the presence of pieces markedly smaller or larger than the predominant size of pieces does not materially affect the appearance of the product.

(d) *(C) classification.* Canned kraut that is fairly well cut may be given a score of 7 points. Canned kraut that scores in this classification shall not be graded above U. S. Grade B or U. S. Extra Standard, regardless of the total score for the product (this is a partial limiting rule). "Fairly well cut" means with respect to shredded kraut that the presence of very short or very fine pieces or large and irregular pieces, and with respect to chopped kraut that the presence of very fine pieces or large and irregular pieces does not seriously affect the appearance of the product.

(e) *(SStd.) classification.* Canned kraut that fails to meet the requirements of paragraph (d) of this section may be given a score of 0 to 6 points and shall not be graded above Substandard, regardless of the total score for the product (this is a limiting rule).

§ 52.2961 *Defects*—(a) *General.* Defects refers to the degree of freedom from coarse pieces of leaves, large and coarse pieces of core material, and blemished, spotted, or otherwise dark or discolored shreds or pieces in canned kraut.

(1) "Minor defects" means large or coarse pieces of leaves and large or coarse pieces of core material in canned kraut.

(2) "Major defects" means blemished, spotted, or otherwise discolored shreds or pieces of leaves or core material in canned kraut.

(b) *(A) classification.* Canned kraut that is practically free from defects may be given a score of 18 to 20 points. "Practically free from defects" means that minor defects may be present that do not materially affect the appearance or eating quality and that major defects may be present that do not more than slightly affect the appearance or eating quality of the product.

(c) *(B) classification.* If the canned kraut is reasonably free from defects, a score of 16 or 17 points may be given. Canned kraut that falls into this classification on account of the presence of major defects shall not be graded above U. S. Grade B or U. S. Extra Standard, regardless of the total score for the product (this is a partial limiting rule). "Reasonably free from defects" means that minor and major defects may be present that do not materially affect the appearance or eating quality of the product.

(d) *(C) classification.* Canned kraut that is fairly free from defects may be given a score of 14 or 15 points. Canned kraut that falls into this classification shall not be graded above U. S. Grade C or U. S. Standard, regardless of the total score for the product (this is a limiting rule). "Fairly free from defects" means that minor and major defects may be present that do not seriously affect the appearance or eating quality of the product.

(e) *(SStd.) classification.* Canned kraut that fails to meet the requirements of paragraph (d) of this section may be given a score of 0 to 13 points and shall not be graded above Substandard, regardless of the total score for the product (this is a limiting rule).

§ 52.2962 *Character*—(a) *General.* Character refers to the condition of the product and the tendency of kraut to be firm and easy to cut.

(b) *(A) classification.* Canned kraut that possesses a good character may be given a score of 18 to 20 points. "Good character" means that the kraut is crisp and firm.

(c) *(B) classification.* If the canned kraut possesses a reasonably good character, a score of 16 or 17 points may be given. "Reasonably good character" means that the kraut is reasonably crisp and reasonably firm.

(d) *(C) classification.* Canned kraut that possesses a fairly good character may be given a score of 14 or 15 points. Canned kraut that scores in this classification shall not be graded above U. S. Grade C or U. S. Standard, regardless of the total score for the product (this is a limiting rule). "Fairly good character" means that the kraut may lack crispness, may be soft or slightly tough, but is not excessively tough or excessively soft or mushy.

(e) *(SStd.) classification.* Canned kraut that fails to meet the requirements of paragraph (d) of this section may be given a score of 0 to 13 points and shall not be graded above Substandard, regardless of the total score for the product (this is a limiting rule).

§ 52.2963 *Flavor*—(a) *General.* The flavor of canned kraut has reference to the typical lactic fermentation of the product and salt in an amount sufficient for the development of the characteristic kraut flavor and contains not less than 1.0 percent acid, calculated as lactic, and not less than 1.3 percent nor more than 2.5 percent of salt.

(b) *(A) classification.* Canned kraut that possesses a good flavor may be given a score of 27 to 30 points. "Good flavor" means that the product possesses a good characteristic kraut flavor which is free from off flavors and off odors of any kind.

(c) *(B) classification.* If the canned kraut possesses a reasonably good flavor, a score of 24 to 26 points may be given. Canned kraut that falls into this classification shall not be graded above U. S. Grade B or U. S. Extra Standard, regardless of the total score for the product (this is a limiting rule). "Reasonably good flavor" means that the product possesses a reasonably good, characteristic, kraut flavor which is free from off flavors and off odors of any kind.

(d) *(C) classification.* Canned kraut that possesses a fairly good flavor may be given a score of 21 to 23 points. Canned kraut that falls into this classification shall not be graded above U. S. Grade C or U. S. Standard, regardless of the total score for the product (this is a limiting rule). "Fairly good flavor" means that the product possesses a fairly good kraut flavor which is free from objectionable flavors and objectionable odors which may seriously affect the eating quality of the product.

(e) *(SStd.) classification.* Canned kraut that fails to meet the requirements of paragraph (d) of this section may be given a score of 0 to 20 points and shall not be graded above Substandard, regardless of the total score for the product (this is a limiting rule).

DEFINITIONS; METHODS OF ANALYSES

§ 52.2964 *Definitions of terms and methods of analyses.* (a) "Salt" means percent, by weight, of salt (NaCl) in canned kraut. The percent salt in canned kraut may be determined by direct titration on a 10-gram sample of the packing media, after neutralization with a solution of sodium hydroxide or by adding an excess of calcium carbonate. Dilute with about 25 milliliters of distilled water and titrate with N/10 silver nitrate ($AgNO_3$) solution, using 0.5 milliliter of potassium chromate indicator, to the characteristic yellow-orange end point.

(b) "Acidity" means percent, by weight, of acid, calculated as lactic, in canned kraut. The percent acidity may be determined by direct titration on a 10-gram sample of the packing media. Dilute with about 25 milliliters of distilled water and titrate with N/10 sodium hydroxide solution, using several drops of phenolphthalein indicator, to the characteristic permanent faint-pink end point.

(c) "Methods of Analyses." The analyses indicated in this section shall be made in accordance with methods of analyses specified in Official Methods of Analysis of the Association of Official Agricultural Chemists or by any other method which gives equivalent results.

LOT CERTIFICATION TOLERANCES

§ 52.2965 *Tolerances for certification of officially drawn samples.* (a) When certifying samples that have been officially drawn and which represent a specific lot of canned kraut the grade for such lot will be determined by averaging the total scores of the containers comprising the sample, if, (1) all containers comprising the sample meet all applicable standards of quality promulgated under the Federal Food, Drug, and Cosmetic Act and in effect at the time of the aforesaid certification; and (2) with respect to those factors which are rated by score points:

(i) Not more than one-sixth of the containers fails to meet the grade indicated by the average of such total scores;

(ii) None of the containers falls more than 4 points below the minimum score for the grade indicated by the average of such total scores;

(iii) None of the containers falls more than one grade below the grade indicated by the average of such total scores; and

(iv) The average score of all containers for any factor subject to a limiting rule is within the score range of that factor for the grade indicated by the average of the total scores of the containers comprising the sample.

SCORE SHEET

§ 52.2966 *Score sheet for canned sauerkraut.*

Size and kind of container	
Container mark or identification	
Label	
Net weight (ounces)	
Vacuum (inches)	
Drained weight (ounces)	
Style	
Acidity, percent (as lactic)	
Salt, percent (NaCl)	

Factors	Score points		
Color	20	(A)	18-20
		(B)	¹16-17
		(C)	¹14-15
		(SStd)	¹0-13
Cut	10	(A)	9-10
		(B)	8
		(C)	¹7
		(SStd)	¹0-6
Defects	20	(A)	18-20
		(B)	²16-17
		(C)	¹14-15
		(SStd)	¹0-13
Character	20	(A)	18-20
		(B)	16-17
		(C)	¹14-15
		(SStd)	¹0-13
Flavor	30	(A)	27-30
		(B)	¹24-26
		(C)	¹21-23
		(SStd)	¹0-20
Total score	100		
Grade			

¹ Indicates limiting rule.
² Indicates partial limiting rule.

Dated: October 18, 1956.

[SEAL] F. R. BURKE,
Acting Deputy Administrator, Marketing Services.

[F. R. Doc. 56-8527; Filed, Oct. 23, 1956; 8:46 a. m.]

FEDERAL COMMUNICATIONS COMMISSION

[47 CFR Part 3]

[Docket No. 11851; FCC 56-1013]

TABLE OF ASSIGNMENTS; TELEVISION BROADCAST STATIONS

NOTICE OF PROPOSED RULE MAKING

In the matter of amendment of § 3.606, Table of Assignments, rules governing Television Broadcast Stations (Baton Rouge, La., and Jackson, La.).

1. Notice is hereby given of rule making in the above-entitled matter.

2. The Commission has before it for consideration a petition, filed July 26, 1956, by Bayou Broadcasting Corporation, permittee of UHF Station WCNS, authorized to operate on Channel 40 at Baton Rouge, Louisiana, for rule making to amend § 3.606, Table of Assignments, Television Broadcast Stations, so as to assign Channel 18 to Baton Rouge to replace Channel 40, as follows:

City	Channel No.	
	Delete	Add
Baton Rouge, La.	40-	18-
Jackson, La.	18-	40-

Petitioner also requests that the Commission direct it to show cause why its outstanding authorization for operation on Channel 40 should not be modified to specify operation on the proposed new assignment.

3. In support of its request, petitioner asserts that neither channel involved in the request (Channels 18 and 40) is used by an operating station, so there would be no loss of service in either city; no application has been filed for Channel 18 at Jackson; the channel change can be made in full compliance with the Commission's mileage separation requirements; and that the channel change "would make comparable the technical service of UHF operations in Baton Rouge."

4. The Commission is of the view that rule making proceedings should be instituted in this matter in order that all interested parties may submit their views and relevant data.

5. We do not believe that we should direct Bayou Broadcasting Corporation in this proceeding to show cause why its authorization for Station WCNS should not be modified to specify operation on Channel 18 in place of Channel 40. Such additional proceedings which may be necessary can be instituted at the termination of this rule making proceeding. Furthermore, it is not necessary to delete Channel 40 from Baton Rouge. Channel 59 can be assigned to replace Channel 18 in Jackson.

6. Any interested party who is of the view that the proposed amendment should not be adopted, or should not be adopted in the form set forth herein, may file with the Commission on or before November 21, 1956, a written statement setting forth his comments. Comments supporting the proposed amendment may also be filed on or before the same date. Comments in reply to original comments may be filed within 15 days from the last date for filing said original comments. No additional comments may be filed unless (1) specifically requested by the Commission or (2) good cause for the filing of such additional comments is established.

7. Authority for the adoption of the amendment proposed herein is contained in section 4 (i), 301, 303 (a), (b), (c), (d), (e), (f), (g), (h) and (r) and 307 (b) of the Communications Act of 1934, as amended, and section 4 of the Administrative Procedure Act.

8. In accordance with the provisions of § 1.764 of the rules, an original and 14 copies of all written comments shall be furnished the Commission.

Adopted: October 17, 1956.

Released: October 19, 1956.

FEDERAL COMMUNICATIONS COMMISSION,

[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 56-8610; Filed, Oct. 23, 1956; 8:57 a. m.]

[47 CFR Part 11]

[Docket No. 11853; FCC 56-1018]

SPECIAL INDUSTRIAL RADIO SERVICE

NOTICE OF PROPOSED RULE-MAKING

1. By Report and Order of September 7, 1955 (FCC 55-923), the Commission completely revised that part of its rules which governs the Special Industrial Radio Service. Threaded through this revision (which became effective on November 1, 1955) is a previously evolved concept that the Special Industrial use of radio within Standard Metropolitan Areas of 500,000 or more population (SMA's) must be sharply limited. This concept has materially aided the Commission in its attempt to achieve an orderly and efficient utilization of the frequencies presently available for assignment in this Service.

2. In devising the limitations which obtain with respect to the new §§ 11.503 through 11.511, the Commission proceeded with caution to the end that it would not permit a use in one of the above SMA's which would subsequently prove to be intolerable from the interference and frequency-congestion standpoints. In certain of the above sections (each of which governs a specific category of industrial activity) the Commission was more liberal, in some respects, than in the other sections. Thus, §§ 11.503 (agricultural activities), 11.507 (mining activities), 11.508 (specialized service and trade activities), and 11.509 (general industrial service and trade activities) permit operation within the above SMA's where it can be shown that the applicant's transmitting equipment will be used, at all times, in an area of low population density removed from the urbanized sections of the SMA involved. In contrast, § 11.504 (heavy construction activities) permits operation within SMA's only for "on-the-job" communications, and § 11.506 (manufacturing activities) permits such operation only for "yard area" communications.

3. The Commission's experience in administering its Special Industrial Rules reveals that exceptions of the type presently contained in the above §§ 11.503, 11.507, 11.508 and 11.509 have not materially resulted in or contributed to frequency-congestion and interference conditions in SMA's. In fact, it now appears that additional users can be accommodated in areas "of low population density removed from the urbanized sections of the Standard Metropolitan Area involved" without serious impairment to the ends sought to be served by the overall SMA concept. Accordingly, the Commission deems it entirely appropriate to amend §§ 11.504 and 11.506 with a view to removing some of the restrictions in this regard now prevailing in these sections. In addition to promoting a more efficient use of the frequencies allocated for use in the Special Industrial Radio Service, these amendments will make for increased uniformity among the various rules governing that Service.

4. In view of the foregoing, the Commission proposes to amend §§ 11.504 (b) and (c), 11.506 (b) and (c) (1) of Subpart K: Special Industrial Radio Service of Part 11—Rules Governing the Industrial Radio Services to read as they are set forth below. The authority for these amendments is contained in sections 4 (i) and 303 (d), (g) and (r) of the Communications Act of 1934, as amended.

5. Any interested person who is of the opinion that the proposed amendment should not be adopted, or should not be adopted in the form set forth above, may file with the Commission, on or before November 30, 1956, written data, views or arguments setting forth his comments. Comments in support of the proposed amendment may also be filed on or before the same date. Comments in reply to original comments may be filed on or before the tenth day following the last day for the filing of original comments. No additional comments may be filed unless (1) specifically requested by the Commission or (2) good cause for the filing of such additional comments is established. The Commission will consider all timely-filed comments prior to taking final action in this matter, and, if comments are submitted warranting oral argument, notice of the time and place of such oral argument will be given.

6. In accordance with the provisions of § 1.764 of the Commission's rules, any statement, brief or comment filed in the above-entitled proceeding must be accompanied by 14 additional copies thereof.

Adopted: October 18, 1956.

Released: October 19, 1956.

FEDERAL COMMUNICATIONS COMMISSION,

[SEAL] MARY JANE MORRIS, *Secretary.*

§ 11.504 *Heavy construction activities.* * * *

(b) *Eligibility.* Persons engaged in heavy construction activities, as that term is defined in this section, are eligible in this service when it is shown that the use of the Low Power Industrial Radio Service does not meet their operational requirements and that the use of radio will be exclusively in connection with the conduct of the heavy construction activities involved and either (1) that all such activities take place exclusively (i) in areas other than Standard Metropolitan Areas of 500,000 or more population and/or (ii) in areas of low population density removed from the urbanized sections of such Standard Metropolitan areas, or (2) that, in areas other than those described in subparagraph (1) of this paragraph, the use of radio will be exclusively for on-the-job communications at the site of a particular heavy construction project.

(c) *Limitation on station locations.* Each station authorized in accordance with the provisions of this section shall be located and operated at all times in areas other than Standard Metropolitan Areas of 500,000 or more population, or in areas of low population density removed from the urbanized sections of such Standard Metropolitan Areas. Exceptions to the above may be made by the Commission in specific cases and for limited periods of time when it is shown that one or more Base Stations, to be associated with a specified heavy construction project and to be located within one-quarter mile thereof, will be used exclusively in the conduct of that project; however, each authorization issued pursuant to this exception will be limited in term to one year, renewable on the same showing in the event the particular project continues beyond that period.

§ 11.506 *Manufacturing activities.* * * *

(b) *Eligibility.* Persons engaged in manufacturing activities, as that term is defined in this section, are eligible in this service when it is shown that the use of radio will be exclusively in connection with the conduct of the manufacturing activities involved and either (1) that those activities take place exclusively (i) in areas other than Standard Metropolitan Areas of 500,000 or more population and/or (ii) in areas of low population density removed from the urbanized sections of such Standard Metropolitan Areas, or (2) that the use of radio will be within the yard area for mobile service communications within areas other than those described in subparagraph (1) of this paragraph, and that the use of the Low Power Industrial Radio Service does not meet the operational requirements of the manufacturing activity otherwise found eligible under this paragraph.

(c) *Limitation on station location.* (1) Each station authorized in accordance with the provisions of paragraph (b) (1) of this section shall be located and operated at all times in areas other than Standard Metropolitan Areas of 500,000 or more population, or in areas of low population density removed from the urbanized sections of such Standard Metropolitan Areas.

[F. R. Doc. 56-8611; Filed, Oct. 23, 1956; 8:57 a. m.]

SECURITIES AND EXCHANGE COMMISSION

[17 CFR Part 230]

ACCELERATION POLICY

NOTICE OF EXTENSION OF TIME

The Securities and Exchange Commission has extended to November 15, 1956, the time for submitting written comments on the proposed note to § 230.460 (Rule 460) relative to the Commission's acceleration policy under the Securities Act of 1933.

Announcement of the proposed note was published August 9, 1956, in Release No. 3672 (21 F. R. 6282). The proposed note would specify certain of the more common situations where it is the policy of the Commission to deny acceleration of the effective date of a registration statement under the standards of section 8 (a) of the act.

The extension has been granted at the request of certain persons who desire further time to consider this proposal.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

OCTOBER 15, 1956.

[F. R. Doc. 56-8525; Filed, Oct. 23, 1956; 8:46 a. m.]

NOTICES

DEPARTMENT OF THE TREASURY

Bureau of Customs

[427.32]

LONG LENGTHS OF EXPANDING LINKS READILY SEPARABLE INTO WATCH BRACELETS

TARIFF CLASSIFICATION

OCTOBER 17, 1956.

The Bureau of Customs published a notice in the FEDERAL REGISTER dated September 6, 1956 (21 F. R. 6717), that the tariff classification of long lengths of expanding links readily separable into watch bracelets was under review. The Bureau, by its letter to the collector of customs at New York, New York, dated October 17, 1956, ruled that merchandise made of base metal consisting of expanding links, each about ½ inch long, in 10 or 11 link sections joined together with a short connecting link about ⅛ inch long which can readily be snapped open, imported in the piece in long lengths is properly classifiable under paragraph 1527 (c), Tariff Act of 1930, as modified, as unfinished watch bracelets, dutiable at the rate of 55 percent ad valorem if valued over 20 cents but not over $5 per dozen pieces or at the rate of 35 percent ad valorem if valued over $5 per dozen pieces. Previously it was the practice to classify this merchandise under paragraph 1527 (d), as modified, as materials of metal other than gold or silver suitable for use in the manufacture of articles provided for in paragraph 1527 (a), (b), or (c), dutiable at the rate of 40 percent ad valorem. Insofar as this ruling will result in the assessment of duty at a rate higher than that which has heretofore been assessed under a uniform and established practice, it will be applied only to such or similar merchandise entered, or withdrawn from warehouse, for consumption after 90 days after the date of publication of an abstract of this decision in a forthcoming issue of the weekly Treasury Decisions.

[SEAL] RALPH KELLY,
Commissioner of Customs.

[F. R. Doc. 56-8588; Filed, Oct. 23, 1956; 8:55 a. m.]

Federal Facilities Corporation

EXECUTIVE ASSISTANT AND CERTAIN OTHER DESIGNATED OFFICIALS

ORDER OF SUCCESSION

Under the authority conferred upon me by Treasury Department Order No. 129, Revision No. 2, dated April 22, 1955, I hereby designate my Executive Assistant and the following Officers of the Federal Facilities Corporation and the Internal Revenue Service, in the order of succession enumerated, to act as Administrator of Federal Facilities Corporation during the absence or disability of the Administrator of Federal Facilities Corporation, or when there is a vacancy in such office:

1. General Counsel of the Federal Facilities Corporation.
2. Director of the Office of Tin.
3. Executive Assistant to the Assistant Secretary of the Treasury.
4. Director of the Office of Synthetic Rubber.
5. District Director of Internal Revenue, Richmond, Virginia.

This order supersedes the order of succession established May 26, 1955.

[SEAL] LAURENCE B. ROBBINS,
Administrator.

OCTOBER 19, 1956.

[F. R. Doc. 56-8585; Filed, Oct. 23, 1956; 8:54 a. m.]

Office of the Secretary

[Treasury Dept. Order 150-43]

ASSISTANT TO THE COMMISSIONER

REDESIGNATION OF TITLE OF CERTAIN OFFICE

By virtue of the authority vested in me as Secretary of the Treasury, the office of Assistant Commissioner of Internal Revenue (Planning), in the Washington Headquarters Office of the Internal Revenue Service, as established in Treasury Department Order No. 150-24, dated April 10, 1953, is redesignated as the office of Assistant to the Commissioner.

The provisions of Treasury Department Order No. 150-24 are revised accordingly by this order.

Dated: October 5, 1956.

[SEAL] G. M. HUMPHREY,
Secretary of the Treasury.

[F. R. Doc. 56-8589; Filed, Oct. 23, 1956; 8:55 a. m.]

DEFENSE LENDING DIVISION

EXECUTIVE ASSISTANT AND CERTAIN OTHER DESIGNATED OFFICIALS; ORDER OF SUCCESSION

Under the authority conferred upon me by Treasury Department Order No. 129, Revision No. 2, dated April 22, 1955, I hereby designate my Executive Assistant and the following Officers, in the order of succession enumerated, to act for the Assistant Secretary of the Treasury with respect to the Defense Lending Division during the absense or disability of the Assistant Secretary of the Treasury, or when there is a vacancy in such office:

1. Chief Counsel, Office of Production and Defense Lending.
2. Director of Loans, Defense Lending Division.
3. Executive Assistant to the Assistant Secretary of the Treasury.
4. Assistant Director of Loans, Defense Lending Division.
5. District Director of Internal Revenue, Richmond, Virginia.

This order supersedes the order of succession established May 26, 1955.

[SEAL] LAURENCE B. ROBBINS,
Assistant Secretary of the Treasury.

OCTOBER 19, 1956.

[F. R. Doc. 56-8586; Filed, Oct. 23, 1956; 8:55 a. m.]

RECONSTRUCTION FINANCE CORPORATION

EXECUTIVE ASSISTANT AND CERTAIN OTHER DESIGNATED OFFICIALS; ORDER OF SUCCESSION

ORDER OF SUCCESSION

Under the authority conferred upon me by Treasury Department Order No. 129, Revision No. 2, dated April 22, 1955, I hereby designate my Executive Assistant and the following Officers of the Reconstruction Finance Corporation and the Internal Revenue Service, in the order of succession enumerated, to act as Chief Executive Officer of Reconstruction Finance Corporation during the absence or disability of the Chief Executive Officer of Reconstruction Finance Corporation, or when there is a vacancy in such office:

1. General Counsel of the Reconstruction Finance Corporation.
2. Director of the Office of Loan Administration and Liquidation.
3. Executive Assistant to the Assistant Secretary of the Treasury.
4. Chief of the Division of Loan Administration.
5. District Director of Internal Revenue, Richmond, Virginia.

This order supersedes the order of succession established May 26, 1955.

[SEAL] LAURENCE B. ROBBINS,
Assistant Secretary of the Treasury.

OCTOBER 19, 1956.

[F. R. Doc. 56-8587; Filed, Oct. 23, 1956; 8:55 a. m.]

DEPARTMENT OF STATE

Bureau of Security and Consular Affairs

[Public Notice 148]

CERTAIN FOREIGN PASSPORTS

VALIDITY

Under the provisions of section 212 (a) (26) of the Immigration and Nationality Act, a nonimmigrant alien who makes application for a visa or for admission into the United States is required to be in possession of a passport which is valid for a minimum period of six months from the date of expiration of the initial period of his admission into the United States or his contemplated initial period of stay authorizing him to return to the

country from which he came or to proceed to and enter some other country during such period. The regulations of the Secretary of State (22 CFR 42.36 (a)) further provide that every alien who applies for an immigrant visa and who is subject to the passport requirement must be in possession of a passport which is valid for at least sixty days beyond the period of validity of the immigrant visa issued to him. By reason of the foregoing requirements, certain foreign governments have entered into an agreement with the Government of the United States whereby their passports are recognized as valid for the return of the bearer to the country of the foreign-issuing authority for a period of six months beyond the expiration date specified in the passport. These agreements have the effect of extending the validity period of the foreign passport an additional six months notwithstanding the expiration date indicated in the passport. Notice is hereby given that the following foreign governments have concluded such an agreement with the Government of the United States:

Brazil, Canada, Cuba, Ethiopia, Germany (German Reisepass only), Guatemala, Iceland, Mexico, The Netherlands, Portugal, United Kingdom (nonimmigrants only).

Dated: October 15, 1956.

ROBERT F. CARTWRIGHT,
Acting Administrator, Bureau of Security and Consular Affairs.

[F. R. Doc. 56-8584; Filed, Oct. 23, 1956; 8:54 a. m.]

DEPARTMENT OF JUSTICE

Office of Alien Property

STATE OF NETHERLANDS FOR THE BENEFIT OF ELI DE LEEUW ET AL.

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property and Location

The State of the Netherlands for the benefit of:

Eli de Leeuw; Paula Landau; Pauline Dupont; Louis Korijn; Meyer, Henriette and Veronica Hirschel; Naatje Philips; Gerrit and Hendrik Vaz Nunes; Hendrika Kampmeyer; Coenraad and Sara Vink; Anna Wendt; Louise, Abraham and Samson de Miranda; Johanna Vlessing; Rebekka and Barend Schaap, L. S. Claim No. 541, $784.16 in the Treasury of the United States;

Esther van Collem; Felix Israel; Samuel Leendert and Tobias Boas; Jacques and Jacqueline Mot; Eva Korb-Mot; Arnold van Praagh, L. S. Claim No. 731, $1,568.32 in the Treasury of the United States;

Elisabet Leonard (formerly Weissmann), Isaac Leonard (formerly Weissman), L. S. Claim No. 798, $1,270.00 in the Treasury of the United States;

Barbara Spier; Samuel and Charles Knoek, L. S. Claim No. 809, $1,960.40 in the Treasury of the United States;

R. Maykels-Koningsberger; H. Maykels and R. Hartog-Maykels, L. S. Claim No. 839, $392.08 in the Treasury of the United States.

Netherlands Embassy, Office of the Financial Counselor, 25 Broadway, New York 4, New York.

Executed at Washington, D. C., on October 17, 1956.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 56-8592; Filed, Oct. 23, 1956; 8:55 a. m.]

STATE OF NETHERLANDS FOR THE BENEFIT OF SOPHIA MEIJER ET AL.

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property, and Location

The State of the Netherlands for the benefit of:

Sophia Meijer, Joseph Vredenburg, Julius Inglsesby, Juliette and Justus Philips, L. S. Claim No. 645, $1,364.47 in the Treasury of the United States;

Israel Polak, L. S. Claim No. 658, $2,728.94 in the Treasury of the United States;

Henriette and Leonard Snijder, L. S. Claim No. 683, $4,613.86 in the Treasury of the United States;

Salomon Roet, L. S. Claim No. 691, $2,540.71 in the Treasury of the United States;

Mrs. C. L. and Herman Rosenzweig and Hadosso Lichtblau, L. S. Claim No. 706, $4,093.41 in the Treasury of the United States.

Netherlands Embassy, Office of the Financial Counselor, 25 Broadway, New York 4, New York.

Executed at Washington, D. C., on October 17, 1956.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 56-8591; Filed, Oct. 23, 1956; 8:55 a. m.]

JOSEF HORAK

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property located in Washington, D. C., including all royalties accrued thereunder and all damages and profits recoverable for past infringement thereof, after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., and Property

Josef Horak, Eisenerz, Freiheitsplatz 5, Osterreich-Austria, Claim No. 42087, property described in Vesting Order No. 201 (8 F. R. 625, January 16, 1943) relating to United States Letters Patent No. 2,186,675.

Vesting Order No. 201.

Executed at Washington, D. C., on October 17, 1956.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 56-8590; Filed, Oct. 23, 1956; 8:55 a. m.]

STATE OF THE NETHERLANDS FOR THE BENEFIT OF ANNA DE LEEUW-DE LIEME ET AL.

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property, and Location

The State of the Netherlands for the benefit of:

Anna de Leeuw-de Lieme, L. S. Claim No. 562, $1,364.47 in the Treasury of the United States;

Henriette and Willy Levie and Emmy Steinke, L. S. Claim No. 573, $2,728.94 in the Treasury of the United States;

Caroline de Bruin-Levie, Emile and Abraham Levie, L. S. Claim No. 574, $1,364.47 in the Treasury of the United States;

Elisabeth Levie-Aptroot, Benjamin and Hein Levie, L. S. Claim No. 575, $1,364.47 in the Treasury of the United States;

Bertha Menko-Edersheim, L. S. Claim No. 600, $7,053.95 in the Treasury of the United States.

Netherlands Embassy, Office of the Financial Counselor, 25 Broadway, New York 4, New York.

Executed at Washington, D. C., on October 17, 1956.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 56-8593; Filed, Oct. 23, 1956; 8:55 a. m.]

STATE OF NETHERLANDS FOR THE BENEFIT OF HENDRICK DAMMEN ET AL.

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property, subject to any increase or decrease resulting from the administra-

tion thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property, and Location

The State of the Netherlands for the benefit of:

Hendrik Dammen, L. S. Claim No. 430, $3,324.87 in the Treasury of the United States;

Betsie Krom, Rosette Hofkamp, Evalina Groeneveld, Henry Citroen and Geertruida Zeehandelaar, L. S. Claim No. 445, $2,146.63 in the Treasury of the United States;

Hermine Dux; Louis and Rosalie Housman; Walter, Edwin, Robert, Richard and Percy Frowenfeld; Clara Dickson, Rena Friedman; Paul, Ernst and Max Kruger; Georg Pretzfelder and Henriette Wachsmann, L. S. Claim No. 451, $2,728.94 in the Treasury of the United States;

Isidore Hamburg, L. S. Claim No. 460, $2,052.93 in the Treasury of the United States;

Barend Hartlooper, L. S. Claim No. 466, $1,364.47 in the Treasury of the United States.

Netherlands Embassy, Office of the Financial Counselor, 25 Broadway, New York 4, New York.

Executed at Washington, D. C. on October 17, 1956.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 56-8594; Filed, Oct. 23, 1956; 8:56 a. m.]

STATE OF NETHERLANDS FOR THE BENEFIT OF MAARTJE ALSBERG ET AL.

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property, and Location

The State of the Netherlands for the benefit of:

Maartje Alsberg, L. S. Claim No. 268, $1,364.47 in the Treasury of the United States;

J. Bamberg, L. S. Claim No. 273, $2,728.94 in the Treasury of the United States;

Helena Helfrich-Baruch, L. S. Claim No. 276, $1,364.47 in the Treasury of the United States;

Joël Biet, L. S. Claim No. 291, $1,364.47 in the Treasury of the United States;

Marianne van Amersfoort, L. S. Claim No. 293, $4,689.34 in the Treasury of the United States.

Netherlands Embassy, Office of the Financial Counselor, 25 Broadway, New York 4, New York.

Executed at Washington, D. C., October 17, 1956.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 56-8595; Filed, Oct. 23, 1956; 8:56 a. m.]

STATE OF NETHERLANDS FOR THE BENEFIT OF SIGMOND JZN ET AL.

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property, and Location

The State of the Netherlands for the benefit of:

Sigmond Jzn, L. S. Claim No. 604, $6,091.08 in the Treasury of the United States;

Rachel Schaap and Sophie van Oven, L. S. Claim No. 713, $2,728.94 in the Treasury of the United States;

Daniel Schoyer, L. S. Claim No. 716, $1,364.47 in the Treasury of the United States;

Henriette and Leonard Snijder, L. S. Claim No. 733, $6,822.35 in the Treasury of the United States;

Helena Forster-Blog, Marianne van Adelsbergen and Jeltje Bommer, L. S. Claim No. 736, $6,822.35 in the Treasury of the United States.

Netherlands Embassy, Office of the Financial Counselor, 25 Broadway, New York 4, New York.

Executed at Washington, D. C., on October 17, 1956.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 56-8596; Filed, Oct. 23, 1956; 8:56 a. m.]

STATE OF NETHERLANDS FOR THE BENEFIT OF BENJAMIN PAIS ET AL.

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property, and Location

The State of the Netherlands for the benefit of:

Benjamin Pais; Roza Roeg-Pais; Hijman Roeg; Rebecca de Vries-Pais; Duifje Zinger-Pais, L. S. Claim No. 471, $8,782.75 in the Treasury of the United States;

Dolly Schoenberg; Molly van der Hoop; S. H. and D. Reiss; H. S. Reese; S. Bruchiss; J. and A. Simmons; R. Marx-Reiss, L. S. Claim No. 492, $1,364.47 in the Treasury of the United States;

Emmy Jitta, L. S. Claim No. 507, $4,093.41 in the Treasury of the United States;

Martijn Koster, L. S. Claim No. 546, $1,364.47 in the Treasury of the United States;

Abraham Kroonenburg; Jetje van der Leden; Bonney and Patricia de Willigen, L. S. Claim No. 549, $2,728.94 in the Treasury of the United States.

Netherlands Embassy, Office of the Financial Counselor, 25 Broadway, New York 4, New York.

Executed at Washington, D. C., on October 17, 1956.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 56-8597; Filed, Oct. 23, 1956; 8:56 a. m.]

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

[Anchorage 028919]

ALASKA

WITHDRAWING PUBLIC LANDS FOR SCHOOL PURPOSES

OCTOBER 18, 1956.

By virtue of the authority vested in the Secretary of the Interior by the act of May 31, 1938 (52 Stat. 593; 48 U. S. C. 353a), and pursuant to Departmental Order No. 2583, sec. 2.22 (a) of August 16, 1950, it is ordered as follows:

Subject to valid existing rights, the following-described public lands in Alaska are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and the mineral-leasing laws, and reserved under the jurisdiction of the Bureau of Indian Affairs, Department of the Interior for school purposes:

WRANGELL AREA

Beginning at a point located 264 feet south of Corner 47 of U. S. Survey 2321, thence
East, 3,867 feet;
South, 3,300 feet;
West, 1,320 feet to the line of mean high tide of Zimovia Strait;
Northwesterly, 4,575 feet along said line of mean high tide to a point due west of point of beginning;
East, 408 feet to point of beginning.

This tract to be identified as lot 4 of U. S. Survey No. 3403, unapproved.

The tract described contains 171.25 acres.

EARL J. THOMAS,
Acting Director.

[F. R. Doc. 56-8519; Filed, Oct. 23, 1956; 8:45 a. m.]

OREGON

NOTICE OF PROPOSED WITHDRAWAL AND RESERVATION OF LANDS

The Department of Agriculture has filed an application, Serial No. Oregon 05181, for the withdrawal of the lands described below, from all forms of appropriation under the general mining laws but excepting mineral leasing under the mineral leasing laws.

The applicant desires the land for purposes of a National Forest land exchange now being negotiated by the United States Forest Service.

For a period of 30 days from the date of publication of this notice, all persons who wish to submit comments, suggestions, or objections in connection with the proposed withdrawal may present their views in writing to the undersigned officer, Bureau of Land Management, Department of the Interior, 1001 N. E. Lloyd Blvd., P. O. Box 3861, Portland 8, Oregon.

If circumstances warrant it, a public hearing will be held at a convenient time and place, which will be announced.

The determination of the Secretary on the application will be published in the FEDERAL REGISTER. A separate notice will be sent to each interested party of record.

The lands involved in the application are:

WILLAMETTE MERIDIAN, OREGON

T. 35 S., R. 17 E.,
Sec. 4: Lots 2 and 3;
Sec. 5: Lot 1, SE¼NE¼, E½SE¼;
Sec. 8: E½E½;
Sec. 9: W½;
Sec. 17: All;
Sec. 19: Lots 1, 2, 3, 4, E½, E½W½;
Sec. 20: All;
Sec. 21: All;
Sec. 29: NE¼, SE¼NW¼, NE¼SW¼;
Sec. 34: W½SE¼.

Approximately 3,593.96 acres.

RUSSELL E. GETTY,
Acting State Supervisor.

SEPTEMBER 28, 1956.

[F. R. Doc. 56-8520; Filed, Oct. 23, 1956; 8:45 a. m.]

ATOMIC ENERGY COMMISSION

[Docket No. F-15]

AEROJET-GENERAL NUCLEONICS

NOTICE OF ISSUANCE OF FACILITY LICENSE

Please take notice that the Atomic Energy Commission has issued the facility license set forth below to Aerojet-General Nucleonics, San Ramon, California. In accordance with the procedures set forth in the Commission's rules of practice (10 CFR Part 2), the Commission will direct the holding of a formal hearing upon timely receipt of a request therefor from the applicant or an intervenor.

No. R-6

LICENSE

1. Subject to the conditions and requirements incorporated herein, the Atomic Energy Commission hereby licenses Aerojet-General Nucleonics, San Ramon, California (hereinafter referred to as "AGN"),

(a) Pursuant to Section 104 c. of the Atomic Energy Act of 1954 (hereinafter referred to as "the act"), and Title 10, CFR, Chapter 1, Part 50, "Licensing of Production and Utilization Facilities," to possess and operate as a utilization facility the nuclear reactor (hereinafter referred to as "the facility") designated below;

(b) Pursuant to the act and Title 10, CFR, Chapter 1, Part 70, "Special Nuclear Materials, Regulations," to receive, possess and use up to 700 grams of contained uranium 235 in uranium oxide (UO_2) as fuel for operation of the facility.

(c) Pursuant to the act and Title 10, CFR, Chapter 1, Part 30, "Licensing of By-Product Material," to possess, but not to separate from the fuel, such special nuclear and by-product material as may be produced from operation of the reactor.

2. This license applies to the nuclear reactor which is owned by AGN and located at San Ramon, California, and described in AGN's application dated May 23, 1956, and designated AGN-201.

3. This license shall be deemed to contain and be subject to the conditions specified in § 50.54 of Part 50 and § 70.32 of Part 70; is subject to all applicable provisions of the Atomic Energy Act of 1954 and rules, regulations and orders of the Atomic Energy Commission now or hereafter in effect, including the proposed "Standards for Protection Against Radiation" regulation (10 CFR Part 20) published in the FEDERAL REGISTER July 15, 1955; and is subject to any additional conditions specified or incorporated below.

4. The conditions and requirements contained in Appendix "A", attached hereto, are a part of this license.

5. This license is effective as of the date of issuance and shall expire at midnight, August 16, 1976, unless sooner terminated.

Date of Issuance: October 19, 1956.

Dated at Washington, D. C., this 19th day of October 1956.

For the Atomic Energy Commission.

H. L. PRICE,
Director,
Division of Civilian Application.

APPENDIX "A"

I. *Operating restrictions.* a. AGN shall operate the reactor in accordance with the procedures described in its application dated May 23, 1956, and supporting documents transmitted by AGN on August 31, 1956.

b. AGN shall not by-pass any control mechanism during the operation of the facility.

c. AGN shall not operate the reactor at power levels in excess of 100 milliwatts without previous authorization from the Commission.

II. *Records.* In addition to those otherwise required under this license, AGN shall keep the following records:

a. Reactor operating records, including power levels.

b. Record of in-pile irradiations.

c. Records showing radioactivity released or discharged into the air or water beyond the effective control of AGN as measured at the point of such release or discharge.

d. Records of emergency reactor scrams, including reasons for emergency shutdowns.

III. *Reports.* AGN shall make a prompt report to the Commission of any unusual operating incident of the reactor.

[F. R. Doc. 56-8626; Filed, Oct. 23, 1956; 8:58 a. m.]

CIVIL AERONAUTICS BOARD

[Docket Nos. 8127 and 7963]

CALIFORNIA EASTERN AVIATION, INC., ET AL.

NOTICE OF HEARING ON INTERLOCKING RELATIONSHIPS

In the matter of the joint applications of California Eastern Aviation, Inc., et al., for the approval of interlocking relationships under sections 408 and 409 of the Civil Aeronautics Act of 1938, as amended.

Notice is hereby given pursuant to the Civil Aeronautics Act of 1938, as amended, that hearing in the above-entitled proceeding is assigned to be held on November 5, 1956, at 10:00 a. m., e. s. t., in Room 1050, Temporary Building No. 5, Sixteenth Street and Constitution Avenue NW., Washington, D. C., before Examiner John A. Cannon.

Dated at Washington, D. C., October 18, 1956.

[SEAL] FRANCIS W. BROWN,
Chief Examiner.

[F. R. Doc. 56-8599; Filed, Oct. 23, 1956; 8:56 a. m.]

FEDERAL COMMUNICATIONS COMMISSION

[Docket No. 10268 etc.; FCC 56-996]

WJR, GOODWILL STATION, INC., ET AL.

ORDER REOPENING RECORD FOR FURTHER HEARING ON STATED ISSUES

In re applications of WJR, The Goodwill Station, Inc., Flint, Michigan, Docket No. 10268, File No. BPCT-967; Trebit Corporation, Flint, Michigan, Docket No. 10269, File No. BPCT-968; W. S. Butterfield Treatres, Inc., Flint, Michigan, Docket No. 10270, File No. BPCT-953; for construction permits for new television stations.

At a session of the Federal Communications Commission held at its offices in Washington, D. C. on the 17th day of October 1956;

The Commission having under consideration the opinion of the United States Court of Appeals for the District of Columbia made May 24, 1956 in the case of W. S. Butterfield Theatres, Inc., et al. v. Federal Communications Commission, and the Court's action of July 9, 1956, when it denied the Commission's Petition for Rehearing;

It appearing that in its opinion the Court of Appeals reversed and remanded this case to the Commission for further proceedings to determine the differences in transmitter site, programming and studio building proposals brought about by WJR's modification of its construction permit and to reconsider the grant to WJR in the light of the differences disclosed;

It further appearing that the court stated that one of the questions to be dealt with in the reconsideration is whether WJR's late revelation of its changed situation reflects upon its character and fitness as a licensee;

It is ordered, That the record herein is reopened and remanded for further hearing before an Examiner to be designated by the Chief Hearing Examiner and for the preparation of a supplemental Initial Decision in which, in light of the evidence adduced under the issues hereinafter specified, the grant of WJR's application will be reconsidered on a comparative basis with the applications of Trebit and of Butterfield;

It is further ordered, That the hearing be upon the following issues:

1. To determine the difference between the proposals advanced by WJR, The Goodwill Station, Inc., in its original application and those proposals advanced by it in its application for modification of its construction permit, insofar as those differences relate to the areas of transmitter site, programming and studio building.

2. To determine, in light of the facts, whether the time at which WJR filed its modification application reflects adversely upon WJR's character and fitness as a licensee.

It is further ordered, In the interest of expediting this proceeding, That the hearing ordered herein shall be held at the offices of the Commission in Washington, D. C. commencing no later than November 16, 1956.

Released: October 19, 1956.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 56-8612; Filed, Oct. 23, 1956; 8:57 a. m.]

[Docket No. 11288, etc., FCC 56M-963]

PONCE DE LEON BROADCASTING CO., INC., OF P. R. ET AL.

ORDER CONTINUING HEARING

In re applications of Ponce de Leon Broadcasting Co., Inc., of P. R., Mayaguez, Puerto Rico, Docket No. 11288, File No. BPCT-1906; Sucesion Luis Pirallo-Castellanos, Mayaguez, Puerto Rico, Docket No. 11811, File No. BPCT-2158; Department of Education of Puerto Rico, Mayaguez, Puerto Rico, Docket No. 11812, File No. BPCT-2159; for construction permits for new television stations.

The Hearing Examiner having under consideration a petition, filed on October 9, 1956, on behalf of the Department of Education of Puerto Rico, requesting that (1) the hearing in the above-entitled proceeding, now scheduled to be held in Washington, D. C., on October 29, 1956, be postponed until November 12, 1956; (2) that the period within which requests by parties for information from adversary parties to the proceeding pursuant to § 1.841 (e) of the Commission's rules, or petitions requesting the Examiner to add the so-called "Evansville" issue, authorized by the Commission's Order of Designation in the said proceeding, be extended from October 19, 1956, to October 24, 1956; and (3) that the date for the final pre-hearing conference, pursuant to § 1.841 (c) of the said rules be postponed from October 23, 1956, to October 31, 1956; and

It appearing that sufficient good cause has been set forth in the above petition to justify a grant of the relief requested herein; and

It further appearing that no opposition to a grant of the said petition has been filed by any of the other parties to the proceeding within the four-day period specified in § 1.745 of the Commission's rules;

It is ordered, This 16th day of October 1956, that the above petition be, and it is hereby, granted; that the period within which requests for information or petitions requesting the addition of the so-called "Evansville" issue be, and it is hereby, extended from October 19, 1956, to October 24, 1956; that the date for the final pre-hearing conference in the said proceeding is postponed from October 23, 1956, to October 31, 1956; and that the date for the commencement of the hearing in the said proceeding is postponed from October 29, 1956, until November 13, 1956.[1]

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 56-8613; Filed, Oct. 23, 1956; 8:58 a. m.]

[Docket Nos. 11565, 11566; FCC 56 M-958]

ROLLINS BROADCASTING OF DELAWARE, INC., AND FRANKLIN BROADCASTING CO.

ORDER CONTINUING HEARING

In re applications of Rollins Broadcasting of Delaware, Inc., Philadelphia, Pennsylvania, Docket No. 11565, File No. BP-9500; Lawrence M. C. Smith, d/b as Franklin Broadcasting Company, Philadelphia, Pennsylvania, Docket No. 11566, File No. BP-9633; for construction permits.

The Hearing Examiner having under consideration a joint Petition for Continuance filed October 15, 1956 on behalf of the applicants, requesting an indefinite continuance of the further hearing now scheduled for October 17, 1956; and

It appearing that counsel for the Broadcast Bureau has informally consented to a waiver of § 1.745 of the Commission's rules and to a grant of the instant petition; and

It further appearing that good cause for an indefinite continuance is shown by petitioners' allegation that the parties hope to achieve an agreement which will eliminate the necessity of a comparative hearing, and that the requested indefinite continuance will conduce to the orderly dispatch of the Commission's business; now therefore,

It is ordered, This 16th day of October 1956, that the above Petition for Continuance be and it is hereby granted, and the further hearing in this proceeding is continued from October 17, 1956 to a date to be fixed by subsequent order.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 56-8614; Filed, Oct. 23, 1956; 8:58 a. m.]

[Docket Nos. 11789, 11790; FCC 56M-970]

TRADEWINDS BROADCASTING CO. (WCBQ)

ORDER CONTINUING HEARING

In re applications of H. R. Lankford, tr/as The Tradewinds Broadcasting Company (WCBQ), Sarasota, Florida, for construction permit to replace expired construction permit; Docket No. 11789, File No. BP-10370; and for modification of construction permit; Docket No. 11790, File No. BMP-6920.

On the oral request of counsel for the applicant, and without objection by counsel for the other parties: *It is ordered*, This 17th day of October 1956, that the hearing now scheduled for October 22, 1956, is continued to Thursday, November 1, 1956, at 10:00 a. m., in the offices of the Commission, Washington, D. C.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 56-8615; Filed, Oct. 23, 1956; 8:58 a. m.]

[Docket Nos. 11804, 11805; FCC 56M-975]

RADIO WAYNE COUNTY, INC., AND RADIO NEWARK, INC.

STATEMENT AND ORDER GOVERNING HEARING

In re applications of Radio Wayne County, Inc., Newark, New York, Docket No. 11804, File No. BP-10316; Radio Newark, Inc., Newark, New York, Docket No. 11805, File No. BP-10527; for construction permits.

Appearances: Philip M. Baker, on behalf of Radio Wayne County, Inc.; Lenore G. Ehrig and Harry J. Daly, on behalf of Radio Newark, Inc.; and Thomas Fitzpatrick, on behalf of the Broadcast Bureau.

Pursuant to the provisions of §§ 1.813 and 1.841 of the Commission's rules, and in accordance with notice duly given, a prehearing conference in the above-entitled matter was held on October 17, 1956. Agreements among the parties, as set forth in the transcript of such prehearing conference, are formally approved by the Hearing Examiner, and the course of the hearing shall be governed by the procedure agreed upon; and, accordingly,

It is ordered, This 17th day of October 1956, that the pre-hearing conference be and it is continued to November 19, 1956, at 9:00 o'clock a. m., and the hearing presently scheduled for October 31, 1956, be and it is hereby continued to a date to be fixed at the further pre-hearing conference.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 56-8616; Filed, Oct. 23, 1956; 8:58 a. m.]

[Docket Nos. 11814, 11815; FCC 56M-966]

GREAT WESTERN RADIO CO. AND JOHN JACK BENTLEY

ORDER CONTINUING HEARING

In re applications of George Wayne Inglis and Elvis Leo Roberts, d/b as Great Western Radio Company, Midland, Texas, Docket No. 11814, File No. BP-10466; John Jack Bentley, Stanton, Texas; Docket No. 11815, File No. BP-10613; for construction permits.

[1] The date of the hearing is set for November 13, 1956, due to the fact that November 12, 1956, is a legal holiday in government service for the observance of Armistice Day which this year falls on Sunday, November 11, 1956.

The Hearing Examiner having under consideration the "Petition To Remove From Hearing Docket The Above Named Great Western Radio Company" filed on October 15, 1956, on behalf of Great Western Radio Company, along with an agreement attached to said petition between the Great Western Radio Company, applicant, and John Jack Bentley, applicant, indicating that said Bentley proposes to dismiss his application in the above-entitled proceeding;

It appearing that John Jack Bentley, applicant herein, has not filed any pleading respecting the dismissal of his application in the above-captioned proceeding;

It is therefore ordered, This 17th day of October 1956, that the pre-hearing conference presently scheduled for October 22, 1956, and the hearing now scheduled for November 5, 1956, be, and the same are hereby, continued without date.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 56-8617; Filed, Oct. 23, 1956; 8:58 a. m.]

[Docket Nos. 11825, 11826; FCC 56 M-967]

VICTORIA TELEVISION CO. AND ALKEK TELEVISION CO.

ORDER SETTING PRE-HEARING CONFERENCE

In re applications of O. L. Nelms d/b as Victoria Television Company, Victoria, Texas, Docket No. 11825, File No. BPCT-2084; Albert B. Alkek d/b as Alkek Television Company, Victoria, Texas, Docket No. 11826, File No. BPCT-2109; for construciton permits for new television stations.

It is ordered, This 17th day of October 1956, that all parties in the above-entitled proceeding, or their counsel, are directed to appear for a pre-hearing conference, pursuant to the provisions of §§ 1.813 and 1.841 of the Commission's rules, at the offices of the Commission in Washington, D. C., at 10:00 a. m., November 2, 1956, for the purpose of considering, among other things, the following matters:

(1) The necessity or desirability of simplification, clarification, amplification or limitation of the issues;

(2) Admissions of fact and of documents which will avoid unnecessary proof;

(3) The possibility of stipulating with respect to facts;

(4) Need, if any, for depositions;

(5) The date for the exchange of exhibits between the applicants, as required by § 1.841; and

(6) Such other matters as will be conducive to an expeditious conduct of the hearing.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 56-8618; Filed, Oct. 23, 1956; 8:58 a. m.]

[Docket No. 11827; FCC 56 M-974]

PRAIRIE BROADCASTING CO. (WPRE)

ORDER CONTINUING HEARING

In re application of Prairie Broadcasting Company (WPRE), Prairie du Chien, Wisconsin, Docket No. 11827, File No. BP-10155; for construction permit.

It is ordered, This 18th day of October 1956, on the Hearing Examiner's own motion, that the hearing in the above-entitled proceeding, which is now scheduled for November 13, 1956, be, and the same is hereby, continued to November 26, 1956, in the Commission's offices in Washington, D. C., at 10 o'clock a. m.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 56-8619; Filed, Oct. 23, 1956; 8:58 a. m.]

[Docket No. 11850; FCC 56-1002]

ALLOCATION PLAN FOR CLASS B FM BROADCAST STATIONS

NOTICE OF PROPOSED ALLOCATION

In the matter of amendment of the revised tentative allocation plan for Class B FM Broadcast Stations.

1. Notice is hereby given of further proposed rule making in the above-entitled matter.

2. It is proposed to amend the Revised Tentative Allocation Plan for Class B FM Broadcast Stations in the following manner:

General area	Channels	
	Delete	Add
Bridgeport-Danbury-Brookfield, Conn.	233, 268	236
Kingston, N. Y.	235	233
New Haven, Conn.	236	
Pittsfield, Mass.	268	

3. A request was submitted by station WGHF, Newtown (Bridgeport-Danbury-Brookfield area) Connecticut, for deletion of Channel No. 268 from the allocations of Bridgeport, Connecticut, and Pittsfield, Massachusetts, and reallocation of Channel No. 236 from New Haven, Connecticut, to Brookfield, Conneticut, for subsequent assignment there to station WGHF. Such changes will permit the interchangeability of programs of WGHF and WTMH, Providence, Rhode Island, without interference from other stations in the area.

4. Authority for the adoption of the proposed amendment is contained in sections 4 (i), 301, 303 (c), (d), (f), and (r), and 307 (b) of the Communications Act of 1934, as amended.

5. Any interested party who is of the opinion that the proposed amendment should not be adopted or should not be adopted in the form set forth herein, may file with the Commission on or before November 16, 1956 a written statement or brief setting forth his comments. Comments in support of the proposed amendment also may be filed on or before that same date. Comments or briefs in reply to the original comments may be filed within 10 days from the last day for filing said original comments or briefs. The Commission will consider all such comments that are submitted before taking action in this matter, and if any comments appear to warrant the holding of a hearing or oral argument, notice of the time and place of such hearing or oral argument will be given.

6. In accordance with the provisions of § 1.764 of the Commission's rules and regulations, an original and 14 copies of all statements, briefs, or comments shall be furnished the Commission.

Adopted: October 17, 1956.

Released: October 19, 1956.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 56-8620; Filed, Oct. 23, 1956; 8:58 a. m.]

FEDERAL POWER COMMISSION

[Docket No. G-11247]

ATLANTIC REFINING CO.

ORDER SUSPENDING PROPOSED CHANGES IN RATES

The Atlantic Refining Company (Atlantic), on September 17, 1956, tendered for filing proposed changes in the presently effective rate schedules for sales subject to the jurisdiction of the Commission. The proposed changes, which constitute increased rates, are contained in the following designated filings, which are proposed to become effective on the dates shown:

Description; Purchaser; Rate Schedule Designation; Effective Date[1]

Notice of Change, dated August 30, 1956; United Fuel Gas Company; Supplement No. 3 to Atlantic's FPC Gas Rate Schedule No. 63; November 1, 1956.

Notice of Change, dated August 29, 1956; United Fuel Gas Company; Supplement No. 2 to Atlantic's FPC Gas Rate Schedule No. 115; November 1, 1956.

The increased rates and charges proposed in the aforesaid filings have not been shown to be justified, and may be unjust, unreasonable, unduly discriminatory, or preferential, or otherwise unlawful.

The Commission finds: It is necessary and proper in the public interest and to aid in the enforcement of the provisions of the Natural Gas Act that the Commission enter upon a hearing concerning the lawfulness of the said proposed changes and that the above-designated supplements be suspended and the use thereof deferred as hereinafter ordered.

The Comission orders:

(A) Pursuant to the authority contained in sections 4 and 15 of the Natural

[1] The stated effective date is the first day after expiration of the required thirty days' notice, or the effective date proposed by Atlantic if later.

Gas Act and the Commission's general rules and regulations (18 CFR Chapter I), a public hearing be held upon a date to be fixed by notice from the Secretary concerning the lawfulness of said proposed changes in rates and charges; and, pending such hearing and decision thereon, the above-designated supplements be and the same hereby are suspended and the use thereof deferred until April 1, 1957, and until such further time as they are made effective in the manner prescribed by the Natural Gas Act.

(B) Neither the supplements hereby suspended nor the rate schedules sought to be altered thereby shall be changed until this proceeding has been disposed of, or until the period of suspension has expired, unless otherwise ordered by the Commission.

(C) Interested State commissions may participate as provided by §§ 1.8 and 1.37 (f) of the Commission's rule of practice and procedure (18 CFR 1.8 and 1.37 (f)).

Issued: October 18, 1956.

By the Commission.[1]

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 56-8521; Filed, Oct. 23, 1956; 8:46 a. m.]

[Docket No. G-11248]

G. H. VAUGHN

ORDER SUSPENDING PROPOSED CHANGE IN RATES

G. H. Vaughn (Vaughn), on September 10, 1956, tendered for filing a proposed change in the presently effective rate schedules for sales subject to the jurisdiction of the Commission. The proposed change, which constitutes an increased rate, is contained in the following designated filing which is proposed to become effective on the date shown:

Description; Purchaser; Rate Schedule Designation; Effective Date[2]

Notice of change dated September 1, 1956; H. L. Hunt; Supplement No. 6 to Vaughn's FPC Gas Rate Schedule No. 1; November 1, 1956.

The increased rates and charges proposed in the aforesaid filing have not been shown to be justified, and may be unjust, unreasonable, unduly discriminatory, or preferential, or otherwise unlawful.

The Commission finds: It is necessary and proper in the public interest and to aid in the enforcement of the provisions of the Natural Gas Act that the Commission enter upon a hearing concerning the lawfulness of the said proposed change, and that the above-designated supplement be suspended and the use thereof deferred as hereinafter ordered.

The Commission orders:

(A) Pursuant to the authority contained in sections 4 and 15 of the Natural Gas Act and the Commission's general rules and regulations (18 CFR Chapter I), a public hearing be held upon a date to be fixed by notice from the Secretary concerning the lawfulness of said proposed change in rates and charges; and, pending such hearing and decision thereon, the above-designated supplement be and the same hereby is suspended and the use thereof deferred until April 1, 1957, and until such further time as it is made effective in the manner prescribed by the Natural Gas Act.

(B) Neither the supplement hereby suspended, nor the rate schedule sought to be altered thereby shall be changed until this proceeding has been disposed of or until the period of suspension has expired, unless otherwise ordered by the Commission.

(C) Interested State commissions may participate as provided by §§ 1.8 and 1.37 (f) of the Commission's rules of practice and procedure (18 CFR 1.8 and 1.37 (f)).

Issued: October 18, 1956.

By the Commission.[1]

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 56-8522; Filed, Oct. 23, 1956; 8:46 a. m.]

[Docket No. G-11249]

M. H. MARR

ORDER SUSPENDING PROPOSED CHANGE IN RATES

M. H. Marr (Marr) on September 17, 1956, tendered for filing a proposed change in the presently effective rate schedules for sales subject to the jurisdiction of the Commission. The proposed change, which constitutes an increased rate is contained in the following designated filing which is proposed to become effective on the date shown:

Description; Purchaser; Rate Schedule Designation; Effective Date[2]

Notice of change, undated; Texas Eastern Transmission Corporation; Supplement No. 6 to Marr's FPC Gas Rate Schedule No. 3; November 1, 1956.

The increased rates and charges proposed in the aforesaid filing have not been shown to be justified; and may be unjust, unreasonable, unduly discriminatory, or preferential, or otherwise unlawful.

The Commission finds: It is necessary and proper in the public interest and to aid in the enforcement of the provisions of the Natural Gas Act that the Commission enter upon a hearing concerning the lawfulness of the said proposed change, and that the above-designated supplement be suspended and the use thereof deferred as hereinafter ordered.

The Commission orders:

(A) Pursuant to the authority contained in sections 4 and 15 of the Natural Gas Act and the Commission's general rules and regulations (18 CFR, Chapter I), a public hearing be held upon a date to be fixed by notice from the Secretary concerning the lawfulness of said proposed change in rates and charges; and, pending such hearing and decision thereon, the above-designated supplement be and the same hereby is suspended and the use thereof deferred until April 1, 1957, and until such further time as it is made effective in the manner prescribed by the Natural Gas Act.

(B) Neither the supplement hereby suspended, nor the rate schedule sought to be altered thereby shall be changed until this proceeding has been disposed of or until the period of suspension has expired, unless otherwise ordered by the Commission.

(C) Interested State commissions may participate as provided by §§ 1.8 and 1.37 (f) of the Commission's rules of practice and procedure (18 CFR 1.8 and 1.37 (f)).

Issued: October 18, 1956.

By the Commission.[1]

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 56-8523; Filed, Oct. 23, 1956; 8:46 a. m.]

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[1] Commissioner Digby dissenting.

[2] The stated effective date is the first day after expiration of the required thirty days' notice, or the effective date proposed by Vaughn if later.

[2] The stated effective date is the first day after expiration of the required thirty-days' notice, or the effective date proposed by Marr if later.

HOUSING AND HOME FINANCE AGENCY

Public Housing Administration

CHIEF, MORTGAGE SERVICING SECTION

DEEDS OF TRUST

Effective October 1, 1956, the Chief of the Mortgage Servicing Section is designated the successor in office to the Director of the former Mortgage Servicing Branch, and as such he may perform the functions of trustee under deeds of trust heretofore or hereafter executed in which the United States of America and/or the Public Housing Administration has an interest.

Date approved: October 16, 1956.

[SEAL] CHARLES E. SLUSSER, *Commissioner.*

[F. R. Doc. 56-8524; Filed, Oct. 23, 1956; 8:46 a. m.]

INTERSTATE COMMERCE COMMISSION

[Notice 135]

MOTOR CARRIER APPLICATIONS

OCTOBER 19, 1956.

The following applications are governed by the Interstate Commerce Commission's special rules governing notice of filing of applications by motor carriers of property or passengers and by brokers under sections 206, 209, and 211 of the Interstate Commerce Act and certain other procedural matters with respect thereto. (FEDERAL REGISTER Volume 21, pages 7339, 7340, § 1.241, September 26, 1956.)

All hearings will be called at 9:30 o'clock a. m., United States Standard Time, unless otherwise specified.

APPLICATIONS ASSIGNED FOR ORAL HEARING OR PRE-HEARING CONFERENCE

MOTOR CARRIERS OF PROPERTY

No. MC 340 Sub 11, filed April 30, 1956, QUERNER TRUCK LINES, INC., 1131 Austin Street, San Antonio, Tex. Applicant's representative: Joe T. Lanham, Perry-Brooks Building, Austin, Tex. Issues published in FEDERAL REGISTER of May 16, 1956.

HEARING: December 10, 1956, at The Hilton Hotel, San Antonio, Texas, before Examiner David Waters.

No. MC 531 Sub 68, filed July 2, 1956, YOUNGER BROTHERS, INC., P. O. Box 14287, Houston, Tex. Applicant's representative: Ewell H. Muse, Jr., Suite 415, Perry Brooks Building, Austin, Tex. Issues published in FEDERAL REGISTER of July 25, 1956.

HEARING: December 5, 1956, at the Jung Hotel, New Orleans, La., before Examiner Richard H. Roberts.

No. MC 665 Sub 51, filed June 8, 1956, MISSOURI - ARKANSAS TRANSPORTATION COMPANY, a corporation, 1505 Maiden Lane, Joplin, Mo. Issues published in FEDERAL REGISTER of June 27, 1956.

HEARING: November 27, 1956, at the Arkansas Public Service Commission, Little Rock, Ark., before Joint Board No. 217.

No. MC 665 Sub 52, filed July 30, 1956, MISSOURI - ARKANSAS TRANSPORTATION COMPANY, 1505 Maiden Lane, Joplin, Mo. Issues published in FEDERAL REGISTER of September 6, 1956.

HEARING: December 5, 1956, at the Kansas State Corporation Commission, Topeka, Kansas, before Joint Board No. 39.

No. MC 730 Sub 86, filed October 1, 1956, PACIFIC INTERMOUNTAIN EXPRESS CO., 299 Adeline St., Oakland, Calif. For authority to operate as a *common carrier*, transporting: *General commodities, including commodities requiring special equipment*, but excepting those of unusual value, Class A and B explosives, household goods as defined by the Commission, and commodities in bulk, in connection with applicant's authorized regular route operations over U. S. Highways 99, 99-E, and 126 between Los Angeles, Calif. and Portland, Oreg., U. S. Highway 40 between San Francisco, Calif. and Sacramento, Calif., U. S. Highway 99-W between Davis Junction, Calif. and Red Bluff, Calif., U. S. Highway 24 between Woodland, Calif. and Yuba City, Calif., and U. S. Highway 99-W between Junction City, Oreg. and Portland, Oreg., serving all intermediate points north of Sacramento on the above-indicated routes between (1) Los Angeles, Calif. and Portland, Oreg., (2) Davis Junction, Calif. and Red Bluff, Calif., and (3) Junction City, Oreg. and Portland, Oreg., without restrictions, and to and from the off-route points of Hillsboro and Gresham, Oreg., without restrictions; and Sacramento, San Francisco, Los Angeles, all intermediate points on the applicable portions of the above-indicated routes routes between those three points, the off-route points of Alameda and San Leandro, Calif., and those off-route points comprising (a) the area defined in the Los Angeles, Calif. Commercial Zone and the Los Angeles Harbor Commercial Zone, excluding Los Angeles, and (b) an area in Los Angeles County on and south of U. S. Highway 66 and east of the Los Angeles Harbor Commercial Zone, restricted to traffic moving to or from authorized points in California north of Sacramento, Calif., or to traffic transported by carrier to or from points outside of California.

NOTE: In Certificate No. MC 55905, acquired by applicant pursuant to proceedings in No. MC-F 5859, in connection with the above-specified operations, applicant is authorized as follows: "Service is authorized to and from all intermediate points north of Sacramento on the above-described regular routes between Los Angeles, Calif. and Portland, Oreg., between Davis Junction, Calif. and Red Bluff, Calif., and between Junction City, Oreg. and Portland, Oreg., without restrictions, and to and from the off-route points of Hillsboro and Gresham, Oreg., without restriction; and to and from the following points restricted to traffic moving to or from authorized points in California and Oregon north of Sacramento, Calif.; Sacramento, San Francisco, Los Angeles, all intermediate points on the applicable portions of the above-described routes between those three points, the off-route points of Alameda and San Leandro, Calif., and those off-route points comprising (a) the area defined in the Los Angeles, Calif. Commercial Zone and Los Angeles Harbor Commercial Zone, excluding Los Angeles, and (b) an area in Los Angeles County on and south of U. S. Highway 66 and east of the Los Angeles Harbor Commercial Zone." By this application, applicant seeks the use of additional gateways on traffic moving over its line to and from points outside the State of California. Applicant is authorized to conduct operations in Colorado, Utah, Wyoming, Nevada, California, Idaho, Kansas, Missouri, Illinois, Washington, Oregon, and Montana.

HEARING: December 6, 1956, in Room 226, Old Mint Building, Fifth and Mission Sts., San Francisco, Calif., before Joint Board No. 75.

No. MC 730 Sub 89, filed October 8, 1956, PACIFIC INTERMOUNTAIN EXPRESS CO., 299 Adeline St., Oakland, Calif. Applicant's representatives: W. T. Cannon, 299 Adeline St., Oakland 4, Calif., and A. S. Glikbarg, 155 Sansome St., San Francisco, Calif. For authority to operate as a *common carrier*, over irregular routes, transporting: *Petroleum* and *petroleum products*, in bulk, in tank vehicles, from points in Nevada to points in Idaho south of the Idaho County Line, California, Oregon, Nevada and Utah. Applicant is authorized to conduct operations in California, Arizona, Utah, Nevada, Washington, Montana, Idaho, and Oregon.

HEARING: December 5, 1956, in Room 226, Old Mint Bldg., Fifth and Mission Sts., San Francisco, Calif., before Examiner F. Roy Linn.

No. MC 1263 Sub 9, filed February 1, 1956, J. H. McCARTY, doing business as J. H. McCARTY TRUCK LINE, Trenton, Mo. Applicant's representative: Carll V. Kretsinger, Suite 1014-18 Temple Building, Kansas City 6, Mo. Issues published in FEDERAL REGISTER of February 29, 1956.

HEARING: December 4, 1956, at the Hotel Pickwick, Kansas City, Mo., before Examiner William J. Cave.

No. MC 1872 Sub 38, filed May 7, 1956, RULON C. ASHWORTH, JOSEPHINE G. ASHWORTH, RALPH G. ASHWORTH, AND RULON C. ASHWORTH, JR., doing business as ASHWORTH TRANSFER COMPANY, 1526 South 6th West, Salt Lake City, Utah. Applicant's representative: Harry D. Pugsley, Continental Building, Salt Lake City 1, Utah. Issues published FEDERAL REGISTER of May 23, 1956.

HEARING: December 10, 1956, at the Utah Public Service Commission, Salt Lake City, Utah, before Examiner James I. Carr.

No. MC 2900 Sub 86, filed August 22, 1956, GREAT SOUTHERN TRUCKING COMPANY, 1863 Clarkson St., P. O. Box 2408, Jacksonville 3, Fla. Issues published in FEDERAL REGISTER of September 6, 1956.

HEARING: December 6, 1956, at the U. S. Court Rooms, Columbia, S. C., before Joint Board No. 177.

No. MC 4405 Sub 277, filed July 5, 1956, DEALERS TRANSIT, INC., 12601 South Torrence Avenue, Chicago 33, Ill. Applicant's representative: James W. Wrape, 2111 Sterick Building, Memphis 3, Tenn. Issues published in FEDERAL REGISTER of July 25, 1956.

HEARING: December 7, 1956, at the New Customs House, Denver, Colo., before Examiner James I. Carr.

No. MC 4405 Sub 278, filed July 5, 1956, DEALERS TRANSIT, INC., 12601 South Torrence Avenue, Chicago 33, Ill. Applicant's representative: James W. Wrape, 2111 Sterick Bldg., Memphis 3, Tenn. Issues published in FEDERAL REGISTER of July 25, 1956.

HEARING: December 6, 1956, at the Jung Hotel, New Orleans, La., before Examiner Richard H. Roberts.

No. MC 4405 Sub 279, filed July 5, 1956, DEALERS TRANSIT, INC., 12601 South Torrence Avenue, Chicago 33, Ill. Applicant's representative: James W. Wrape, 2111 Sterick Building, Memphis 3, Tenn. Issues published in FEDERAL REGISTER of September 6, 1956.

HEARING: December 3, 1956, in Room 226, Old Mint Bldg., Fifth and Mission Sts., San Francisco, Calif., before Examiner F. Roy Linn.

No. MC 4405 Sub 282, filed September 28, 1956, DEALERS TRANSIT, INC., 12601 South Torrence Avenue, Chicago 33, Ill. Applicant's representative: James W. Wrape, Sterick Building, Memphis, Tenn. For authority to operate as a *common carrier*, over irregular routes, transporting: (1) (a) *Trailers* and *semi-trailers*, other than those designated to be drawn by passenger automobiles, and *trailer chassis*, in initial movements, in truckaway and driveaway service, (b) *truck* and *trailer bodies*, assembled or unassembled, from Portland, Oreg., to points in Arizona, California, Colorado, Idaho, Montana, Nevada, New Mexico, Oregon, Utah, Washington and Wyoming, and (2) *Tractors*, other than farm tractors, in secondary driveaway movements, only when drawing trailers moving in initial driveaway movements, from Portland, Oreg., to points in Arizona,

Nevada and Oregon. Applicant is authorized to conduct operations throughout the United States.

HEARING: December 12, 1956, at 538 Pittock Block, Portland, Oreg., before Examiner Allen F. Borroughs.

No. MC 5111 Sub 8, filed August 13, 1956, TOM SMITH, doing business as SMITH'S FILM SERVICE, 316 West Franklin, White Hall, Ill. Applicant's representative: Mack Stephenson, 208 East Adams Street, Springfield, Ill. Issues published in FEDERAL REGISTER of August 29, 1956.

HEARING: December 4, 1956, at the Desoto Hotel, St. Louis, Mo., before Joint Board No. 46.

No. MC 6945 Sub 25, filed October 4, 1956, THE NATIONAL TRANSIT CORPORATION, 1687 West Fort Street, Detroit 16, Mich. Applicant's representative: Thomas I. Wattles, Dime Bldg., Detroit 26, Mich. For authority to operate as a *common carrier*, transporting: *General commodities*, except those of unusual value, livestock, Class A and B explosives, matches, household goods as defined by the Commission, commodities in bulk, other than metal scrap in bulk, and commodities requiring special equipment, serving to and from the Ford Motor Company Parts and Equipment Division Plant, located near Rawsonville, Washtenaw County, Mich., as an off-route point in connection with applicant's authorized regular route operations. Applicant is authorized to conduct operations in Indiana, Kentucky, Michigan, and Ohio.

HEARING: November 29, 1956, at the Olds Hotel, Lansing, Mich., before Joint Board No. 76.

No. MC 8681 Sub 43, filed June 8, 1956, WESTERN AUTO TRANSPORTS, INC., 430 South Navajo Street, Denver, Colo. Applicant's representative: Louis E. Smith, 1800 N. Meridian Street, Suite 503 Indianapolis 2, Ind. Issues published in FEDERAL REGISTER of June 27, 1956.

HEARING: December 4, 1956, at the New Customs House, Denver, Colo., before Examiner James I. Carr.

No. MC 8681 Sub 47, filed June 8, 1956, WESTERN AUTO TRANSPORTS, INC., 430 South Navajo Street, Denver, Colo. Applicant's representative: Louis E. Smith, 1800 North Meridian Street, Suite 503, Indianapolis 2, Ind. Issues published in FEDERAL REGISTER of June 27, 1956.

HEARING: December 10, 1956, at 538 Pittock Block, Portland, Oreg., before Examiner Allan F. Borroughs.

No. MC 8681 Sub 49, filed July 30, 1956, WESTERN AUTO TRANSPORTS, INC., 430 S. Navajo St., Denver 9, Colo. Applicant's representative: Louis E. Smith, 1800 N. Meridian St., Indianapolis 2, Ind. Issues published in FEDERAL REGISTER of August 15, 1956.

HEARING: December 5, 1956, at the New Customs House, Denver, Colo., before Examiner James I. Carr.

No. MC 8681 Sub 50, filed July 30, 1956, WESTERN AUTO TRANSPORTS, INC., 430 S. Navajo St., Denver 9, Colo. Applicant's representative: Louis E. Smith, 1800 N. Meridian St., Indianapolis 2, Ind. Issues published in FEDERAL REGISTER of August 15, 1956.

HEARING: December 7, 1956, at the Jung Hotel, New Orleans, La.; before Examiner Richard H. Roberts.

No. MC 9895 Sub 85, filed June 16, 1956, R. B. "DICK" WILSON, INC., P. O. Box 838, Denver, Colo. Applicant's representative: Marion F. Jones, Suite 526 Denham Building, Denver 2, Colo. Issues published in FEDERAL REGISTER of July 4, 1956.

HEARING: November 29, 1956, at the New Customs House, Denver, Colo., before Examiner James I. Carr.

No. MC 9895 Sub 87, filed September 24, 1956, R. B. "DICK" WILSON, INC., East 59th Avenue and Highway 6, P. O. Box 283, Denver, Colo. Applicant's representative: Marion F. Jones, 526 Denham Building, Denver 2, Colo. For authority to operate as a *common carrier*, over irregular routes, transporting: *Molasses*, in bulk, in tank vehicles, between Denver, Colo., and points within five miles thereof, on the one hand, and, on the other, points in Wyoming, and those in Nebraska and Kansas on and west of U. S. Highway 183, and those in South Dakota in and west of Perkins, Meade, Pennington, Washabaugh, and Shannon Counties.

HEARING: November 29, 1956, at the New Customs House, Denver, Colo., before Examiner James I. Carr.

No. MC 11185 Sub 96, filed May 14, 1956, J-T TRANSPORT COMPANY, INC., 3501 Manchester Trafficway, Kansas City, Mo. Applicant's representative: James W. Wrape, 2111 Sterick Building, Memphis 3, Tenn. Issues published in FEDERAL REGISTER of May 30, 1956.

HEARING: December 3, 1956, at the Baker Hotel, Dallas, Texas, before Examiner David Waters.

No. MC 11185 Sub 97, filed May 14, 1956, J-T TRANSPORT COMPANY, INC., 3501 Manchester Trafficway, Kansas City, Mo. Applicant's representative: James W. Wrape, 2111 Sterick Bldg., Memphis 3, Tenn. Issues published in FEDERAL REGISTER of May 30, 1956.

HEARING: December 3, 1956, at the Baker Hotel, Dallas, Texas, before Examiner David Waters.

No. MC 13062 Sub 6, filed October 8, 1956, SUTTON TRANSFER, INC., 808 National Ave., Lexington, Ky. Applicant's representative: Ollie L. Merchant, 712 Louisville Trust Bldg., Louisville 2, Ky. For authority to operate as a *common carrier*, over regular routes, transporting: *General commodities*, except those of unusual value, Class A and B explosives, household goods as defined by the Commission, commodities in bulk, and commodities requiring special equipment, other than those requiring refrigeration, between (1) Winchester, Ky. and Louisville, Ky., from Winchester over U. S. Highway 60 to Louisville, and return over the same route, restricted against pickup of shipments at any intermediate point, and on east-bound movements restricted against delivery of shipments at any intermediate point west of the eastern city limits of Lexington; (2) Louisville, Ky. and Wilmore, Ky., from Louisville over U. S. Highway 60 to junction with Parkers Mill Road, an unnumbered County highway, thence south over Parkers Mill Road to junction with Lane Allen Road, an unnumbered County highway, thence east over Lane Allen Road to junction with Rosemont Garden St. thence over Rosemont Garden St. to junction U. S. Highway 27, thence over U. S. Highway 27, to Nicholasville, and thence over Kentucky Highway 29 to Wilmore, and return over the same route, serving the intermediate point of Nicholasville, Ky. and points between Nicholasville and Wilmore; (3) Stanford, Ky. and Lexington, Ky., from Stanford over U. S. Highway 27 to Lexington and return over the same route, serving all intermediate points; (4) Stanford, Ky. and Camp Dick Robinson, Ky., from Stanford to Danville, Ky. over U. S. Highway 150, thence over Kentucky Highway 34 to Camp Dick Robinson, and return over the same routes, serving all intermediate points; (5) Danville, Ky. and Harrodsburg, Ky., from Danville over Kentucky Highway 35 to Harrodsburg and return over the same route, serving all intermediate points. Applicant is authorized to conduct operations in Kentucky.

NOTE: This application is filed to obtain a Certificate of Public Convenience and Necessity authorizing continuance of interstate operations conducted under the second proviso of Section 206 (a) (1) of the Interstate Commerce Act, supported by intrastate certificates on file with this Commission. This application will be processed concurrently with No. MC-F 6324 published in the July 11, 1956 issue, page 5156.

HEARING: November 29, 1956, at the Department of Motor Transportation, State Office Building, Frankfort, Ky., before Joint Board No. 105.

No. MC 17037, JOHN CURRY, INC., Philadelphia, Pa. Applicant's representative: Robert H. Shertz, 811-819 Lewis Tower Building, 225 South Fifteenth St., Philadelphia 2, Pa. (PETITION FOR CLARIFICATION). In a petition filed June 14, 1956, John Curry, Inc., which holds a certificate in No. MC 17037 to operate, in interstate or foreign commerce, over irregular routes, (1) of newspapers from Philadelphia, Pa., to Washington, D. C., points and places in that part of New Jersey south and west of a line beginning at Trenton, N. J., and extending in an easterly direction to Robbinsville, N. J., thence in a southeasterly direction to New Egypt, N. J., and thence in a southerly direction to Atlantic City, N. J., and those in Delaware on and north of a line extending in an easterly direction from the junction of the Pennsylvania-Maryland-Delaware State Lines through Wilmington to Delaware River, including the points named, traversing Maryland for operating convenience only, and (2) of paper and paper products from Philadelphia, Pa., to Wilmington, Del., and points and places in that part of New Jersey specified above, requests that it be authorized to continue as in the past to lease vehicles with drivers to shippers in conducting its operations under the said certificate, and it seeks either an exemption from § 207.6 of the Commission's leasing regulations or a redescription of its operating authority so as to read as follows:

To lease vehicles with drivers to shippers for the transportation of paper and paper products, over irregular routes, from Philadelphia, Pa., to Wilmington, Delaware and points in that part of New Jersey south and west of a line beginning at Trenton, New Jersey, and extending in an easterly direction to Robbinsville, N. J., thence in a southeasterly direction to New Egypt, N. J., and thence in a southerly direction to Atlantic City, N. J.

Upon consideration of the petition, and for good cause appearing, Division 1 of the Commission by order entered August 28, 1956, accepted the petition for filing, but on its own motion reopened the proceeding for an oral hearing and for such determination, action, or relief thereunder as the facts may warrant.

HEARING: November 28, 1956, at the Office of the Interstate Commerce Commission, Washington, D. C., before Examiner Harold W. Angle.

No. MC 24379 Sub 22, filed October 1, 1956, LONG TRANSPORTATION COMPANY, a corporation, 3755 Central Avenue, Detroit, Mich. Applicant's representative: Robert H. Levy, 39 South La Salle St., Chicago 3, Ill. For authority to operate as a *common carrier*, over a regular route, transporting: *General commodities*, except those of unusual value, Class A and B explosives, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment, between Detroit, Mich., and Port Huron, Mich., over U. S. Highway 25, serving no intermediate points, as an alternate route for operating convenience only, in connection with applicant's authorized regular route operations (a) between Coldwater, Mich., and Port Huron, Mich., (b) between Bay City, Mich., and Fostoria, Ohio, (c) between Lansing, Mich., and Pittsburgh, Pa., and (d) between Chicago, Ill., and Detroit, Mich. Applicant is authorized to conduct regular route operations in Illinois, Indiana, Michigan, New Jersey, New York, Ohio, and Pennsylvania, and irregular route operations in New Jersey, New York, and Pennsylvania.

HEARING: November 29, 1956, at the Olds Hotel, Lansing, Mich., before Joint Board No. 76.

No. MC 26907 Sub 12, filed July 24, 1956, RIPON TRUCKING CO., a Corporation, Oshkosh Street, Ripon, Wis. Applicant's representative: Edward Solie, 1 South Pinckney Street, Madison 3, Wis. Issues published in FEDERAL REGISTER of August 8, 1956.

HEARING: November 26, 1956, at the Wisconsin Public Service Commission, Madison, Wis., before Examiner James H. Gaffney.

No. MC 29566 Sub 44, filed July 2, 1956, SOUTHWEST FREIGHT LINES, INC., 1400 Kansas Avenue, Kansas City, Kans. Issues published in FEDERAL REGISTER of July 18, 1956.

HEARING: December 7, 1956, at the Hotel Pickwick, Kansas City, Mo., before Examiner William J. Cave.

No. MC 29886 Sub 86, filed June 14, 1956, DALLAS & MAVIS FORWARDING CO., INC., 4000 W. Sample Street, South Bend, Ind. Applicant's representative: Charles M. Pieroni, 523 Johnson Building, Muncie, Ind. Issues published in FEDERAL REGISTER of June 27, 1956.

HEARING: December 11, 1956, in Room 852, U. S. Custom House, 610 South Canal Street, Chicago, Ill., before Examiner Michael B. Driscoll.

No. MC 29886 Sub 87, filed June 25, 1956, DALLAS & MAVIS FORWARDING CO., INC., 4000 W. Sample St., South Bend, Ind. Applicant's representative: Charles M. Pieroni, 523 Johnson Bldg., Muncie, Ind. Issues published in FEDERAL REGISTER of July 11, 1956.

HEARING: December 11, 1956, in Room 852, U. S. Custom House, 610 South Canal Street, Chicago, Ill., before Examiner Michael B. Driscoll.

No. MC 30319 Sub 67, filed May 7, 1956, SOUTHERN PACIFIC TRANSPORT COMPANY, a Corporation, 810 North San Jacinto Street, P. O. Box 4054, Houston, Tex. Applicant's representative: Edwin N. Bell, Southern Pacific Lines, Texas and New Orleans Railroad Co., Houston 2, Tex. Issues published in FEDERAL REGISTER of May 30, 1956.

HEARING: December 7, 1956, at the Federal Office Building, Franklin & Fannin Streets, Houston, Texas, before Joint Board No. 32.

No. MC 30837 Sub 207, filed August 20, 1956, KENOSHA AUTO TRANSPORT CORPORATION, 4519—76th St., Kenosha, Wis. Issues published in FEDERAL REGISTER of September 6, 1956.

HEARING: December 4, 1956, in Room 226, Old Mint Bldg., Fifth and Mission Sts., San Francisco, Calif., before Examiner F. Roy Linn.

No. MC 30897 Sub 9, filed July 18, 1956, CONSOLIDATED FREIGHT COMPANY, a corporation, 100 Carroll Street, Saginaw, Mich. Applicant's representative: Robert A. Sullivan, 2606 Guardian Building, Detroit 26, Mich. Issues published in FEDERAL REGISTER of September 6, 1956.

HEARING: November 29, 1956, in Room 255, New Post Office Building, Columbus, Ohio, before Joint Board No. 117.

No. MC 30980 Sub 3, filed June 4, 1956, CHARLES A. TARANTOLA, doing business as SOUTHAMPTON HAULING COMPANY, 4999 Fayler Avenue, St. Louis, Mo. Applicant's representative: Joseph R. Nacy, 117 West High St., Jefferson City, Mo. Issues published in FEDERAL REGISTER of June 20, 1956.

HEARING: November 30, 1956, at the Desoto Hotel, St. Louis, Mo., before Examiner William J. Cave.

No. MC 35396 Sub 20, filed September 13, 1956, ARNOLD LIGON, doing business as ARNOLD LIGON TRUCK LINE, 208 Darby St., Princeton, Ky. Applicant's representative: Robert M. Pearce, 711 McClure Bldg., Frankfort, Ky. For authority to operate as a *common carrier*, over irregular routes, transporting: *Radioactive materials*, in special cylinders and tanks on special frames, between the site of the Atomic Energy Commission Plant at or near Kevil, Ky. and the sites of the Atomic Energy Commission Plants at or near Sargents, Ohio and Oak Ridge, Tenn. Applicant is authorized to conduct operations in Kentucky, Indiana, Ohio, Pennsylvania, West Virginia, and Tennessee.

HEARING: November 26, 1956, at the U. S. Court Rooms, Paducah, Ky., before Joint Board No. 209.

No. MC 41404 Sub 13, filed May 25, 1956, C. E. WELDON, doing business as ARGO COLLIER TRUCK LINES, Fulton Highway, Martin, Tenn. Applicant's representative: Joseph M. Scanlan, 111 W. Washington St., Chicago 2, Ill. Issues published in FEDERAL REGISTER of June 13, 1956.

HEARING: November 30, 1956, in Room 852, U. S. Custom House, 610 South Canal Street, Chicago, Ill., before Examiner Michael B. Driscoll.

No. MC 42469 Sub 1, filed July 23, 1956, JOSEPH ARTH, 1430 Marcus Avenue, St. Louis, Mo. Applicant's representative: A. A. Marshall, 305 Buder Building, St. Louis 1, Mo. Issues published in FEDERAL REGISTER of August 15, 1956.

HEARING: December 3, 1956, at the Desoto Hotel, St. Louis, Mo., before Joint Board No. 135.

No. MC 48479 Sub 6, filed May 9, 1956, amended, FRIGIDWAYS, INC., 253 W. Virginia Ave., P. O. Box 2503, Memphis, Tenn. Applicant's representative: Frank B. Hand, Jr., Transportation Bldg., Washington 6, D. C. Issues published in FEDERAL REGISTER of May 23, 1956, and republished July 25, 1956.

HEARING: November 28, 1956, at the Dinkler-Andrew Jackson Hotel, Nashville, Tenn., before Examiner Allen W. Hagerty.

No. MC 52657 Sub 485, filed May 14, 1956, (Amended), published May 30, 1956, on Page 3707, ARCO AUTO CARRIERS, INC., 91st Street & Perry Avenue, Chicago 20, Ill. Applicant's representative: Glenn W. Stephens, 121 W. Doty Street, Madison, Wis. Issues published in FEDERAL REGISTER of May 30, 1956.

HEARING: December 3, 1956, in Room 852, U. S. Custom House, 610 South Canal Street, Chicago, Ill., before Examiner Michael B. Driscoll.

No. MC 52657 Sub 490, filed June 25, 1956, ARCO AUTO CARRIERS, INC., 91st St. and Perry Ave., Chicago 20, Ill. Applicant's representative: G. W. Stephens, 121 W. Doty St., Madison, Wis. Issues published in FEDERAL REGISTER of July 18, 1956.

HEARING: December 3, 1956, in Room 852, U. S. Custom House, 610 South Canal Street, Chicago, Ill., before Examiner Michael B. Driscoll.

No. MC 52709 Sub 65, filed June 21, 1956, (Amended) published July 25, 1956 on Page 5601, RINGSBY TRUCK LINES, INC., 3201 Ringsby Court, Denver, Colo. Issues published in FEDERAL REGISTER of July 25, 1956 and republished August 8, 1956.

HEARING: November 28, 1956, at the New Customs House, Denver, Colo., before Examiner James I. Carr.

No. MC 52947 Sub 24, filed August 9, 1956 (Amended), published September 26, 1956 on Page 7356, PINSON TRANSFER COMPANY, INC., 119 20th Street, Huntington, W. Va. Applicant's representatives: Robert H. Kinker and Harry McChesney, Jr., 711 McClure Building, Frankfort, Ky. For authority to operate as a *common carrier*, over a regular route, transporting: *General commodities*, except those of unusual value, Class A and B explosives, household goods as defined by the Commission, commodities in bulk, and those requiring special

equipment, between Huntington, W. Va., and Cincinnati, Ohio, over U. S. Highway 52, serving no intermediate points, but serving Aberdeen, Ohio for joinder purposes only, as an alternate route for operating convenience only in connection with applicant's authorized regular route operations. Applicant is authorized to conduct operations in Kentucky, Ohio, Virginia, and West Virginia.

NOTE: Applicant has an authorized regular route authority under Certificate No. MC 52947 Sub 11, dated September 15, 1954, between Cincinnati, Ohio and Moorhead, Ky., from Cincinnati over U. S. Highway 52 to Aberdeen, Ohio, thence over U. S. Highway 62 to Maysville, Ky., etc. The portion "between Cincinnati, Ohio and Aberdeen, Ohio, over U. S. Highway 52" duplicates a portion of the authority herein requested.

HEARING: November 30, 1956, at the U. S. Court House, Charleston, W. Va., before Joint Board No. 62.

No. MC 55581 Sub 4, filed July 2, 1956, WALTER FREEMAN, 1213 Wetherly Bldg., 516 S. E. Morrison Street, Portland, Oreg. Applicant's representative: Earle V. White, 1401 Northwest 19th Avenue, Portland 9, Oreg. Issues published in FEDERAL REGISTER of August 8, 1956.

HEARING: December 7, 1956, at 538 Pittock Block, Portland, Oreg., before Examiner Allan F. Borroughs.

No. MC 55848 Sub 32, (amended) July 20, 1956, filed May 22, 1956, HUCKABEE TRANSPORT CORP., P. O. Box 479, Columbia, S. C. Applicant's representative: A. Alvis Layne, Jr., Pennsylvania Bldg., Washington 4, D. C. For authority to operate as a *common carrier*, over a regular route, transporting: *General commodities*, used by the Atomic Energy Commission, except Class A and B explosives, those of unusual value, livestock, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment due to size or weight, between the Savannah River Plant of the Atomic Energy Commission, at Dunbarton, S. C., and the site of the Atomic Energy Plant at Oak Ridge, Tenn., from the Savannah River Plant over South Carolina Highway 125 to junction U. S. Highway 25, thence over U. S. Highway 25 to junction South Carolina Highway 19 (also from said plant over South Carolina Highway 19), thence over U. S. Highway 25 to junction U. S. Highway 25W west of Newport, Tenn., thence over U. S. Highway 25W through Knoxville, Tenn., to Clinton, Tenn., thence over Tennessee Highway 61 to Dossett, Tenn., and thence over an unnumbered highway to Oak Ridge (also over an unnumbered highway from Knoxville via Byington, Tenn., to Oak Ridge), and return over the same route serving no intermediate points. Applicant is authorized to conduct operations in South Carolina, North Carolina, Georgia and Tennessee.

NOTE: Applicant is authorized in MC 55848 Sub 30 to transport compressed inflammable gases, in bulk in Government-owned tube trailers, and empty tube trailers, and classified and secret materials between the same two points mentioned above.

HEARING: December 4, 1956, at the U. S. Court Rooms, Columbia, S. C., before Joint Board No. 289.

No. MC 64704 Sub 2, filed December 23, 1955, SANFORD BENTON, doing business as BENTON TRUCK LINES, 320 Elm Street, Boonville, Mo. Applicant's representative: Tweedie Fisher, Jefferson City, Mo. Issues published in FEDERAL REGISTER of February 15, 1956.

HEARING: November 26, 1956, at the Desoto Hotel, St. Louis, Mo., Examiner William J. Cave.

No. MC 64932 Sub 212, filed June 7, 1956, (Amended) published June 20, 1956, on Page 4333, ROGERS CARTAGE CO., a corporation, 1934 South Wentworth Ave., Chicago, Ill. Applicant's representative: Carl L. Steiner, 39 South La Salle Street, Chicago 3, Ill. Issues published in FEDERAL REGISTER of June 20, 1956, and republished June 27, 1956.

HEARING: November 30, 1956, in Room 852, U. S. Custom House, 610 South Canal Street, Chicago, Ill., before Examiner Michael B. Driscoll.

No. MC 64932 Sub 216, filed July 10, 1956, ROGERS CARTAGE CO., a Corporation, 1934 South Wentworth Avenue, Chicago, Ill. Applicant's representative: Carl L. Steiner, 39 South LaSalle Street, Chicago 3, Ill. Issues published in FEDERAL REGISTER of July 25, 1956.

HEARING: November 30, 1956, at the U. S. District Court Rooms, Memphis, Tenn., before Examiner Richard H. Roberts.

No. MC 65781 Sub 1, filed May 16, 1956, R. E. EIDSVOLD AND R. H. EIDSVOLD, doing busines as DAWN MOVING AND STORAGE COMPANY, 6009 Wayzata Boulevard, Minneapolis, Minn. Applicant's representative: Nathan E. Zelby, 135 Broadway, New York 6, N. Y. Issues published in FEDERAL REGISTER of June 27, 1956.

HEARING: December 6, 1956, at the Federal Court Building, Marquette Avenue South and Third Streets, Minneapolis, Minn., before Examiner James H. Gaffney.

No. MC 66562 Sub 1312, filed October 4, 1956, RAILWAY EXPRESS AGENCY, INCORPORATED, 219 East 42nd Street, New York 17, N. Y. Applicant's representative: James E. Thomas, % Alston, Sibley, Miller, Spann & Shackelford, 1220 The Citizens and Southern National Bank Bldg., Atlanta, Ga. For authority to operate as a *common carrier*, transporting: *General commodities, including Class A and B explosives*, moving in express service, serving Lobeco, S. C., as an intermediate point in connection with applicant's regular route operations between Augusta, Ga., and Beaufort, S. C., in its Certificate No. MC-66562 Sub 1262. RESTRICTION: The service to be performed by carrier shall be limited to service which is auxiliary to, or supplemental of, express service. Shipments transported by carrier shall be limited to those moving on a through bill of lading or express receipt covering, in addition to the motor carrier movement by carrier, an immediately prior or immediately subsequent movement by air or rail, except as to shipments originating at or destined to Augusta, Ga. Such further specific conditions as the Commission in the future may find it necessary to impose in order to restrict carrier's operations to service which is auxiliary to, or supplemental of, express service. The authority granted herein, to the extent it authorizes the transportation of explosives shall be limited in point of time to a period expiring five years after September 19, 1956. Applicant is authorized to conduct operations throughout the United States.

HEARING: December 5, 1956, at the U. S. Court Rooms, Columbia, S. C., before Joint Board No. 177.

No. MC 70272 Sub 15, filed August 2, 1956, KING VAN LINES, INC., 6809 East Kellogg, Wichita, Kans. Applicant's representative: Dan R. Schwartz, Suite 716, Professional Bldg., Jacksonville 2, Fla. Issues published in FEDERAL REGISTER of August 15, 1956.

HEARING: December 12, 1956, at the Hotel Lassen, Wichita, Kans., before Examiner William J. Cave.

No. MC 71234 Sub 6, (REVISION) filed March 13, 1956, THE GORE FREIGHT LINE, INCORPORATED, 914 Main Street, Stamford, Conn. Applicant's representative: William D. Traub, 60 East 42nd Street, New York, N. Y. For authority to operate as a *common carrier*, over irregular routes, transporting: *Such commodities as are dealt in by chain retail and mail order department stores*, the business of which is the sale of general merchandise, between *Danbury, Conn., on the one hand, and, on the other*, points in Dutchess County, N. Y., south of U. S. Highway 44, points in Putnam County, N. Y., and points in Westchester County, N. Y., north of a straight line from Armonk to North Tarrytown, N. Y. (The issues in the application were incorrectly described in the original notice published in the FEDERAL REGISTER of April 18, 1956.)

FURTHER HEARING: December 18, 1956, at the Office of the Interstate Commerce Commission, Washington, D. C., before Examiner James I. Carr.

No. MC 77404 Sub 7, filed October 8, 1956, MOHAWK MOTOR INC., 40 Harrison Street, Tiffin, Ohio. Applicant's representative: Taylor C. Burneson, 3510 Leveque-Lincoln Tower, Columbus 15, Ohio. For authority to operate as a *common carrier*, transporting: *General commodities*, except those of unusual value, Class A and B explosives, livestock, furs, household goods as defined by the Commission, and those requiring special equipment, serving the site of the Ford Motor Company plant located in Brownhelm Township, Lorain County, Ohio, as an off-route point in connection with carrier's regular route operations from and to Cleveland, Ohio, over U. S. Highway 20. Applicant is authorized to conduct regular route operations in Indiana, Michigan and Ohio.

HEARING: November 28, 1956, in Room 255, New Post Office Bldg., Columbus, Ohio, before Joint Board No. 117.

No. MC 89778 Sub 67, filed July 17, 1956, BAGGETT TRANSPORTATION COMPANY, a corporation, 2 South 32nd Street, Birmingham 5, Ala. Applicant's representative: Harold G. Hernly, 1624 Eye Street NW., Washington 6, D. C. Issues published in FEDERAL REGISTER of August 1, 1956.

HEARING: December 10, 1956, at the Hotel Pickwick, Kansas City, Mo., before Examiner William J. Cave.

No. MC 93941 Sub 8, filed July 13, 1956, W. G. McVICKER, Belle Fourche, S. Dak. Applicant's representative: R. A. Smiley, Belle Fourche, S. Dak. Issues published in FEDERAL REGISTER of August 22, 1956.

HEARING: December 13, 1956, at the Wyoming Public Service Commission, Supreme Court and State Library Building, Cheyenne, Wyo., before Examiner James I. Carr.

No. MC 95212 Sub 25, filed July 16, 1956, HELEN R. HENDERSON, doing business as H. R. HENDERSON, P. O. Box 327, Seneca, Ill. Applicant's representative: Joseph M. Scanlan, 111 West Washington Street, Chicago 2, Ill. Issues published in FEDERAL REGISTER of August 1, 1956.

HEARING: December 10, 1956, at the Hotel Pickwick, Kansas City, Mo., before Examiner William J. Cave.

No. MC 96461 Sub 1, filed August 22, 1956, E. G. MENELAUS, doing business as BLOCKTON OIL CO., Blockton, Iowa. Applicant's representative: Stephen Robinson, 1020 Savings & Loan Building, Des Moines 9, Iowa. Issues published in FEDERAL REGISTER of September 6, 1956.

HEARING: December 6, 1956, at the Federal Office Building, 5th and Court Avenues, Des Moines, Iowa, before Joint Board No. 55.

No. MC 98551 Sub 1, filed April 9, 1956, E. S. WESTERFIELD, doing business as DUMAS MOTOR FREIGHT LINE, 1101 Grant Street, Box 1208, Amarillo, Tex. Applicant's representative: Sterling E. Kinney, Suite 630, Amarillo Building, Amarillo, Tex. Issues published in FEDERAL REGISTER of April 25, 1956.

HEARING: December 18, 1956, at the Herring Hotel, Amarillo, Texas, at 1:00 o'clock p. m., before Joint Board No. 16.

No. MC 98749 Sub 5, filed May 7, 1956, as amended May 29, 1956, DURWARD L. BELL, doing business as BELL TRANSPORT COMPANY, 100 South Second Street, Longview, Tex. Applicant's representative: Joe T. Lanham, Perry Brooks Bldg., Austin, Tex. Issues published in FEDERAL REGISTER of June 13, 1956.

HEARING: December 4, 1956, at the Baker Hotel, Dallas, Texas, before Joint Board No. 153.

No. MC 100892 Sub 7, filed September 24, 1956, CLARENCE E. LINDSEY, doing business as LINDSEY MOTOR LINES, 375 Mead Avenue, Salt Lake City, Utah. Applicant's representative: Lynn S. Richards, 716 Newhouse Building, Salt Lake City 11, Utah. For authority to operate as a *common carrier*, over irregular routes, transporting: *General commodities, including Class A and B explosives and commodities in bulk*, except petroleum products in bulk, in tank vehicles, and except household goods as defined by the Commission, commodities of unusual value and those requiring special equipment, (1) between points in Arizona, on the one hand, and, on the other, points in Utah; (2) between Salt Lake City, Utah and Kanab, Utah; (3) between Kanab, Utah, and points in Utah on all access roads to the Glen Canyon damsite located in Arizona on the Colorado River approximately 15 miles upstream from Marble Canyon, and points within five miles of said access roads; and (4) between Phoenix and Flagstaff, Ariz., and all points in Arizona on U. S. Highway 89 north of and including Bitter Springs, Ariz., and points on all access roads to the Glen Canyon damsite in Arizona including all campsites, construction camps and places served by said access roads, with no service between Phoenix and Flagstaff. Applicant is authorized to conduct operations in Arizona, Idaho, Utah and Wyoming.

HEARING: December 4, 1956, at the Utah Public Service Commission, Salt Lake City, Utah, before Joint Board No. 48.

No. MC 102567 Sub 55, filed April 19, 1956, EARL CLARENCE GIBBON, doing business as EARL GIBBON PETROLEUM TRANSPORT, West First and Broadway, Bossier City, La.; mailing address, P. O. Box 1822, Shreveport, La. Applicant's representative: Jo E. Shaw, First National Bank Bldg., Houston, Tex. Issues published in FEDERAL REGISTER of May 2, 1956.

HEARING: December 5, 1956, at the Jung Hotel, New Orleans, La., before Examiner Richard H. Roberts.

No. MC 103051 Sub 17, filed May 18, 1956, WALKER HAULING CO., INC., 624 Penn Ave., NE., Atlanta, Ga. Applicant's representative: R. J. Reynolds, Jr., 1403 Citizens and Southern Nat'l Bank Bldg., Atlanta 3, Ga. Issues published in FEDERAL REGISTER of July 11, 1956.

HEARING: November 26, 1956, at the U. S. Court Rooms, Chattanooga, Tenn., before Examiner Allen W. Hagerty.

No. MC 103066 Sub 11, filed August 1, 1956, VAN STONE, doing business as STONE TRUCKING CO., P. O. Box 2014, 1516 West 49th Street, Tulsa, Okla. Applicant's representative: W. T. Brunson, Leonhardt Building, Oklahoma City 2, Okla. Issues published in FEDERAL REGISTER of August 15, 1956.

HEARING: December 14, 1956, at the Federal Building, Oklahoma City, Okla., before Examiner Richard H. Roberts.

No. MC 103654 Sub 36, filed August 1, 1956, SCHIRMER TRANSPORTATION COMPANY, INCORPORATED, 649 Pelham Boulevard, St. Paul 4, Minn. Applicant's representative: Donald A. Morken, 1100 First National-Soo Line Bldg., Minneapolis 2, Minn. Issues published in FEDERAL REGISTER of August 15, 1956.

HEARING: November 26, 1956, at the Uptown Station and Federal Courts Building, 5th and Market Streets, St. Paul, Minn., before Joint Board No. 282.

No. MC 105813 Sub 25, filed May 11, 1956, BELFORD TRUCKING CO., INC., 1299 NW. 23rd Street, Miami 42, Fla. Applicant's representative: Dan R. Schwartz, Suite 716 Professional Bldg., Jacksonville 2, Fla. Issues published in FEDERAL REGISTER of May 30, 1956.

HEARING: November 27, 1956, in Room 852, U. S. Custom House, 610 South Canal Street, Chicago, Ill., before Examiner Michael B. Driscoll.

No. MC 105813 Sub 26, filed May 11, 1956, BELFORD TRUCKING CO., INC., 1299 NW. 23rd Street, Miami 42, Fla. Applicant's representative: Dan R. Schwartz, Suite 716 Professional Bldg., Jacksonville 2, Fla. Issues published in FEDERAL REGISTER of May 30, 1956.

HEARING: November 27, 1956, in Room 852, U. S. Custom House, 610 South Canal Street, Chicago, Ill., before Examiner Michael B. Driscoll.

No. MC 106398 Sub 65, filed May 4, 1956, NATIONAL TRAILER CONVOY, INC., 1916 North Sheridan Road, P. O. Box 8096, Dawson Station, Tulsa 15, Okla. Applicant's representative: John E. Lesow, 632 Illinois Building, 17 West Market Street, Indianapolis 4, Ind. Issues published in FEDERAL REGISTER of May 23, 1956.

HEARING: December 17, 1956, at the Federal Building, Oklahoma City, Okla., before Examiner Richard H. Roberts.

No. MC 106644 Sub 31, filed August 2, 1956 (Amended), published August 29, 1956 on Page 6528, SUPERIOR TRUCKING COMPANY, INC., 520 Bedford Place, N. E. Atlanta, Ga. Applicant's representative: Reuben G. Crimm, Eight-O-Five Peachtree Street Bldg., Atlanta 8, Ga. Issues published in FEDERAL REGISTER of September 6, 1956.

HEARING: November 29, 1956, at the Federal Building, Milwaukee, Wis., before Examiner James H. Gaffney.

No. MC 107002 Sub 99, filed June 11, 1956, WALTER M. CHAMBERS, doing business as W. M. CHAMBERS TRUCK LINE, 105 Giuffrias Avenue, P. O. Box 687, New Orleans 20, La. Issues published in FEDERAL REGISTER of June 27, 1956.

HEARING: December 4, 1956, at the Jung Hotel, New Orleans, La., before Examiner Richard H. Roberts.

No. MC 107002 Sub 100, filed July 2, 1956, WALTER M. CHAMBERS, doing business as W. M. CHAMBERS TRUCK LINE, 105 Giuffrias Ave., P. O. Box 687, New Orleans, La. Issues published in FEDERAL REGISTER of July 18, 1956.

HEARING: December 4, 1956, at the Jung Hotel, New Orleans, La., before Examiner Richard H. Roberts.

No. MC 107162 Sub 4, filed August 9, 1956, BERNHART H. JOHNSON, 529 Harding Street, Iron Mountain, Mich. Applicant's representative: John T. Porter, 708 First National Bank Building, Madison 3, Wis. Issues published in FEDERAL REGISTER of September 6, 1956.

HEARING: November 26, 1956, at the Wisconsin Public Service Commission, Madison, Wis., before Examiner James H. Gaffney.

No. MC 107227 Sub 39, filed August 3, 1956, INSURED TRANSPORTERS, INC., 251 Park St., San Leandro, Calif. Applicant's representative: John G. Lyons, Mills Tower, San Francisco 4, Calif. Issues published in FEDERAL REGISTER of August 15, 1956.

HEARING: December 11, 1956, at 538 Pittock Block, Portland, Oreg., before Examiner Allan F. Borroughs.

No. MC 107227 Sub 40, filed August 6, 1956, INSURED TRANSPORTERS, INC., 251 Park St., San Leandro, Calif. Applicant's representative: John G. Lyons, Mills Tower, San Francisco 4, Calif. Issues published in FEDERAL REGISTER of August 22, 1956.

HEARING: December 4, 1956, in Room 226, Old Mint Bldg., Fifth and Mission Sts., San Francisco, Calif., before Examiner F. Roy Linn.

No. MC 107496 Sub 77, filed May 21, 1956, RUAN TRANSPORT CORPORATION, 408 SE. 30th St., Des Moines, Iowa. Applicant's representative: Homer E. Bradshaw, Suite 510 Central National Bldg., Des Moines 9, Iowa. Issues published in FEDERAL REGISTER of June 20, 1956.

HEARING: December 5, 1956, at the Federal Court Building, Marquette Avenue South and Third Streets, Minneapolis, Minn., before Examiner James H. Gaffney.

No. MC 107496 Sub 79, (Amended) filed June 25, 1956, published in the July 11, 1956 issue, page 5152, RUAN TRANSPORT CORPORATION, 408 SE. 30th St., Des Moines, Iowa. Issues published in FEDERAL REGISTER of July 25, 1956.

HEARING: December 5, 1956, at the Federal Court Building, Marquette Avenue South and Third Streets, Minneapolis, Minn., before Examiner James H. Gaffney.

No. MC 107515 Sub 227, filed May 21, 1956, (Amended), published on page 3888, issue of June 6, 1956, REFRIGERATED TRANSPORT CO., INC., 290 University Ave., SW., Atlanta 10, Ga. Applicant's representative: Allan Watkins, Grant Bldg., Atlanta 3, Ga. Issues published in FEDERAL REGISTER of June 20, 1956.

HEARING: November 28, 1956, at the Federal Building, Milwaukee, Wis., before Examiner James H. Gaffney.

No. MC 107515 Sub 233, filed August 6, 1956, REFRIGERATED TRANSPORT CO., INC., 290 University Avenue SW., Atlanta, Ga. Applicant's representative: Allan Watkins, Grant Building, Atlanta 3, Ga. Issues published in FEDERAL REGISTER of August 22, 1956.

HEARING: December 3, 1956, at the Federal Court Building, Marquette Avenue South and Third Streets, Minneapolis, Minn., before Examiner James H. Gaffney.

No. MC 107541 Sub 2, filed September 28, 1956, MAGEE TRUCK SERVICE, INC., Riverside Drive (General Delivery), Klickitat, Wash. Applicant's representative: John M. Hickson, Yeon Building, Portland 4, Oreg. For authority to operate as a *common carrier*, over irregular routes, transporting: *Box shooks* and *lumber*, from points in Crook County, Oreg., and points in Klickitat County, Wash., to points in California, and *exempt commodities* on return. Applicant is authorized to conduct operations in Idaho, Oregon, and Washington.

HEARING: November 27, 1956, at 538 Pittock Block, Portland, Oregon, before Joint Board No. 5.

No. MC 107839 Sub 20, filed July 20, 1956, DENVER–ALBUQUERQUE MOTOR TRANSPORT, INC., 4716 Humboldt Street, Denver, Colo. Applicant's representative: Marion F. Jones, 526 Denham Building, Denver 2, Colo. Issues published in FEDERAL REGISTER of August 15, 1956.

HEARING: December 6, 1956, at the New Customs House, Denver, Colo., before Examiner James I. Carr.

No. MC 108207 Sub 51, filed April 23, 1956, (Further Amended) published July 18, 1956 on Page 5392, FROZEN FOOD EXPRESS, a corporation, 318 Cadiz Street, P. O. Box 5382, Dallas, Tex. Applicant's representative: Leroy Hallman, First National Bank Building, Dallas 2, Tex. Issues published in FEDERAL REGISTER of July 25, 1956.

HEARING: November 28, 1956, at the Baker Hotel, Dallas, Texas, before Examiner David Waters.

No. MC 108380 Sub 43, filed July 26, 1956, JOHNSTON'S FUEL LINERS, INC., P. O. Box 328, Newcastle, Wyo. Applicant's representative: Stockton, Linville and Lewis, The 1650 Grant Street Bldg., Denver 3, Colo. Issues published in FEDERAL REGISTER of July 4, 1956.

HEARING: November 26, 1956, at the Council Chambers, City Hall, Billings, Mont., before Examiner Allan F. Borroughs.

No. MC 108449 Sub 37, filed July 2, 1956, INDIANHEAD TRUCK LINE, INC., 1947 West County Road "C", St. Paul 13, Minn. Applicant's representative: Glenn W. Stephens, 121 West Doty Street, Madison 3, Wis. Issues published in FEDERAL REGISTER of July 25, 1956.

HEARING: November 28, 1956, at the Uptown Station and Federal Courts Bldg., 5th & Market Streets, St. Paul, Minn., before Joint Board No. 282.

No. MC 108461 Sub 48, filed October 4, 1956, WHITFIELD TRANSPORTATION, INC., P. O. Box 1350, West Amador St., El Paso, Tex. Applicant's representative: Loyal G. Kaplan, Suite 924 City National Bank Bldg., Omaha 2, Nebr. For authority to operate as a *common carrier*, over irregular routes, transporting: *Cement* and *cement admixers*, in bulk, (1) from Salt Lake City and Devil's Slide, Utah, to the Glen Canyon dam site near Marble Canyon, Ariz., (2) from Cedar City (rail head) Utah to the Glen Canyon dam site near Marble Canyon, Ariz., (3) from Flagstaff (rail head) Ariz., to the Glen Canyon dam site near Marble Canyon, Ariz., (4) *Sand*, in bulk, from points in Coconino County, Ariz., to Flagstaff (rail head) Ariz. NOTE: Applicant states that with reference to routes 2 and 3, the proposed movement will be from rail heads only, the cement and cement ad-mixers having a prior movement to rail head by rail, and the movement on route 4 will be from points in the named county to the rail head at Flagstaff for subsequent movement by rail. Applicant is authorized to conduct operations in Arizona, Colorado, Texas and New Mexico.

HEARING: December 4, 1956, at the Utah Public Service Commission, Salt Lake City, Utah, before Joint Board No. 48.

No. MC 109141 Sub 21, filed October 1, 1956, WYOMING BUTANE GAS COMPANY, 3739 Montana Ave., Billings, Mont. Applicant's representative: Jerome Anderson, Electric Bldg., Billings, Mont. For authority to operate as a *common carrier*, over irregular routes, transporting: *Liquefied petroleum gases*, in bulk, in tank vehicles, from the site of the Continental Oil Company Refinery at Sussex, Wyo. to points in Montana; *contaminated shipments* of the above on return. Applicant is authorized to conduct operations in Wyoming, Colorado, Utah, Nebraska, Montana, North Dakota, and South Dakota.

HEARING: December 3, 1956, at the Council Chambers, City Hall, Billings, Mont., before Joint Board No. 123.

No. MC 109200 Sub 3, filed May 28, 1956, R. E. YOUNG, 503 S. Pecan, Arlington, Tex. Applicant's representative: M. Ward Bailey, Continental Life Bldg., Fort Worth 2, Tex. Issues published in FEDERAL REGISTER of June 13, 1956.

HEARING: December 3, 1956, at the Baker Hotel, Dallas, Texas, before Examiner David Waters.

No. MC 109365 Sub 7, filed October 26, 1955, RONALD A. PATTERSON, doing business as ANTHONY & PATTERSON TRUCK LINE, P. O. Box 15, Ashdown, Ark. Issues published in FEDERAL REGISTER of November 9, 1955.

HEARING: December 7, 1956, at the Jung Hotel, New Orleans, La., before Examiner Richard H. Roberts.

No. MC 109397 Sub 15, filed May 21, 1956, TRI-STATE WAREHOUSING AND DISTRIBUTING CO., 315 E. Seventh St., P. O. Box 113, Joplin, Mo. Applicant's representative: Stanley P. Clay, 514 First National Bldg., P. O. Box 578, Joplin, Mo. Issues published in FEDERAL REGISTER of June 13, 1956.

HEARING: December 10, 1956, at the Hotel Pickwick, Kansas City, Mo., before Examiner William J. Cave.

No. MC 109772 Sub 11, filed July 26, 1956, ROBERTSON TRUCK-A-WAYS, INC., 7101 East Slauson, Los Angeles, Calif. Applicant's representative: Phil Jacobson, 510 West Sixth Street, Suite 723, Los Angeles, Calif. Issues published in FEDERAL REGISTER of August 22, 1956.

HEARING: November 30, 1956, at the Federal Building, Los Angeles, Calif., before Examiner F. Roy Linn.

No. MC 110193 Sub 26, filed May 28, 1956, SAFEWAY TRUCK LINES, INC., 4625 W. 55th Street, Chicago, Ill. Applicant's representative: Joseph M. Scanlan, 111 West Washington St., Chicago 2, Ill., Issues published in FEDERAL REGISTER of June 13, 1956.

HEARING: December 5, 1956, at the Hotel Pickwick, Kansas City, Mo., before Examiner William J. Cave.

No. MC 110920 Sub 2, filed June 18, 1956, JOHN PERVIN, doing business as PERVIN GRAIN & TRANSIT CO., 1819—3rd Avenue, S. E., Rochester, Minn. Applicant's representative: A. R. Fowler, 2288 University Avenue, St. Paul 14, Minn. Issues published in FEDERAL REGISTER of July 4, 1956.

HEARING: December 4, 1956, at the Federal Court Building, Marquette Avenue South and Third Streets, Minneapolis, Minn., before Examiner James H. Gaffney.

No. MC 110940 Sub 12, filed July 30, 1956, ROBINS TRANSFER COMPANY, INC., P. O. Box 36, Powderly Station, Birmingham, Ala. Applicant's representative: Bennett T. Waites, Jr., 531–34 Frank Nelson Building, Birmingham 3, Ala. Issues published in FEDERAL REGISTER of August 15, 1956.

HEARING: November 27, 1956, at the U. S. Court Rooms, Chattanooga, Tenn., before Examiner Allen W. Hagerty.

No. MC 111072 Sub 14, filed October 1, 1956, TRANSPORT DELIVERY SYSTEM, INC., 3260 South Damen Avenue, Chicago, Ill. Applicant's representative: Carl L. Steiner, 39 South La Salle Street,

Chicago 3, Ill. For authority to operate as a *common carrier*, over irregular routes, transporting: *Used petroleum oils*, in bulk, in tank vehicles, from West Allis, Wis., to McCook, Ill. Applicant is authorized to conduct operations in Illinois, Michigan and Wisconsin.

HEARING: December 3, 1956, in Room 852 U. S. Custom House, 610 South Canal Street, Chicago, Ill., before Joint Board No. 13.

No. MC 111812 Sub 30, filed September 19, 1956, MIDWEST COAST TRANSPORT, INC., P. O. Box 747, Sioux Falls, S. Dak. For authority to operate as a *common carrier*, over irregular routes, transporting: *Frozen foods*, from points in Arizona to points in Kansas, Missouri, Iowa, Nebraska, Minnesota, North Dakota, South Dakota, Wisconsin, and Illinois. Applicant is authorized to conduct operations in Oregon, Washington, California, Iowa, Minnesota, and South Dakota.

HEARING: December 7, 1956, at the Federal Court Building, Marquette Avenue South and Third Streets, Minneapolis, Minn., before Examiner James H. Gaffney.

No. MC 112713 Sub 64, filed September 19, 1956, YELLOW TRANSIT FREIGHT LINES, INC., 1626 Walnut Street, Kansas City, Mo. Applicant's representative: L. E. Tomlinson, General Traffic Manager, Yellow Transit Freight Lines, Inc. (same address as applicant.) For authority to operate as a *common carrier*, over a regular route, transporting: *General commodities*, except those of unusual value, Class A and B explosives, livestock, corpses, currency, bullion, articles of virtu, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment, between Detroit, Mich., and Indianapolis, Ind., from Detroit over U. S. Highway 112 to Coldwater, Mich., thence over U. S. Highway 27 to Auburn, Ind., thence over Indiana Highway 427 to Fort Wayne, Ind., thence over Indiana Highway 37 to Indianapolis, and return over the same route, serving no intermediate points, with service at termini for joinder only, and restricted against traffic originating or interchanged at or destined to Indianapolis, Ind., as an alternate route for operating convenience only in connection with applicant's authorized regular route operations between (1) Chicago, Ill., and Detroit, Mich., and (2) St. Louis, Mo., and Indianapolis, Ind., via Effingham, Ill. Applicant is authorized to conduct operations in Illinois, Kansas, Oklahoma, Texas, Missouri, Indiana, Kentucky and Michigan.

HEARING: November 30, 1956, at the U. S. Court Rooms, Indianapolis, Ind., before Joint Board No. 23.

No. MC 112822 Sub 2, filed January 17, 1955, *reopened for further hearing*, EARL BRAY, INC., Linwood and North St., P. O. Box 910, Cushing, Okla. Applicant's representative: Erle W. Francis, Veterans of Foreign Wars Bldg., 214 W. Sixth St., Topeka, Kans. Issues published in FEDERAL REGISTER of September 6, 1956.

FURTHER HEARING: December 6, 1956, at the Hotel Pickwick, Kansas City, Mo., before Examiner William J. Cave, solely with respect to the question of whether the public convenience and necessity require the proposed service in the transportation of paraffin wax and petroleum lubricating oil.

No. MC 113410 Sub 7, filed August 9, 1956, published August 15, 1956, on page 6104 DAHLEN TRANSPORT, INC., 875 North Prior, St. Paul 4, Minn. Applicant's representative: John R. Sims, Jr., Munsey Bldg., Washington, D. C. Issues published in FEDERAL REGISTER of August 22, 1956.

HEARING: Novem[illegible] 27, 1956, at the Uptown Station an[illegible]ederal Courts Bldg., 5th and Marke[illegible]reets, St. Paul, Minn., before Joint Boa[illegible]d No. 282.

No. MC 113495 Sub 2, filed June 29, 1956, GREGORY HEAVY HAULERS, INC., 151 North 1st Street, Nashville, Tenn. Issues published in FEDERAL REGISTER of July 25, 1956.

HEARING: November 30, 1956, at the Dinkler-Andrew Jackson Hotel, Nashville, Tenn., before Examiner Allen W. Hagerty.

No. MC 113624 Sub 8, filed April 16, 1956 (Further amended), published on Page 2905, issue of May 2, 1956, amended on Page 3711, issue of May 30, 1956, WARD TRANSPORT, INC., P. O. Box 133, Pueblo, Colo. Applicant's representative: Marion F. Jones, Suite 526 Denham Bldg., Denver 2, Colo. Issues published in FEDERAL REGISTER of June 13, 1956.

HEARING: December 3, 1956, at the New Customs House, Denver, Colo., before Examiner James I. Carr.

No. MC 113779 Sub 39, filed April 20, 1956, YORK INTERSTATE TRUCKING, INC., 8222 Market Street Road, Houston, Tex. Issues published in FEDERAL REGISTER of May 2, 1956.

HEARING: December 6, 1956, at the Federal Office Building, Franklin & Fannin Streets, Houston, Texas, before Examiner David Waters.

No. MC 113779 Sub 44, filed June 21, 1956, YORK INTERSTATE TRUCKING, INC., 8222 Market St. Road, Houston, Tex. Issues published in FEDERAL REGISTER of July 4, 1956.

HEARING: December 6, 1956, at the Federal Office Building, Franklin & Fannin Streets, Houston, Texas, before Examiner David Waters.

No. MC 114021 Sub 1, filed March 28, 1956, MIDWEST TRANSFER COMPANY OF ILLINOIS, 7000 South Pulaski Road, Chicago, Ill. Applicant's representative: Clarence D. Todd, Suite 944, Washington Bldg., Washington 5, D. C. Issues published in FEDERAL REGISTER of April 11, 1956.

HEARING: December 5, 1956, in Room 852, U. S. Custom House, 610 South Canal Street, Chicago, Ill., before Examiner Michael B. Driscoll.

No. MC 114045 Sub 21, filed February 27, 1956, (Amended), published March 14, 1956, on page 1625, R. L. MOORE AND JAMES T. MOORE, doing business as TRANS-COLD EXPRESS, 318 Cadiz Street, Dallas, Tex. Applicant's representative: Leroy Hallman, First National Bank Building, Dallas 2, Tex. Issues published in FEDERAL REGISTER of June 13, 1956.

HEARING: November 30, 1956, at the Baker Hotel, Dallas, Texas, before Examiner David Waters.

No. MC 114261 Sub 1, filed October 2, 1956, MANFORD McPHERSON, doing business as McPHERSON TRUCKING CO., 511 W. Bridgeport, White Hall, Ill. For authority to operate as a *contract carrier*, over irregular routes, transporting: *Clay, concrete*, and *earthen products*, from White Hall, Ill., to points in Missouri south of U. S. Highway 40, including points in St. Louis County, Mo., and *fire brick*, from St. Louis, Mo., to White Hall, Ill., on return. Applicant is authorized to conduct operations in Illinois and Missouri.

NOTE: In Permit No. MC 114261 applicant is authorized to transport the above-specified commodities from White Hall, Ill., to points in Missouri on and north of U. S. Highway 40, except those in Jackson and St. Louis Counties, Mo.; and damaged, defective, rejected, or returned shipments of the above-specified commodities, from the above-specified destination points to White Hall, Ill.

HEARING: December 4, 1956, at the U. S. Court Rooms and Federal Building, Springfield, Ill., before Joint Board No. 135.

No. MC 114475 Sub 4, filed June 29, 1956, GENERAL TRANSPORT, INC., 631 Second Avenue South, Nashville, Tenn. Applicant's representative: James W. Wrape, 2111 Sterick Building, Memphis, Tenn. Issues published in FEDERAL REGISTER of July 18, 1956.

HEARING: November 26, 1956, at the U. S. Court Rooms, Chattanooga, Tenn., before Examiner Allen W. Hagerty.

No. MC 114614 Sub 3, filed August 21, 1956, T. T. BROOKS, doing business as T. T. BROOKS TRUCKING CO., 112 Chitwood Avenue NE., Fort Payne, Ala. Applicant's representative: Dale C. Dillon, 1825 Jefferson Place NW., Washington 5, D. C. Issues published in FEDERAL REGISTER of September 6, 1956.

HEARING: November 28, 1956, at the Department of Motor Transportation, State Office Building, Frankfort, Ky., before Joint Board No. 209.

No. MC 115056 Sub 4, filed October 8, 1956, CLAUDE BUNDY, doing business as BUNDY TRUCK LINE, Gatesville, N. C. Applicant's representative: John C. Goddin, State Planters Bank Building, Richmond 19, Va. For authority to operate as a *common carrier*, over irregular routes, transporting: *Lumber*, from Sunbury, N. C., and points in North Carolina within 100 miles thereof, and points in Nansemond County, Va., to points in West Virginia, and *damaged shipments* of the above on return. Applicant is authorized to conduct operations in North Carolina, Virginia, Maryland, Pennsylvania, Delaware, New Jersey, District of Columbia, New York and New York Commercial Zone.

HEARING: December 7, 1956, at the North Carolina Utilities Commission, State Library Building, Morgan Street, Raleigh, N. C., before Joint Board No. 292.

No. MC 115601 Sub 3, REOPENED FOR FURTHER HEARING, filed December 12, 1955, and amended at the hearing, BROOKS ARMORED CAR SERVICE, EXTENSION—SUSSEX COUNTY (Wil-

mington, Del.). Applicant's representatives: H. J. Conaway, Jr., Delaware Trust Building, Wilmington 1, Del., and James L. Givan, 1025 Connecticut Avenue NW., Washington 6, D. C. For authority to operate as a *contract carrier* by motor vehicle, over irregular routes, transporting: *cash letters* between Philadelphia, Pa., on the one hand, and, on the other, Milford, Georgetown, Rehoboth Beach, Lewes, Millsboro, Selbyville, Laurel, Seaford, Bridgeville, Delmar, Dagsboro, Frankford, Greenwood, Harrington, Felton, Camden, Wyoming, Frederica, Dover, and Smyrna, Del., serving only banks and trust companies.

FURTHER HEARING: November 29, 1956, at the Office of the Interstate Commerce Commission, Washington, D. C., before Examiner Allen W. Hagerty.

No. MC 115601 Sub 4, REOPENED FOR FURTHER HEARING, filed December 12, 1955, and amended at the hearing, BROOKS ARMORED CAR SERVICE, EXTENSION—NEW CASTLE COUNTY, (Wilmington, Del.) Applicant's representatives: H. J. Conaway, Jr., Delaware Trust Building, Wilmington 1, Del., and James L. Givan, 1025 Connecticut Avenue NW., Washington 6, D. C. For authority to operate as a *contract carrier* by motor vehicle, over irregular routes, transporting: *cash letters* between Philadelphia, Pa., on the one hand, and, on the other, Wilmington, Newark, Middletown, and Odessa, Del., serving only banks and trust companies.

FURTHER HEARING: November 29, 1956, at the Office of the Interstate Commerce Commission, Washington, D. C., before Examiner Allen W. Hagerty.

No. MC 115825, filed February 20, 1956, GLEN O. ATWOOD, doing business as ATWOOD TRANSPORT, Box 134, Cardston, Alberta, Canada. Issues published in FEDERAL REGISTER of July 4, 1956.

HEARING: November 29, 1956, at the Montana Board of Railroad Commissioners, Helena, Mont., before Examiner Allan F. Borroughs.

No. MC 115843 Sub 1, filed June 28, 1956, TRANSPORT SERVICE CO., 5100 W. 41st Street, Stickney, Ill. Applicant's representative: Richard J. Hardy, No. 1 N. La Salle St., Chicago 2, Ill. Issues published in FEDERAL REGISTER of July 18, 1956.

HEARING: December 13, 1956, in Room 852, U. S. Custom House, 610 South Canal Street, Chicago, Ill., before Examiner Michael B. Driscoll.

No. MC 115884 Sub 1, filed June 21, 1956, CECIL E. STIERNAGLE, doing business as MOBILE HOME TOWING SERVICE, Albers Trailer Court, P. O. Box 22, R. R. #2, Rantoul, Ill. Applicant's representative: Alfred H. Reichman, 318 North Hickory Street, Champaign, Ill. Issues published in FEDERAL REGISTER of July 4, 1956.

HEARING: December 12, 1956, in Room 852, U. S. Custom House, 610 South Canal Street, Chicago, Ill., before Examiner Michael B. Driscoll.

No. MC 115897, filed March 30, 1956, FRAERING BROKERAGE COMPANY, INC., 423 South Front Street, New Orleans, La. Applicant's representative: Robert A. Ainsworth, Jr., National Bank of Commerce Building, New Orleans 12, La. Issues published in FEDERAL REGISTER of April 18, 1956.

HEARING: November 26, 1956, at the Jung Hotel, New Orleans, La., before Examiner Walter T. Cantrell.

No. MC 115922 Sub 1, filed June 13, 1956, A. W. MEEVES, P. O. Box 1088, Tucumcari, N. Mex. Applicant's representative: Maurice Sanchez, 904 Simms Building, P. O. Box 1031, Albuquerque, N. Mex. Issues published in FEDERAL REGISTER of June 27, 1956.

HEARING: November 27, 1956, at the New Mexico State Corporation Commission, Santa Fe, New Mexico, before Examiner James I. Carr.

No. MC 115925, filed April 12, 1956, WISCONSIN A & L COMPANY, INC., 3567 E. Barnard Avenue, Cudahy, Wis. Issues published in FEDERAL REGISTER of April 25, 1956.

HEARING: December 10, 1956, at the Federal Building, Milwaukee, Wis., before Examiner Michael B. Driscoll.

No. MC 115931, filed April 16, 1956, BABCOCK & LEE TRANSPORTATION, INC., 1002 Third Avenue North, Billings, Mont. Applicant's representative: Franklin S. Longan, Suite 319 Securities Building, Billings, Mont. Issues published in FEDERAL REGISTER of May 6, 1956.

HEARING: November 27, 1956, at the Council Chambers, City Hall, Billings, Mont., before Examiner Allan F. Borroughs.

No. MC 115945, filed April 23, 1956, JOHN W. CAIN, doing business as CAIN TRUCKING CO., 210 Cargill Road, El Paso, Tex. Applicant's representative: William J. Torrington, 1219 Simms Building, Albuquerque, N. Mex. Issues published in FEDERAL REGISTER of May 9, 1956.

HEARING: December 14, 1956, at the Hotel Paso Del Norte, El Paso, Texas, before Examiner David Waters.

No. MC 115950 EX, filed April 26, 1956, AGNES HITCHCOCK, 222 E. Mistletoe, San Antonio, Tex. Applicant's representative: Joe Reid, 1000 Transit Tower, San Antonio, Tex. Issues published in FEDERAL REGISTER of May 9, 1956.

HEARING: December 12, 1956, at The Hilton Hotel, San Antonio, Texas, before Examiner David Waters.

No. MC 115965, filed April 27, 1956, RUSSELL STUBBLEFIELD, doing business as SOUTHWEST GARAGE AND AUTO PARTS, Robertsville, Mo. Applicant's representative: A. D. Crenshaw, 3608 South Grand Blvd., St. Louis 18, Mo. Issues published in FEDERAL REGISTER of August 28, 1956.

HEARING: November 29, 1956, at the Desoto Hotel, St. Louis, Mo., before Examiner William J. Cave.

No. MC 115971, filed May 4, 1956, WILLIS SHAW AND ELLIS BOGAN, doing business as WILLIS SHAW PRODUCE CO., Elm Springs, Ark. Applicant's representatives: Kenneth Teasdale, 506 Olive Street, St. Louis 1, Mo., *and* A. Alvis Layne, Jr., Pennsylvania Building, Washington 4, D. C. Issues published in FEDERAL REGISTER of May 30, 1956.

HEARING: December 3, 1956, at the U. S. Court Rooms, Little Rock Ark., before Examiner Richard H. Roberts.

No. MC 115990, filed May 11, 1956, J. FRANK BRASHER, 3403 South State Street, Salt Lake City, Utah. Applicant's representative: Harry D. Pugsley, Continental Bank Bldg., Salt Lake City 1, Utah. Issues published in FEDERAL REGISTER of August 8, 1956.

HEARING: December 11, 1956, at the Utah Public Service Commission, Salt Lake City, Utah, before Examiner James I. Carr.

No. MC 115991, filed May 11, 1956, L. S. CHERRY, 2202 N. Glenstone Street, Springfield, Mo. Applicant's representative: Chinn and White, 808 Woodruff Building, Springfield, Mo. Issues published in FEDERAL REGISTER of June 20, 1956.

HEARING: December 6, 1956, at the Hotel Pickwick, Kansas City, Mo., before Examiner William J. Cave.

No. MC 116000, filed May 17, 1956, J. H. BROWN, BRUCE W. BROWN AND RAY BRAUDRICK, A Partnership, doing business as EMPACADORAS de MEXICO, 11th & S. El Paso Streets, El Paso, Tex. Applicant's representative: William J. Torrington, 1219 Simms Building, Albuquerque, N. Mex. Issues published in FEDERAL REGISTER of June 6, 1956.

HEARING: December 17, 1956, at the Hotel Paso Del Norte, El Paso, Texas, before Examiner David Waters.

No. MC 116013, filed May 24, 1956, TOM ALEXANDER, INC., P. O. Box 748, U. S. Highway 190 West, Opelousas, La. Applicant's representative: Henry O'Connor, 318 Hibernia Bldg., New Orleans, La. Issues published in FEDERAL REGISTER of June 6, 1956.

HEARING: December 6, 1956, at the Jung Hotel, New Orleans, La., before Examiner Richard H. Roberts.

No. MC 116027, filed June 4, 1956, NICHOLAS KIRCHNER, JOHN NICK KIRCHNER, AND WILLIAM J. KIRCHNER, doing business as N. KIRCHNER & SONS, St. Patrick, Clark County, Mo. Applicant's representative: J. Patrick Wheeler, Canton, Mo., and Monticello, Mo. Issues published in FEDERAL REGISTER of July 11, 1956.

HEARING: November 27, 1956, at the Desoto Hotel, St. Louis, Mo., before Examiner William J. Cave.

No. MC 116047, filed June 13, 1956, JOHN M. KARLE, doing business as KARLE CARRIAGE WORKS, 806 South 9th Street, St. Joseph, Mo. Applicant's representative: Louis Kranitz, 714 Francis Street, St. Joseph 7, Mo. Issues published in FEDERAL REGISTER of June 27, 1956.

HEARING: December 3, 1956, at the Hotel Pickwick, Kansas City, Mo., before Examiner William J. Cave.

No. MC 116058 Sub 1, filed July 27, 1956, LAWRENCE D. NIEDENS, doing business as NIEDENS TRUCKING SERVICE, 814 North Elm, Hoisington, Kans. Applicant's representative: Floyd D. Strong, 214 Insurance Bldg., 701 Jackson St., Topeka, Kans. Issues published in FEDERAL REGISTER of August 15, 1956.

HEARING: December 11, 1956, at the Hotel Lassen, Wichita, Kansas, before Examiner William J. Cave.

No. MC 116062, filed June 20, 1956, CALIFORNIA EXPRESS, INC., 4050 Clarke, Fort Worth, Tex. Applicant's

representative: John W. Carlisle, P. O. Box 13023, Dallas 20, Tex. Issues published in FEDERAL REGISTER of August 1, 1956.

HEARING: December 10, 1956, at the Baker Hotel, Dallas, Texas, before Examiner Richard H. Roberts.

No. MC 116062 Sub 2, filed June 21, 1956, CALIFORNIA EXPRESS, INC., 4050 Clarke, Fort Worth, Tex. Applicant's representative: John W. Carlisle, P. O. Box 13023, Dallas 20, Tex. Issues published in FEDERAL REGISTER of August 1, 1956.

HEARING: December 10, 1956, at the Baker Hotel, Dallas, Texas, before Examiner Richard H. Roberts.

No. MC 116063, filed July 9, 1956, C & R TRANSPORT CO., INC., P. O. Box 127, Winnsboro, Tex. Applicant's representative: M. Ward Bailey, Continental Life Bldg., Fort Worth 2, Tex. Issues published in FEDERAL REGISTER of August 1, 1956.

HEARING: December 13, 1956, at the Baker Hotel, Dallas, Tex., before Examiner Richard H. Roberts.

No. MC 116069, filed July 2, 1956, R. L. SCHMITZ and CHARLES G. OLSEN, doing business as O & S TRANSPORT CO., Richland Center, Wis. Applicant's representative: Claude J. Jasper, One West Main Street, Madison 3, Wis. Issues published in FEDERAL REGISTER of July 18, 1956.

HEARING: November 27, 1956, at the Wisconsin Public Service Commission, Madison, Wis., before Examiner James H. Gaffney.

No. MC 116072, filed June 25, 1956, FRED KARA, JR., doing business as FRED'S MOTOR SERVICE, 3560 Archer Ave., Chicago, Ill. Issues published in FEDERAL REGISTER of July 18, 1956.

HEARING: December 12, 1956, in Room 852, U. S. Custom House, 610 South Canal Street, Chicago, Ill., before Examiner Michael B. Driscoll.

No. MC 116074, (Amended) filed June 25, 1956, MAURICE BRIGGS, Route No. 1, Alexandria, Mo. Applicant's representative: Joseph R. Nacy, 117 West High Street, Jefferson City, Mo. Issues published in FEDERAL REGISTER of August 1, 1956.

HEARING: November 27, 1956, at the Desoto Hotel, St. Louis, Mo., before Examiner William J. Cave.

No. MC 116111, filed July 19, 1956, CHARLES S. REAVIS, doing business as NORTH KANSAS CITY TOW SERVICE, 1114 Swift St., North, Kansas City, Mo. Issues published in FEDERAL REGISTER of August 1, 1956.

HEARING: December 3, 1956, at the Hotel Pickwick, Kansas City, Mo., before Examiner William J. Cave.

No. MC 116123, filed July 23, 1956, JERRY LIPPS, 1100 North Spanish, Cape Girardeau, Mo. Applicant's representative: Henry Andrae, Central Trust Building, Jefferson City, Mo. Issues published in FEDERAL REGISTER of August 8, 1956.

HEARING: November 29, 1956, at the Desoto Hotel, St. Louis, Mo., before Examiner William J. Cave.

No. MC 116139, filed July 30, 1956, JOSEPH (JACK) E. ELI, doing business as ELI TOWING SERVICE, 5028 Oakley, Kansas City, Mo. Applicant's representative: Jack G. Beamer, 724 Rialto Building, Kansas City 6, Mo. Issues published in FEDERAL REGISTER of August 15, 1956.

HEARING: December 3, 1956, at the Hotel Pickwick, Kansas City, Mo., before Examiner William J. Cave.

No. MC 116239, filed October 5, 1956, LAWRENCE FENDER, 4544 Zenith Avenue North, Minneapolis, Minn. Applicant's representative: Donald A. Morken, Eleven Hundred First National-Soo Line Bldg., Minneapolis 2, Minn. For authority to operate as a *contract carrier*, over irregular routes, transporting: *Malt beverages*, from Milwaukee, Wis., to points in the Minneapolis-St. Paul, Minn. Commercial Zone, and *empty containers or other such incidental facilities* (not specified) used in transporting the commodities specified on return.

HEARING: November 29, 1956, at the Federal Court Building, Marquette Avenue, South and Third Streets, Minneapolis, Minn., before Joint Board No. 142.

MOTOR CARRIERS OF PASSENGERS

No. MC 1255 Sub 6, filed October 4, 1956, FRANCIS ALBERT McGINN (MARGUERITE E. McGINN, SPECIAL ADMINISTRATRIX), doing business as McGINN BUS CO., 99 Cottage Street, West Lynn, Mass. Applicant's representative: Mary E. Kelley, 84 State Street, Boston 9, Mass. For authority to operate as a *common carrier*, over irregular routes, transporting: *Passengers*, in special round-trip operations, beginning and ending at Lynn and Reading, Mass., and extending to Derry and Hudson, N. H. RESTRICTION: Applied-for authority to be restricted to the transportation of passengers who at the time are traveling from the designated origin points to the designated destinations and return for the purpose of participating in games commonly referred to as beano and bingo games. Applicant is authorized to conduct operations in Connecticut, Maine, Massachusetts, New Hampshire, New York, Rhode Island and Vermont.

HEARING: November 29, 1956, at the New Post Office & Court House Building, Boston, Mass., before Joint Board No. 20.

No. MC 1501 Sub 128, filed September 24, 1956, THE GREYHOUND CORPORATION, 2600 Board of Trade Bldg., Chicago, Ill. Applicant's representative: W. E. Jones, P. O. Box 297, Lexington, Ky. For authority to operate as a *common carrier*, over regular routes, transporting: *Passengers, and their baggage, express, newspapers* and *mail* in the same vehicle, between New Orleans, La., and Covington, La.: from New Orleans over Veterans Highway to Lake Ponchartrain Causeway, thence over said Causeway to Greater New Orleans Expressway to Covington, and return over the same route, serving no intermediate points. Applicant is authorized to conduct operations throughout the United States.

HEARING: November 29, 1956, at the Jung Hotel, New Orleans, La., before Joint Board No. 164.

No. MC 116234, filed October 2, 1956, ALSTON RICHARD LA FOLLETTE, doing business as L & M TRANSPORTATION SERVICE, R. D. 1, Winchester, Va. Applicant's representative: Robert K. Waltz, 35 E. Boscawen Street, Winchester, Va. For authority to operate as a *common carrier*, over regular routes, transporting: *Passengers and their baggage*, in the same vehicle with passengers, between Winchester, Va., and Charles Town, W. Va., (1) from Winchester over U. S. Highway 11, to Virginia Secondary Route 761, thence to Virginia-West Virginia State Line, thence over West Virginia Secondary Route 2 to West Virginia Secondary Route 13, thence over Secondary Route 13 to West Virginia Secondary Route 1 thence over Secondary Route 1 to Secondary Route 1–8 at Middleway, W. Va., thence over Secondary Route 1–8 to Plant of Varel Mills Inc., returning over Secondary Route 1–8 to Secondary Route 1 at Middleway, thence over Secondary Route 1 at Middleway to Primary Route 51, thence over Primary Route 51 to Charles Town, W. Va., returning to Winchester over the same route, serving all intermediate points except points on U. S. Highway 11. (2) In addition to the year-round operations of two round trips daily, between Winchester, Va., and Charles Town, W. Va., applicant requests one round trip daily, during the racing season at Charles Town, over the above route, thence over U. S. Highway 340 and private road of Charles Town Jockey Club, Inc., to the race track northeast of Charles Town.

HEARING: December 5, 1956, at the Office of the Interstate Commerce Commission, Washington, D. C., before Joint Board No. 245.

APPLICATIONS IN WHICH HANDLING WITHOUT ORAL HEARING IS REQUESTED

MOTOR CARRIERS OF PASSENGERS

No. MC 1504 Sub 132, filed October 9, 1956, ATLANTIC GREYHOUND CORPORATION, 1100 Kanawha Valley Building, Charleston, W. Va. Applicant's representative: L. C. Major, Jr., 2001 Massachusetts Ave. NW., Washington, D. C. For authority to operate as a *common carrier*, over regular routes, transporting: *Passengers and their baggage*, and *mail, newspapers*, and *express* in the same vehicle with passengers, (1) between Summerville, S. C., and junction South Carolina Highway 642 and U. S. Highway 52 (approximately 20 miles), from Summerville, S. C., over South Carolina Highway 165 to junction South Carolina Highway 642, thence over South Carolina Highway 642 to junction U. S. Highway 52, and return over the same route, serving all intermediate points, (2) between junction South Carolina Highway 642 and unnumbered highway and Gate No. 1 of the Charleston Air Base, S. C., (approximately one-tenth of a mile), from junction South Carolina Highway 642 over unnumbered highway to Gate No. 1 of the Charleston Air Base, and return over the same route, serving all intermediate points, and (3) between junction U. S. Highway 52 and Airport Road and Gate No. 2 of the Charleston Air Base, S. C., (approximately one mile), from junction U. S. Highway 52 over Airport Road to Gate No. 2 of the Charleston Air Base, and return over the same route, serving all intermediate points. Appli-

cant is authorized to conduct operations in Florida, Georgia, North Carolina, Ohio, Pennsylvania, South Carolina, Tennessee, Virginia, West Virginia, and the District of Columbia.

No. MC 29957 Sub 64, filed September 4, 1956, CONTINENTAL SOUTHERN LINES, INC., 425 Bolton Avenue, P. O. Box 4407, Alexandria, La. Applicant's representative: Grove Stafford, P. O. Box 1711, Alexandria, La. For authority to operate as a *common carrier*, over a regular route, transporting: *Passengers and baggage of passengers*, in the same vehicle with passengers or in a separate vehicle, and in the same vehicle with passengers, *express* and *newspapers*, between New Orleans, La., and Bush, La., from New Orleans over U. S. Highway 51 (also designated as U. S. Highway 61) to junction Harlem Avenue (or new access road) in Jefferson Parish, La., thence over Harlem Avenue (or new access road) to Lake Pontchartrain, La., thence over the new Lake Pontchartrain Bridge now under construction and its northern approach and access road to junction U. S. Highway 190 near Mandeville, La., thence over U. S. Highway 190 to Covington, La., thence over Louisiana Highway 21 to a point about two (2) miles from Bush, thence over local unnumbered highway to Bush, and return over the same route, serving Covington, La., as an intermediate point. Applicant is authorized to conduct operations in Alabama, Arkansas, Illinois, Kentucky, Louisiana, Mississippi, Missouri, Tennessee, and Texas.

CORRECTIONS

The following numbered applications were assigned for hearing on the dates specified in the October 17, 1956 issue, of the FEDERAL REGISTER. In each instance it was indicated that the issues were published in the FEDERAL REGISTER of "October 17, 1956". This was in error, the issues involved in each proceeding were published in previous issues herein shown below:

No. MC 730 Sub 82, Pacific Intermountain Express Co., Oakland, Calif. Issues published in FEDERAL REGISTER of August 29, 1956.

No. MC 30022 Sub 80, Paul S. Crebs, Northumberland, Pa. Issues published in the FEDERAL REGISTER of August 29, 1956.

No. MC 52657 Sub 493, Arco Auto Carriers, Inc., Chicago, Ill. Issues published in the FEDERAL REGISTER of August 22, 1956.

No. MC 102326 Sub 8, Donald E. Gould, Coudersport, Pa. Issues published in the FEDERAL REGISTER of August 22, 1956.

No. MC 115841 Sub 7 and Sub 8, Colonial Refrigerated Transportation, Inc., N. Birmingham, Ala. Issues published in the FEDERAL REGISTER of August 1, 1956.

No. MC 116145, G. G. Parsons, North Wilkesboro, N. C. Issues published in the FEDERAL REGISTER of August 22, 1956.

No. MC 37896 Sub 7, YOUNGBLOOD TRUCK LINES, INC., Fletcher, N. C., published page 7751, issue of October 10, 1956. That portion of the notice reading: "Applicant is authorized to conduct operations in North Carolina, Georgia and Alabama", was in error. Applicant is authorized to conduct operations in North Carolina, Georgia, South Carolina, Tennessee, Kentucky and Ohio.

The following applications are governed by the Interstate Commerce Commission's special rules governing notice of filing of applications by motor carriers of property or passengers under section 5 (2) and 210a (b) of the Interstate Commerce Act and certain other procedural matters with respect thereto. (FEDERAL REGISTER Volume 21, page 7339, § 1.240, September 26, 1956.)

APPLICATIONS OF MOTOR CARRIERS OF PROPERTY

No. MC–F 6407, published in the October 3, 1956, issue of the FEDERAL REGISTER on page 7590. Supplemental application filed October 15, 1956, to show joinder of JOHN M. COCHRAN, 2238 South Shore Drive, Erie, Pa., as the person in control of LYONS TRANSPORTATION CO.

No. MC–F 6420. Authority sought for consolidation into CONSOLIDATED MOTOR FREIGHT, INC., 107 North Lexington Street, Hastings, Nebr., of the operating rights and property of R. W. NEWMAN, doing business as HASTINGS TRANSFER COMPANY, West 1st and North Lexington Avenue, Hastings, Nebr., OVER-NITE EXPRESS COMPANY, 1234 McDonald Street, McCook, Nebr., and BURTON VANNIER, doing business as VANNIER TRANSFER, Hildreth, Nebr., and for acquisition by RICHARD W. NEWMAN, JOHN G. BOUMANN and BURTON H. VANNIER, all of Hastings, of control of such rights and property through the transaction. Applicants' representative: Fred R. Irons, P. O. Box 315, Hastings, Nebr. Operating rights sought to be consolidated: (1) From R. W. NEWMAN, doing business as HASTINGS TRANSFER COMPANY, (a) operating rights under certificate authorizing the transportation of *general commodities*, with certain exceptions including household goods and commodities in bulk, as a *common carrier* over regular routes between Hastings, Nebr., and Omaha, Nebr., serving certain intermediate points, and (b) operations under the Second Proviso of section 206 (a) (1) of the Interstate Commerce Act, in the transportation of *commodities generally*, excepting those requiring special equipment, other than refrigeration, as a *common carrier* over regular routes, from Hastings, Nebr., to Omaha, Nebr. (including one optional route), and from Holdrege, Nebr., to Hastings, Nebr., serving all intermediate and certain offroute points; *commodities generally*, excepting those requiring special equipment, other than refrigeration, over irregular routes from Holdrege, Nebr., and vicinity on the one hand, and, on the other hand, various points within a 250-mile radius of Holdrege, Nebr., and occasionally points in the state at large; *machinery and supplies, meat and food stuffs, hardware and auto supplies*, and *fresh meat and packing house products*, as a *contract carrier* to and from Hastings, Nebr., on contract with the Western Land Roller Company, the K. & R., Inc., the W. M. Dutton & Company, and with Swift and Company, wherever they may desire; (2) from OVER-NITE EXPRESS COMPANY (a) operating rights under certificate authorizing the transportation of *general commodities*, with certain exceptions including household goods and commodities in bulk, as a *common carrier* over a regular route between Kearney, Nebr., and McCook, Nebr., serving all intermediate points; and (b) operations under the Proviso in the transportation of *commodities generally*, including furniture and household goods, as a *common carrier* over regular routes between Minden, Nebr., and Grand Island and Eustis, Nebr., serving certain intermediate points; *newspapers, small freight, meat, hardware, pop, beer, ice cream* and *package freight* from Hastings, Nebr., to Farnam, Nebr.; *commodities generally*, including perishables requiring refrigeration between Kearney, Nebr., and McCook, Nebr., serving all intermediate and certain off-route points; *furniture and household goods*, over irregular routes, from Minden, Nebr., to points throughout the state of Nebraska; (3) from BURTON VANNIER, doing business as VANNIER TRANSFER, (a) operations under the Proviso in the transportation of *cream, eggs* and *general commodities*, as a *common carrier* over regular routes from Hildreth, Nebr., to Hastings, Nebr., and from Hildreth, Nebr., to Holdredge, Nebr., serving certain off-route points, and over irregular routes from Hildreth, Nebr., and surrounding territory to Grand Island, Nebr., and occasionally to and from points in the state at large. CONSOLIDATED MOTOR FREIGHT, INC., holds no authority from this Commission. Application has not been filed for temporary authority under section 210a (b).

No. MC–F 6421. Authority sought for purchase by CAMPBELL SIXTY-SIX EXPRESS, INC., P. O. Box 390, 2633 East Mill Street Road, Springfield, Mo., of a portion of the operating rights of MURPHEY TRUCK LINES, INC., 954 Barton Street, Memphis, Tenn., and for acquisition of control of such rights by F. G. CAMPBELL, also of Springfield. Applicants' representative: Donald R. Wellford, 1224 Commerce Title Bldg., Memphis, Tenn. Operating rights sought to be transferred: *General commodities*, with certain exceptions including household goods and commodities in bulk, as a *common carrier* over regular routes between Memphis, Tenn., and Grenada, Miss., between Oakland, Miss., and Charleston, Miss., and between Grenada, Miss., and Canton, Miss., serving all intermediate points. Vendee is authorized to operate as a *common carrier* in Missouri, Kansas, Illinois, Oklahoma, Arkansas, Iowa, Tennessee, Texas, Mississippi, Alabama and Louisiana. Application has been filed for temporary authority under section 210a (b).

No. MC–F 6422. Authority sought for control by D. W. DUNN CO., 3175 Washington Street, Boston, Mass., of A. D. McMULLEN, INCORPORATED, 304 Kempton Street, New Bedford, Mass. Applicant's representative: Frank Daniels, 11 Beacon Street, Boston 8, Mass. Operating rights sought to be controlled: *Household goods*, as defined by the Commission, as a *common carrier* over irreg-

ular routes between points in Barnstable, Dukes, and Nantucket Counties, Mass., and those in Bristol and Plymouth Counties, Mass., south of U. S. Highway 44 and east of Massachusetts Highway 138, including points on the indicated portions of the highways specified, on the one hand, and, on the other, points in Massachusetts, New Hampshire, Rhode Island, Connecticut, New York, New Jersey, Pennsylvania, Delaware, Maryland, Virginia, North Carolina and the District of Columbia. Applicant is authorized to operate as a *common carrier* in Massachusetts, Maine, New Hampshire, Vermont, Rhode Island, Connecticut, New York, New Jersey, Pennsylvania, Maryland, Delaware and the District of Columbia. Application has not been filed for temporary authority under section 210a (b).

No. MC–F 6423. Authority sought for purchase by EAZOR EXPRESS, INC., 15–26th Street, Pittsburgh 22, Pa., of the operating rights and certain property of LITMAN MOTOR FREIGHT, INC., 409 George Street, Parkersburg, W. Va., and for acquisition by THOMAS A. EAZOR, also of Pittsburgh, of control of such rights and property through the purchase. Applicants' representatives: Samuel P. Delisi, 1211 Berger Bldg., Pittsburgh 19, Pa., and Edward M. Larkin, 2003 Law & Finance Bldg., Pittsburgh 19, Pa. Operating rights sought to be transferred: *General commodities*, with certain exceptions including household goods and commodities in bulk, as a *common carrier* over regular routes between Parkersburg, W. Va., and Pittsburgh, Pa., between Parkersburg, W. Va., and Marietta, Ohio, between Parkersburg, W. Va., and Clarksburg, W. Va., between Wheeling, W. Va., and Bridgeport, Ohio, between Benwood, W. Va., and Bellaire, Ohio, between New Martinsville, W. Va., and Smithfield, W. Va., between Sistersville, W. Va., and Center Point, W. Va., between Bens Run, W. Va., and Middlebourne, W. Va., and between New Martinsville, W. Va., and Midway, W. Va., serving all intermediate and certain off-route points; *household goods* as defined by the Commission, and *general commodities*, except commodities requiring special equipment (other than household goods) Class A and B explosives, and livestock, between Parkersburg, W. Va., and Charleston, W. Va., serving all intermediate points and the off-route point of Ravenswood, W. Va.; *general commodities*, with certain exceptions including household goods and commodities in bulk, over irregular routes from points in Allegheny County, Pa., Ohio, Wood, and Kanawha Counties, W. Va., to Portsmouth and Pomeroy, Ohio, and certain points in West Virginia. Vendee is authorized to operate as a *common carrier* in Pennsylvania, New York, Illinois, Ohio and New Jersey. Application has not been filed for temporary authority under section 210a (b).

No. MC–F 6424. Authority sought for purchase by DAKOTA FILM SERVICE, INC., Lake Benton, Minn., of the operating rights and property of W. F. McLAREN, doing business as McLAREN DRAY & TRANSFER, 209 South Wind Street, Flandreau, S. Dak., and for acquisition by HENRY J. SCHUETTE, Lake Benton, Minn., and H. LAUREN LEWIS, Box 747, Sioux Falls, S. Dak., of control of such rights and property through the purchase. Applicants' representative: H. Lauren Lewis, P. O. Box 747, Sioux Falls, S. Dak. Operating rights sought to be transferred: *General commodities*, with certain exceptions including household goods and commodities in bulk, as a *common carrier* over regular routes between Sioux Falls, S. Dak., and Flandreau, S. Dak., and between Flandreau, S. Dak., and Pipestone, Minn., serving certain intermediate points and the off-route point of Trent, S. Dak.; alternate route for operating convenience only between Egan, S. Dak., and Flandreau, S. Dak.; *general commodities*, with certain exceptions including neither household goods nor commodities in bulk, over irregular routes between Flandreau, S. Dak., and points within 15 miles of Flandreau, on the one hand, and, on the other, points in Minnesota; *household goods*, as defined by the Commission, between Flandreau, S. Dak., and points within 15 miles of Flandreau, on the one hand, and, on the other, points in Minnesota, between Flandreau, S. Dak., and points in South Dakota within 100 miles thereof, on the one hand, and, on the other, points in North Dakota, Nebraska and Iowa, and from points in Minnesota within 25 miles of Flandreau, S. Dak., to points in South Dakota except Flandreau, and points within 15 miles of Flandreau. Vendee is authorized to operate as a *common carrier* in South Dakota, Minnesota, and North Dakota. Application has not been filed for temporary authority under section 210a (b).

No. MC–F 6425. Authority sought for control by WARD TRANSPORT, INC., P. O. Box 133, Pueblo, Colo., of MELTON TRANSPORT COMPANY, Box 1163, Cheyenne, Wyo., and for acquisition by H. B. WARD, also of Pueblo, of control of MELTON TRANSPORT COMPANY through the acquisition by WARD TRANSPORT, INC. Applicant's representatives: Marion F. Jones, 526 Denham Bldg., Denver 2, Colo., and Robert S. Stauffer, 1510 East 20th Street, Cheyenne, Wyo. Operating rights sought to be controlled: *Petroleum products*, in bulk, in tank vehicles, as a *common carrier* over regular routes from Cheyenne, Wyo., to Martin, S. Dak., and Three-Way Station, Colo., from specified Wyoming points to specified points in Colorado, from Denver, Colo., to specified points in Wyoming, South Dakota, Nebraska, Idaho and Utah, from Casper, Wyo., to the W. R. Book bulk storage plant located approximately 13 miles south of Ramah, Colo., and to certain specified points in Colorado and Nebraska, from Sinclair, Wyo., to Nephi, Thistle, Wellsville, Wendover, Helper, Price, Salina, and Monroe, Utah, from Cheyenne, Wyo., to Tremonton, Wellsville, Wendover, Park City, Heber, Duchesne, Roosevelt, Vernal, Helper, Price, Monroe, Salina, and Cedar City, Utah between specified points in Wyoming and specified points in Colorado between specified points in Wyoming, between specified points in Colorado, between specified points in Utah, between specified points in Wyoming and specified points in Nebraska, and between specified points in Nebraska, serving certain intermediate and off-route points; *liquid petroleum products*, in tank vehicles, over regular and irregular routes, from Superior, Nebr., to certain points in Colorado, from Casper, Lance Creek and Lusk, Wyo., to certain points in Colorado, serving certain intermediate and off-route points; *petroleum products*, in bulk, in tank trucks, from Arkansas City, Eldorado and Shallow Water, Kans., to certain points in Colorado, and from specified points in Texas to specified points in Colorado serving certain intermediate points; *petroleum*, in bulk, in tank vehicles, *petroleum products*, in bulk, in tank vehicles, *crude petroleum*, in bulk, in tank vehicles, *liquid petroleum products*, in tank vehicles, petroleum products other than crude oil in its natural state, and *petroleum products*, in bulk, in tank vehicles, as described in appendix XIII to the report in *Descriptions in Motor Carrier Certificates*, 61 M. C. C. 209, over irregular routes from, to and between points and areas, varying with the commodity transported, in Wyoming, Colorado, Nebraska, Kansas, Texas, Utah, and South Dakota. WARD TRANSPORT, INC., is authorized to operate as a *common carrier* in Colorado, New Mexico, Kansas, Oklahoma, Texas, Wyoming, Nebraska and Utah. Application has not been filed for temporary authority under section 210a (b).

No. MC–F 6429. Authority sought for purchase by SAFEWAY TRUCK LINES, INC., 4625 West 55th Street, Chicago, Ill., of the operating rights of CREGER MOTOR LINES, INC., Route 130, Riverside, N. J., and for acquisition by WILLIAM S. HARRINGTON and JOHN T. BOYKE, both of Chicago, of control of such rights through the purchase. Applicants' representatives: Joseph M. Scanlan, 111 West Washington Street, Chicago 2, Ill., and Jacob Polin, 257 Ellis Road, Havertown, Pa. Operating rights sought to be transferred: *General commodities*, with certain exceptions including household goods and commodities in bulk, as a *common carrier* over irregular routes between New York, N. Y., and points in Essex, Hudson, Union, and Passaic Counties, N. J., on the one hand, and, on the other, New York, N. Y., Philadelphia, Pa., and points within 20 miles thereof, those in Hudson, Essex, Union, Passaic, Middlesex, Somerset, Mercer, and Hunterdon Counties, N. J., and those in Westchester and Rockland Counties, N. Y. Vendee is authorized to operate as a *common carrier* in Kansas, Nebraska, Missouri, Iowa, Illinois, Ohio, Pennsylvania, New York, New Jersey, Connecticut, Massachusetts, Rhode Island, Indiana, Colorado, Kentucky, Minnesota, Maryland, Delaware, Maine, Wisconsin, Arkansas, Michigan and the District of Columbia. Application has been filed for temporary authority under section 210a (b).

By the Commission.

[SEAL] HAROLD D. McCOY, *Secretary.*

[F. R. Doc. 56-8583; Filed, Oct. 23, 1956; 8:54 a. m.]

FOURTH SECTION APPLICATIONS FOR RELIEF

OCTOBER 19, 1956.

Protests to the granting of an application must be prepared in accordance with Rule 40 of the general rules of practice (49 CFR 1.40) and filed within 15 days from the date of publication of this notice in the FEDERAL REGISTER.

LONG-AND-SHORT HAUL

FSA No. 32766: *Sand from Illinois and Wisconsin to Alabama and Virginia.* Filed by R. G. Raasch, Agent, for interested rail carriers. Rates on sand, carloads, from Millington, Oregon, Ottawa, Sheridan, Utica and Wedron, Ill., and Browntown and Klevenville, Wis., to Norton, Ala., and Martinsville, Va.

Grounds for relief: Short-line distance formula and circuitous routes.

Tariff: Supplement 18 to Agent Raasch's I. C. C. 855.

FSA No. 32767: *Coke refuse or dust to Crosby and Ironton, Minn.* Filed by R. G. Raasch, Agent, for interested rail carriers. Rates on coke refuse or coke dust, carloads, from Chicago, Ill., and points in the Chicago district, also Indiana Harbor, Ind., and Milwaukee, Wis., to Crosby and Ironton, Minn.

Grounds for relief: Rail-barge-rail competition and circuitous routes.

Tariff: Supplement 52 to Agent Raasch's I. C. C. 767.

FSA No. 32768: *Hides, pelts, and skins from Jackson, Miss., to Endicott, N. Y.* Filed by O. W. South, Jr., Agent, for interested rail carriers. Rates on hides, pelts, and skins, carloads, from Jackson, Miss., to Endicott, N. Y.

Grounds for relief: Short-line distance formula and circuitous routes.

Tariff: Supplement 4 to Agent Spaninger's I. C. C. 1539.

FSA No. 32769: *Woodpulp from Foley, Fla., to Mount Tom, Mass.* Filed by O. W. South, Jr., Agent, for interested rail carriers. Rates on woodpulp, carloads, from Foley, Fla., to Mount Tom, Mass.

Grounds for relief: Short-line distance formula and circuitous routes.

Tariff: Supplement 3 to Agent C. A. Spaninger's I. C. C. 1555.

FSA No. 32770: *Woodpulp from the South to Center Falls, N. Y.* Filed by O. W. South, Jr., Agent, for interested rail carriers. Rates on woodpulp, carloads, from specified points in Alabama, Florida, Georgia, Louisiana, Mississippi, North Carolina, South Carolina, Tennessee and Virginia, to Center Falls, N. Y.

Grounds for relief: Short-line distance formula and circuitous routes.

Tariff: Supplement 3 to Agent C. A. Spaninger's I. C. C. 1555.

FSA No. 32771: *Woodpulp from South to Official Territory.* Filed by O. W. South, Jr., Agent, for interested rail carriers. Rates on woodpulp, in carloads, from specified points in Alabama, Florida, Georgia, Louisiana, Mississippi, North Carolina, South Carolina, Tennessee, and Virginia, to specified points in New York, Ohio, and Pennsylvania.

Grounds for relief: Short-line distance formula and circuitous routes.

Tariff: Supplement 3 to Agent C. A. Spaninger's I. C. C. 1555.

FSA No. 32772: *Woodpulp from southern points to Olin, Ind.* Filed by O. W. South, Jr., Agent, for interested rail carriers. Rates on woodpulp, carloads, from specified points in Alabama, Florida, Georgia, Louisiana, Mississippi, North Carolina, South Carolina, Tennessee, and Virginia, to Olin, Ind.

Grounds for relief: Short-line distance formula and circuitous routes.

Tariff: Supplement 3 to Agent C. A. Spaninger's I. C. C. 1555.

FSA No. 32773: *Lumber from Coal Mountain, W. Va., to North Carolina points.* Filed by O. W. South, Jr., Agent, for interested rail carriers. Rates on lumber, carloads, from Coal Mountain, W. Va., to Greensboro and Sanford, N. C.

Grounds for relief: Circuitous routes.

Tariff: Supplement 133 to Agent C. A. Spaninger's I. C. C. 1297.

FSA No. 32774: *Chrome and manganese ores from Hampton Roads, Va., ports to Knoxville, Tenn.* Filed by O. W. South, Jr., Agent, for interested rail carriers. Rates on chrome and manganese ores, carloads, from Norfolk, Portsmouth and Pinners Point, Va., to Knoxville, Tenn.

Grounds for relief: Circuitous routes.

Tariff: Supplement 156 to Agent C. A. Spaninger's I. C. C. 1369.

FSA No. 32775: *Coffee from North Atlantic ports to Solon, Ohio.* Filed by O. E. Schultz, Agent, for interested rail carriers. Rates on coffee, carloads, from specified north Atlantic ports and points taking same rates to Solon, Ohio.

Grounds for relief: Circuitous routes.

Tariffs: Supplement 16 to C. W. Boin's I. C. C. A-986 and two other tariffs.

FSA No. 32776: *Sugar from Louisiana and western points to New Mexico and Texas.* Filed by F. C. Kratzmeir, Agent, for interested rail carriers. Rates on sugar, beet or cane, carloads, from specified point in Louisiana, and in Colorado, Idaho, Oregon, Utah, and Wyoming, to specified points in Texas, also in New Mexico on the Texas-New Mexico Railway.

Grounds for relief: Market competition and circuitous routes.

Tariffs: Supplement 25 to Agent Kratzmeir's I. C. C. 4088 and one other tariff.

FSA No. 32777: *Sulphuric acid from Wood River and Reuters, Ill., to Baton Rouge, La.* Filed by F. C. Kratzmeir, Agent, for interested rail carriers. Rates on sulphuric acid, tank-car loads, from Wood River and Reuters, Ill., to Baton Rouge, La.

Grounds for relief: Circuitous routes in part west of the Mississippi River.

FSA No. 32778: *Sugar from western Louisiana to Alabama and Georgia.* Filed by O. W. South, Jr., Agent, for interested rail carriers. Rates on sugar, carloads, from specified points in western Louisiana to specified points in Alabama and Georgia.

Grounds for relief: Circuitous routes.

Tariff: Supplement 325 to Alternate Agent Marque's I. C. C. 380.

FSA No. 32779: *Tile from Jackson, Miss., and New Orleans, La., to southern points.* Filed by O. W. South, Jr., Agent, for interested rail carriers. Rates on tile or roofing from Jackson, Miss., and New Orleans, La., to specified points in southern territory.

Grounds for relief: Short-line distance formula, motor-truck competition, and circuity.

Tariff: Supplement 21 to Agent C. A. Spaninger's I. C. C. 1526.

FSA No. 32780: *Foreign woods from North Atlantic ports to New Albany, Ind.* Filed by O. E. Schultz, Agent, for interested rail carriers. Rates on lumber, built-up wood faced with red lauan or white lauan veneer, carloads from Albany and New York, N. Y., Baltimore, Md., Carteret, N. J., Boston, Mass., Philadelphia, Pa., and Hampton Roads ports, to New Albany, Ind.

Grounds for relief: Port competition, market competition, and circuitous routes.

Tariffs: Supplement 1 to Agent C. W. Boin's I. C. C. A-1116 and three other tariffs.

FSA No. 32781: *Potassium silicate from Cleveland, Ohio, to Baltimore, Md.* Filed by H. R. Hinsch, Agent, for interested rail carriers. Rates on potassium silicate, other than dry, tank-car loads, from Cleveland, Ohio, to Baltimore, Md.

Grounds for relief: Market competition.

Tariff: Supplement 203 to Agent Hinsch's I. C. C. 4542.

FSA No. 32782: *Perlite rock from Socorro, N. Mex., to Florida.* Filed by F. C. Kratzmeir, Agent, for interested rail carriers. Rates on rock, perlite, broken, crushed or ground, carloads, from Socorro, N. Mex., to Hialeah and Miami, Fla.

Grounds for relief: Short-line distance formula and circuity.

Tariff: Supplement 259 to Agent Kratzmeir's I. C. C. 4139.

FSA No. 32783: *Scrap iron from and to Indiana points.* Filed by H. R. Hinsch, Agent, for interested rail carriers. Rates on scrap iron and articles taking the same rates, carloads, from Bloomington and Indianapolis, Ind., to points in Illinois, Indiana, and Kentucky.

Grounds for relief: Rail carrier competition and circuity.

Tariff: Supplement 18 to Agent Hinsch's I. C. C. 4672.

FSA No. 32784: *Various commodities from, to, and between the South.* Filed by O. W. South, Jr., Agent, for interested rail carriers. Rates on various commodities, carloads, from, to, and between points in southern territory named in Exhibit A of the application.

Grounds for relief: Rail carrier competition and circuity.

FSA No. 32785: *Concrete pipe in Official Territory.* Filed by O. E. Schultz, Agent, for interested rail carriers. Rates on reinforced concrete pressure pipe and fittings, carloads, from Cleveland and Dayton, Ohio; Detroit, Mich., Kennett Square, Pa., Wharton, N. J., and Melbourne, Ky., to points in official territory.

Grounds for relief: Motor-truck competition.

Tariff: Supplement 48 to Agent H. R. Hinsch's I. C. C. 4662.

By the Commission.

[SEAL] HAROLD D. McCOY, *Secretary.*

[F. R. Doc. 56-8582; Filed, Oct. 23, 1956; 8:54 a. m.]

DEPARTMENT OF AGRICULTURE

Commodity Stabilization Service and Commodity Credit Corporation

SOIL BANK ACREAGE RESERVE PROGRAM

CONSENT TO GRAZING OF CERTAIN LAND DESIGNATED AS ACREAGE RESERVE

Section 103 (a) of the Soil Bank Act (70 Stat. 188, 189) and § 485.112 (b) of the regulations governing the 1956 acreage reserve part of the Soil Bank Program, 21 F. R. 4379, 21 F. R. 5205, 21 F. R. 5685, 21 F. R. 5959, 21 F. R. 6879, 21 F. R. 7611 and 21 F. R. 7612, provide that land designated as acreage reserve shall not be grazed unless the Secretary of Agriculture, after certification by the Governor of the State in which the farm is located of the need for grazing on the acreage reserve, determines that it is necessary to permit grazing thereon in order to alleviate damage, hardship, or suffering because of severe drought, flood, or other natural disaster, and gives written consent to such grazing.

Notice is hereby given that the Secretary, in accordance with the aforementioned statute and regulations, consents to the grazing for the period specified below of land designated as acreage reserve on farms in the following counties:

Counties	*Period*
COLORADO	
Crowley County	Oct. 10, 1956–Nov. 1, 1956, inclusive.
MISSOURI	
Adair, Andrew, Atchison, Barry, Bates, Benton, Boone, Buchanan, Caldwell, Callaway, Camden, Carroll, Case, Cedar, Chariton, Christian, Clark, Clay, Clinton, Cole, Cooper, Crawford, Dade, Dallas, Daviess, De Kalb, Dent, Douglas, Dunklin, Gentry, Greene, Grundy, Harrison, Henry, Hickory, Holt, Howard, Howell, Iron, Jackson, Jefferson, Johnson, Knox, Laclede, Lafayette, Lawrence, Lewis, Linn, Livingston, McDonald, Ripley, St. Clair, Madison, Maries, Marion, Mercer, Miller, Moniteau, Monroe, Montgomery, Morgan, Newton, Nodaway, Oregon, Osage, Ozark, Pettis, Phelps, Pike, Platte, Polk, Pulaski, Putnam, Ralls, Randolph, Ray, Reynolds, Saline, Schuyler, Scotland, Stone, Sullivan, Taney, Texas, Vernon, Washington, Wayne, Webster, Worth, Wright.	Oct. 11, 1956–Dec. 31, 1956, inclusive.
NEBRASKA	
Hitchcock County	Oct. 10, 1956–Dec. 31, 1956, inclusive.
OKLAHOMA	
Adair, Blaine, Canadian, Cleveland, Custer, Greer, Harmon, Jackson, Kiowa, Le Flore, McClain, Sequoyah, Washington, Washita.	Oct. 10, 1956–Oct. 31, 1956, inclusive.

Done at Washington, D. C., this 19th day of October 1956.

[SEAL]

TRUE D. MORSE, *Acting Secretary.*

[F. R. Doc. 56-8607; Filed, Oct. 23, 1956; 8:57 a. m.]

Rural Electrification Administration

[Administrative Order T-871]

COLORADO

LOAN ANNOUNCEMENT

JULY 27, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
Plains Cooperative Telephone Association, Inc., Colorado 518–A Plains	[1] $455,000

[1] Simultaneous allocation and loan.

[SEAL] DAVID A. HAMIL, *Administrator.*

[F. R. Doc. 56-8528; Filed, Oct. 23, 1956; 8:47 a. m.]

[Administrative Order T-872]

TEXAS

LOAN ANNOUNCEMENT

AUGUST 2, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
Burnet Telephone Company, Incorporated, Texas 600–B Burnet	$260,000

[SEAL] DAVID A. HAMIL, *Administrator.*

[F. R. Doc. 56-8529; Filed, Oct. 23, 1956; 8:47 a. m.]

[Administrative Order T-873]

IDAHO

LOAN ANNOUNCEMENT

AUGUST 6, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
Owyhee Telephone Company, Idaho 507–A Owyhee	[1] $626,000

[1] Simultaneous allocation and loan.

[SEAL] FRED H. STRONG, *Acting Administrator.*

[F. R. Doc. 56-8530; Filed, Oct. 23, 1956; 8:47 a. m.]

[Administrative Order T-874]

OREGON

LOAN ANNOUNCEMENT

AUGUST 10, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
Stayton Cooperative Telephone Co., Oregon 525–A Stayton	[1] $419,000

[1] Simultaneous allocation and loan.

[SEAL] FRED H. STRONG, *Acting Administrator.*

[F. R. Doc. 56-8531; Filed, Oct. 23, 1956; 8:47 a. m.]

[Administrative Order T-875]

PENNSYLVANIA

LOAN ANNOUNCEMENT

AUGUST 10, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
Lackawaxen and Hawley Telephone Company, Pennsylvania 516–B Lackawaxen	$50,000

[SEAL] FRED H. STRONG, *Acting Administrator.*

[F. R. Doc. 56-8532; Filed, Oct. 23, 1956; 8:47 a. m.]

[Administrative Order T-876]

CALIFORNIA

LOAN ANNOUNCEMENT

AUGUST 15, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as

amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Siskiyou Telephone Company, California 517-A Siskiyou	[1] $797,000

[1] Simultaneous allocation and loan.

[SEAL] DAVID A. HAMIL, *Administrator.*

[F. R. Doc. 56-8533; Filed, Oct. 23, 1956; 8:47 a. m.]

[Administrative Order T-877]

KANSAS

LOAN ANNOUNCEMENT

AUGUST 16, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
J. B. N. Telephone Company, Inc., Kansas 564-A J. B. N.	[1] $648,000

[1] Simultaneous allocation and loan.

[SEAL] DAVID A. HAMIL, *Administrator.*

[F. R. Doc. 56-8534; Filed, Oct. 23, 1956; 8:47 a. m.]

[Administrative Order T-878]

INDIANA

LOAN ANNOUNCEMENT

AUGUST 17, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Smithville Telephone Company, Indiana 503-D Smithville	$355,000

[SEAL] FRED H. STRONG, *Acting Administrator.*

[F. R. Doc. 56-8535; Filed, Oct. 23, 1956; 8:48 a. m.]

[Administrative Order T-879]

INDIANA

LOAN ANNOUNCEMENT

AUGUST 17, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Ohio Valley Telephone Corporation, Indiana 533-A Ohio Valley	[1] $73,000

[1] Simultaneous allocation and loan.

[SEAL] FRED H. STRONG, *Acting Administrator.*

[F. R. Doc. 56-8536; Filed, Oct. 23, 1956; 8:48 a. m.]

[Administrative Order T-880]

TENNESSEE

LOAN ANNOUNCEMENT

AUGUST 20, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Parsons Telephone Company, Inc., Tennessee 510-C Parsons	$193,000

[SEAL] J. K. O'SHAUGHNESSY, *Acting Administrator.*

[F. R. Doc. 56-8537; Filed, Oct. 23, 1956; 8:48 a. m.]

[Administrative Order T-881]

GEORGIA

LOAN ANNOUNCEMENT

AUGUST 20, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Planters Rural Telephone Cooperative, Inc., Georgia 534-C Planters	$147,000

[SEAL] J. K. O'SHAUGHNESSY, *Acting Administrator.*

[F. R. Doc. 56-8538; Filed, Oct. 23, 1956; 8:48 a. m.]

[Administrative Order T-882]

KANSAS

AMENDMENT OF LOAN ANNOUNCEMENT

AUGUST 20, 1956.

I hereby amend: (a) Administrative Order No. T-90, dated December 6, 1951, by rescinding the loan of $451,000 therein made for "C & R Telephone Cooperative Association, Inc., Kansas 505-A C & R."

[SEAL] J. K. O'SHAUGHNESSY, *Acting Administrator.*

[F. R. Doc. 56-8539; Filed, Oct. 23, 1956; 8:48 a. m.]

[Administrative Order T-883]

KANSAS

AMENDMENT OF LOAN ANNOUNCEMENT

AUGUST 20, 1956.

I hereby amend: (a) Administrative Order No. T-558, dated January 18, 1955, by rescinding the loan of $103,000 therein made for "The Milliken Telephone Company, Inc., Kansas 553-A Milliken."

[SEAL] J. K. O'SHAUGHNESSY, *Acting Administrator.*

[F. R. Doc. 56-8540; Filed, Oct. 23, 1956; 8:48 a. m.]

[Administrative Order T-884]

MINNESOTA

LOAN ANNOUNCEMENT

AUGUST 22, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Northland Consolidated Telephone, Inc., Minnesota 533-B Northland	$144,000

[SEAL] J. K. O'SHAUGHNESSY, *Acting Administrator.*

[F. R. Doc. 56-8541; Filed, Oct. 23, 1956; 8:48 a. m.]

[Administrative Order T-885]

MINNESOTA

LOAN ANNOUNCEMENT

AUGUST 22, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Runestone Telephone Association, Minnesota 540-C Runestone	$121,000

[SEAL] J. K. O'SHAUGHNESSY, *Acting Administrator.*

[F. R. Doc. 56-8542; Filed, Oct. 23, 1956; 8:49 a. m.]

[Administrative Order T-886]

WISCONSIN

LOAN ANNOUNCEMENT

AUGUST 28, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
LaValle Telephone Cooperative, Wisconsin 568–A LaValle	[1] $208,000

[1] Simultaneous allocation and loan.

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 56–8543; Filed, Oct. 23, 1956; 8:49 a. m.]

[Administrative Order T–887]

OKLAHOMA

LOAN ANNOUNCEMENT

AUGUST 28, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Chickasaw Telephone Company Inc., Oklahoma 541–A Chickasaw	[1] $388,000

[1] Simultaneous allocation and loan.

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 56–8544; Filed, Oct. 23, 1956; 8:49 a. m.]

[Administrative Order T–888]

TEXAS

LOAN ANNOUNCEMENT

AUGUST 28, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Lake Dallas Telephone Company Inc., Texas 594–A Lake Dallas	[1] $125,000

[1] Simultaneous allocation and loan.

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 56–8545; Filed, Oct. 23, 1956; 8:49 a. m.]

[Administrative Order T–889]

ARIZONA

LOAN ANNOUNCEMENT

AUGUST 28, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Parker Valley Telephone Company, Inc., Arizona 503–C Parker	$74,000

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 56–8546; Filed, Oct. 23, 1956; 8:49 a. m.]

[Administrative Order T–890]

MISSOURI

LOAN ANNOUNCEMENT

AUGUST 29, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Purdy Telephone Company, Missouri 525–B Purdy	$178,000

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 56–8547; Filed, Oct. 23, 1956; 8:49 a. m.]

[Administrative Order T–891]

NEBRASKA

LOAN ANNOUNCEMENT

AUGUST 30, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
The Farmers Telephone Company of Dodge County, Nebraska 531–A Farmers	[1] $422,000

[1] Simultaneous allocation and loan.

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 56–8548; Filed, Oct. 23, 1956; 8:49 a. m.]

[Administrative Order T–892]

MINNESOTA

LOAN ANNOUNCEMENT

AUGUST 31, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Crow Wing Cooperative Rural Telephone Company, Minnesota 537–C Crow Wing	$80,000

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 56–8549; Filed, Oct. 23, 1956; 8:49 a. m.]

[Administrative Order T–893]

VIRGINIA

LOAN ANNOUNCEMENT

SEPTEMBER 4, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Central Virginia Telephone Corporation, Virginia 515–C Amherst	$137,000

[SEAL] DAVID A. HAMIL,
Administrator.

[F. R. Doc. 56–8550; Filed, Oct. 23, 1956; 8:50 a. m.]

[Administrative Order T–894]

TENNESSEE

LOAN ANNOUNCEMENT

SEPTEMBER 5, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Concord Telephone Exchange, Inc., Tennessee 525–C Concord	$106,000

[SEAL] J. K. O'SHAUGHNESSY,
Acting Administrator.

[F. R. Doc. 56–8551; Filed, Oct. 23, 1956; 8:50 a. m.]

[Administrative Order T–895]

LOUISIANA

LOAN ANNOUNCEMENT

SEPTEMBER 10, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Plain Dealing Telephone Company, Inc., Louisiana 507–B Plain Dealing	$33,000

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 56–8552; Filed, Oct. 23, 1956; 8:50 a. m.]

[Administrative Order T–896]

TENNESSEE

LOAN ANNOUNCEMENT

SEPTEMBER 10, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Tellico Telephone Company, Incorporated, Tennessee 528–B Tellico	$125,000

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 56–8553; Filed, Oct. 23, 1956; 8:50 a. m.]

[Administrative Order T-897]

LOUISIANA

LOAN ANNOUNCEMENT

SEPTEMBER 12, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
The Marion-Oak Ridge Telephone Company, Inc., Louisiana 526-B Marion	$173,000

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 56-8554; Filed, Oct. 23, 1956; 8:50 a. m.]

[Administrative Order T-898]

OHIO

LOAN ANNOUNCEMENT

SEPTEMBER 12, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Minford Telephone Company, Ohio 515-A Minford	[1] $180,000

[1] Simultaneous allocation and loan.

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 56-8555; Filed, Oct. 23, 1956; 8:50 a. m.]

[Administrative Order T-899]

KENTUCKY

LOAN ANNOUNCEMENT

SEPTEMBER 14, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
West Kentucky Rural Telephone Cooperative Corporation, Inc., Kentucky 525-B West Kentucky	$334,000

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 56-8556; Filed, Oct. 23, 1956; 8:50 a. m.]

[Administrative Order T-900]

TEXAS

AMENDMENT OF LOAN ANNOUNCEMENT

SEPTEMBER 14, 1956.

I hereby amend: (a) Administrative Order No. T-773, dated February 15, 1956, by rescinding the loan of $530,000 therein made for "SCVAK Telephone Company, Inc., Texas 524-A (Revised) and B Big Spring."

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 56-8557; Filed, Oct. 23, 1956; 8:51 a. m.]

[Administrative Order T-901]

NEW MEXICO

LOAN ANNOUNCEMENT

SEPTEMBER 18, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
E. N. M. R. Telephone Cooperative, New Mexico 504-D Clovis	$52,000

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 56-8558; Filed, Oct. 23, 1956; 8:51 a. m.]

[Administrative Order T-902]

KANSAS

LOAN ANNOUNCEMENT

SEPTEMBER 20, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
The Harper County Rural Telephone Association, Kansas 544-B Harper County	$257,000

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 56-8559; Filed, Oct. 23, 1956; 8:51 a. m.]

[Administrative Order T-903]

IDAHO

LOAN ANNOUNCEMENT

SEPTEMBER 20, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Aberdeen Telephone Company, Idaho 508-B Aberdeen	$145,000

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 56-8560; Filed, Oct. 23, 1956; 8:51 a. m.]

[Administrative Order T-904]

MAINE

LOAN ANNOUNCEMENT

SEPTEMBER 20, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Hebron's Home Telephone Company, Maine 501-E Hebron	$13,000

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 56-8561; Filed, Oct. 23, 1956; 8:51 a. m.]

[Administrative Order T-905]

LOUISIANA

LOAN ANNOUNCEMENT

SEPTEMBER 21, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Lafourche Telephone Company, Inc., Louisiana 506-F Larose	$1,073,000

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 56-8562; Filed, Oct. 23, 1956; 8:51 a. m.]

[Administrative Order T-906]

WISCONSIN

LOAN ANNOUNCEMENT

SEPTEMBER 21, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Coon Valley Farmers Telephone Company, Wisconsin 533-B Coon Valley	$73,000

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 56-8563; Filed, Oct. 23, 1956; 8:51 a. m.]

[Administrative Order T-907]

TEXAS

LOAN ANNOUNCEMENT

SEPTEMBER 21, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Northeast Texas Telephone Company, Texas 586-C Bogata	$92,000

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 56-8564; Filed, Oct. 23, 1956; 8:52 a. m.]

[Administrative Order T-908]

PENNSYLVANIA

LOAN ANNOUNCEMENT

SEPTEMBER 21, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Taylorstown Telephone Company, Pennsylvania 520-A Taylorstown	[1] $162,000

[1] Simultaneous allocation and loan.

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 56-8565; Filed, Oct. 23, 1956; 8:52 a. m.]

[Administrative Order T-909]

WISCONSIN

LOAN ANNOUNCEMENT

SEPTEMBER 21, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Solon Springs Telephone Company, Wisconsin 505-B Solon Springs	$54,000

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 56-8566; Filed, Oct. 23, 1956; 8:52 a. m.]

[Administrative Order T-910]

MISSOURI

LOAN ANNOUNCEMENT

SEPTEMBER 24, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Urbana Telephone Company, Missouri 570-A Urbana	[1] $593,000

[1] Simultaneous allocation and loan.

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 56-8567; Filed, Oct. 23, 1956; 8:52 a. m.]

[Administrative Order T-911]

VIRGINIA

LOAN ANNOUNCEMENT

SEPTEMBER 24, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Piedmont Telephone Company, Virginia 502-C Piedmont	$205,000

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 56-8568; Filed, Oct. 23, 1956; 8:52 a. m.]

[Administrative Order T-912]

IOWA

LOAN ANNOUNCEMENT

SEPTEMBER 24, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
The Farmers Mutual Telephone Company of Stanton, Iowa, Iowa 535-A Stanton	[1] $179,000

[1] Simultaneous allocation and loan.

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 56-8569; Filed, Oct. 23, 1956; 8:52 a. m.]

[Administrative Order T-913]

ILLINOIS

LOAN ANNOUNCEMENT

SEPTEMBER 24, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Inland Telephone Company, Illinois 547-A Inland	[1] $687,000

[1] Simultaneous allocation and loan.

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 56-8570; Filed, Oct. 23, 1956; 8:52 a. m.]

[Administrative Order T-914]

GEORGIA

LOAN ANNOUNCEMENT

SEPTEMBER 26, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Pineland Telephone Cooperative, Inc., Georgia 539-D Pineland	$302,000

[SEAL] DAVID A. HAMIL,
Administrator.

[F. R. Doc. 56-8571; Filed, Oct. 23, 1956; 8:52 a. m.]

[Administrative Order T-915]

GEORGIA

LOAN ANNOUNCEMENT

SEPTEMBER 26, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Public Service Telephone Company, Georgia 510-B Public	$194,000

[SEAL] DAVID A. HAMIL,
Administrator.

[F. R. Doc. 56-8572; Filed, Oct. 23, 1956; 8:52 a. m.]

[Administrative Order T-916]

VIRGINIA

LOAN ANNOUNCEMENT

SEPTEMBER 27, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Farmers' Mutual Telephone System of Shenandoah County, Virginia 517-A Edinburg	[1] $2,140,000

[1] Simultaneous allocation and loan.

[SEAL] DAVID A. HAMIL,
Administrator.

[F. R. Doc. 56-8573; Filed, Oct. 23, 1956; 8:52 a. m.]

[Administrative Order T-917]

MICHIGAN

LOAN ANNOUNCEMENT

SEPTEMBER 27, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Shiawassee Telephone Company, Michigan 523–A Shiawassee	[1] $360,000

[1] Simultaneous allocation and loan.

[SEAL] DAVID A. HAMIL, *Administrator.*

[F. R. Doc. 56–8574; Filed, Oct. 23, 1956; 8:52 a. m.]

[Administrative Order T–918]

MISSOURI

LOAN ANNOUNCEMENT

SEPTEMBER 27, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
LaBelle Telephone Company, Missouri 572–A LaBelle	[1] $254,000

[1] Simultaneous allocation and loan.

[SEAL] DAVID A. HAMIL, *Administrator.*

[F. R. Doc. 56–8575; Filed, Oct. 23, 1956; 8:53 a. m.]

[Administrative Order T–919]

WEST VIRGINIA

LOAN ANNOUNCEMENT

SEPTEMBER 27, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Meadow River Telephone Company, Inc., West Virginia 506–B Meadow River	$62,000

[SEAL] DAVID A. HAMIL, *Administrator.*

[F. R. Doc. 56–8576; Filed, Oct. 23, 1956; 8:53 a. m.]

[Administrative Order T–920]

MAINE

LOAN ANNOUNCEMENT

SEPTEMBER 27, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Saco River Telegraph and Telephone Company, Maine 512–B Bar Mills	$206,000

[SEAL] DAVID A. HAMIL, *Administrator.*

[F. R. Doc. 56–8577; Filed, Oct. 23, 1956; 8:53 a. m.]

[Administrative Order T–921]

MISSOURI

LOAN ANNOUNCEMENT

SEPTEMBER 27, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Goodman Telephone Company, Inc., Missouri 556–B Goodman	$96,000

[SEAL] DAVID A. HAMIL, *Administrator.*

[F. R. Doc. 56–8578; Filed, Oct. 23, 1956; 8:53 a. m.]

[Administrative Order T–922]

MINNESOTA

LOAN ANNOUNCEMENT

SEPTEMBER 27, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Twin Valley-Ulen Telephone Company, Minnesota 573–A Twin Valley	[1] $564,000

[1] Simultaneous allocation and loan.

[SEAL] DAVID A. HAMIL, *Administrator.*

[F. R. Doc. 56–8579; Filed, Oct. 23, 1956; 8:53 a. m.]

[Administrative Order T–923]

IOWA

LOAN ANNOUNCEMENT

SEPTEMBER 27, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
Cooperative Telephone Exchange, Iowa 558–A Stanhope	[1] $187,000

[1] Simultaneous allocation and loan.

[SEAL] DAVID A. HAMIL, *Administrator.*

[F. R. Doc. 56–8580; Filed, Oct. 23, 1956; 8:53 a. m.]

[Administrative Order T–924]

COLORADO

LOAN ANNOUNCEMENT

SEPTEMBER 28, 1956.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	Amount
The Delta County Cooperative Telephone Company, Colorado 510–A Delta	[1] $1,360,000

[1] Simultaneous allocation and loan.

[SEAL] DAVID A. HAMIL, *Administrator.*

[F. R. Doc. 56–8581; Filed, Oct. 23, 1956; 8:53 a. m.]